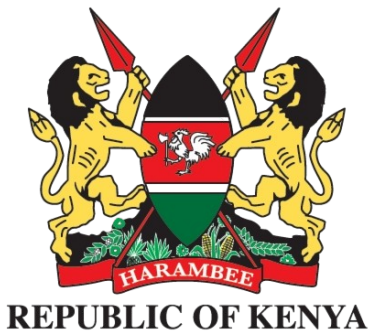




KENYA INSTITUTE OF PRIMATE RESEARCH

TENDER NAME:

**DEVELOPING A POLYVALENT SNAKE VENOM ANTI SERUM FOR THE
EFFECTIVE TREATMENT OF SNAKEBITE ENVENOMING IN KENYA
AND REST OF EAST AFRICA**

TENDER NO:

KIPRE/961/0004/2025-26

Procurement Method:

Open Tender

PE Complete Address

END OF KAREN ROAD, LANGATA, NAIROBI, Kenya, 24481, 00502

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SECTION 1- INSTRUCTIONS TO TENDER



Instruction To Tenderers (ITT)

Detail

A. GENERAL

1. SCOPE OF TENDER

1.1 IN CONNECTION WITH THIS INVITATION TO TENDERER (ITT), THE PROCURING ENTITY ISSUES THIS TENDERING DOCUMENT FOR THE SUPPLY OF HEALTH GOODS (PHARMACEUTICALS, VACCINES, AND CONDOMS AND RELATED SERVICES INCIDENTAL THERETO AS SPECIFIED IN SECTION V, SCHEDULE OF REQUIREMENTS. THE REFERENCE NUMBER AND DESCRIPTION OF THE TENDER NUMBER AND IDENTIFICATION OF ITEMS OR LOTS (CONTRACTS) OF THIS ITT ARE SPECIFIED IN THE **TDS**.

2. DEFINITIONS

THROUGHOUT THIS TENDER DOCUMENT:

- A) THE TERM "IN WRITING" MEANS COMMUNICATED IN WRITTEN FORM (E.G. BY MAIL, E-MAIL, FAX, INCLUDING IF SPECIFIED IN THE **TDS**, DISTRIBUTED OR RECEIVED THROUGH THE ELECTRONIC-PROCUREMENT SYSTEM USED BY THE PROCURING ENTITY) WITH PROOF OF RECEIPT.
- B) IF THE CONTEXT SO REQUIRES, "SINGULAR" MEANS "PLURAL" AND VICE VERSA; AND "DAY" MEAN SCALE DAY, UNLESS OTHERWISE SPECIFIED AS "BUSINESS DAY." A BUSINESS DAY IS ANY DAY THAT IS AN OFFICIAL WORKING DAY OF THE PROCURING ENTITY. IT EXCLUDES THE PROCURING ENTITY'S OFFICIAL PUBLIC HOLIDAYS.

3. FRAUD AND CORRUPTION

3.1 THE PROCURING ENTITY REQUIRES COMPLIANCE WITH THE PROVISIONS OF THE PUBLIC PROCUREMENT AND ASSET DISPOSAL ACT, 2015 (REVISED 2022), SECTION 62 "DECLARATION NOT TO ENGAGE IN CORRUPTION". THE TENDER SUBMITTED BY A PERSON SHALL INCLUDE A DECLARATION THAT THE PERSON SHALL NOT ENGAGE IN ANY CORRUPT OR FRAUDULENT PRACTICE AND A DECLARATION THAT THE PERSON OR HIS OR HER SUB-CONTRACTORS ARE NOT DEBARRED FROM PARTICIPATING IN PUBLIC PROCUREMENT PROCEEDINGS.

3.2 THE PROCURING ENTITY REQUIRES COMPLIANCE WITH THE PROVISIONS OF THE COMPETITION ACT 2010, REGARDING COLLUSIVE PRACTICES IN CONTRACTING. ANY TENDERER FOUND TO HAVE ENGAGED IN COLLUSIVE CONDUCT SHALL BE DISQUALIFIED AND CRIMINAL AND /OR CIVIL SANCTIONS MAY BE IMPOSED TO THIS EFFECT, TENDERERS SHALL BE REQUIRED TO COMPLETE AND SIGN THE "CERTIFICATE OF INDEPENDENT TENDER DETERMINATION" ANNEXED TO THE FORM OF TENDER.

3.3 UNFAIR COMPETITIVE ADVANTAGE - FAIRNESS AND TRANSPARENCY IN THE TENDER PROCESS REQUIRE THAT THE FIRMS OR THEIR AFFILIATES COMPETING FOR A SPECIFIC ASSIGNMENT DO NOT DERIVE A COMPETITIVE ADVANTAGE FROM HAVING PROVIDED CONSULTING SERVICES RELATED TO THE ASSIGNMENT IN QUESTION. TO THAT END, THE PROCURING ENTITY SHALL INDICATE IN THE **DATA SHEET** AND MAKE AVAILABLE TO ALL THE FIRMS TOGETHER WITH THIS TENDER DOCUMENT ALL INFORMATION THAT WOULD IN THAT RESPECT GIVE SUCH FIRM ANY UNFAIR COMPETITIVE ADVANTAGE OVER COMPETING FIRMS.

3.4 TENDERERS SHALL PERMIT AND SHALL CAUSE THEIR AGENTS (WHERE DECLARED OR NOT), SUBCONTRACTORS, SUB-CONSULTANTS, SERVICE PROVIDERS, SUPPLIERS, AND THEIR PERSONNEL, TO PERMIT THE PROCURING ENTITY TO INSPECT ALL ACCOUNTS, RECORDS AND OTHER DOCUMENTS RELATING TO ANY INITIAL SELECTION PROCESS, PREQUALIFICATION PROCESS, TENDER SUBMISSION, PROPOSAL SUBMISSION, AND CONTRACT PERFORMANCE (IN THE CASE OF AWARD), AND TO HAVE THEM AUDITED BY AUDITORS APPOINTED BY THE PROCURING ENTITY.

4. ELIGIBLE TENDERERS

4.1 A TENDERER MAY BE A FIRM THAT IS A PRIVATE ENTITY, A STATE-OWNED ENTERPRISE OR INSTITUTION SUBJECT TO ITT4.6 OR ANY COMBINATION OF SUCH ENTITIES IN THE FORM OF A JOINT VENTURE (JV) UNDER AN EXISTING AGREEMENT OR WITH THE INTENT TO ENTER IN TO SUCH AN AGREEMENT SUPPORTED BY A FORM OF INTENT. IN THE CASE OF A JOINT VENTURE, ALL MEMBERS SHALL BE JOINTLY AND SEVERALLY LIABLE FOR THE EXECUTION OF THE ENTIRE CONTRACT IN ACCORDANCE WITH THE CONTRACT TERMS. THE JV SHALL NOMINATE A REPRESENTATIVE WHO SHALL HAVE THE AUTHORITY TO CONDUCT ALL BUSINESS FOR AND ON BEHALF OF ANY AND ALL THE MEMBERS OF THE JV DURING THE TENDERING PROCESS AND, IN THE EVENT THE JV IS AWARDED THE CONTRACT, DURING CONTRACT EXECUTION. MEMBERS OF A JOINT VENTURE MAY NOT ALSO MAKE AN INDIVIDUAL TENDER, BE A SUBCONTRACTOR IN A SEPARATE TENDER OR BE PART OF ANOTHER JOINT VENTURE FOR THE PURPOSES OF THE SAME TENDER. THE MAXIMUM NUMBER OF JV MEMBERS TO BE ALLOWED SHALL BE SPECIFIED IN THE TDS.

4.2 PUBLIC OFFICERS OF THE PROCURING ENTITY, THEIR SPOUSE, CHILD, PARENT, BROTHER, SISTER, CHILD, PARENT OR SISTER OF A SPOUSE THEIR BUSINESS ASSOCIATES OR AGENTS AND FIRMS/ORGANIZATIONS IN WHICH THEY HAVE A SUBSTANTIAL OR CONTROLLING INTEREST SHALL NOT BE ELIGIBLE TO TENDER OR BE AWARDED A CONTRACT. PUBLIC OFFICERS ARE ALSO NOT ALLOWED TO PARTICIPATE IN ANY PROCUREMENT PROCEEDINGS.

4.3 A TENDERER SHALL NOT HAVE A CONFLICT OF INTEREST. ANY TENDERER FOUND TO HAVE A CONFLICT OF INTEREST SHALL BE DISQUALIFIED. A TENDERER MAY BE CONSIDERED TO HAVE A CONFLICT OF INTEREST FOR THE PURPOSE OF THIS TENDERING PROCESS, IF THE TENDERER:

A DIRECTLY OR INDIRECTLY CONTROLS, IS CONTROLLED BY OR IS UNDER COMMON CONTROL WITH ANOTHER TENDERER; OR

B RECEIVES OR HAS RECEIVED ANY DIRECT OR INDIRECT SUBSIDY FROM ANOTHER TENDERER; OR

C HAS THE SAME LEGAL REPRESENTATIVE AS ANOTHER TENDERER; OR

D HAS A RELATIONSHIP WITH ANOTHER TENDERER, DIRECTLY OR THROUGH COMMON THIRD PARTIES, THAT PUTS IT IN A POSITION TO INFLUENCE THE TENDER OF ANOTHER TENDERER, OR INFLUENCE THE DECISIONS OF THE PROCURING ENTITY REGARDING THIS TENDERING PROCESS; OR

E OR ANY OF ITS AFFILIATES PARTICIPATED AS A CONSULTANT IN THE PREPARATION OF THE DESIGN OR TECHNICAL SPECIFICATIONS OF THE GOODS THAT ARE THE SUBJECT OF THE TENDER; OR

F OR ANY OF ITS AFFILIATES HAS BEEN HIRED (OR IS PROPOSED TO BE HIRED) BY THE PROCURING ENTITY OR PROCURING ENTITY FOR THE CONTRACT IMPLEMENTATION, OR

G WOULD BE PROVIDING GOODS, WORKS, OR NON-CONSULTING SERVICES RESULTING FROM OR DIRECTLY RELATED TO CONSULTING SERVICES FOR THE PREPARATION OR IMPLEMENTATION OF THE PROJECT SPECIFIED IN THE TDS ITT 1.1 THAT IT PROVIDED OR WERE PROVIDED BY ANY AFFILIATE THAT DIRECTLY OR INDIRECTLY CONTROLS, IS CONTROLLED BY, OR IS UNDER COMMON CONTROL WITH THAT FIRM; OR

H HAS A CLOSE BUSINESS OR FAMILY RELATIONSHIP WITH A PROFESSIONAL STAFF OF THE PROCURING ENTITY WHO: (I) ARE DIRECTLY OR INDIRECTLY INVOLVED IN THE PREPARATION OF THE TENDERING DOCUMENT OR SPECIFICATIONS OF THE CONTRACT, AND/OR THE TENDER EVALUATION PROCESS OF SUCH CONTRACT; OR (II) WOULD BE INVOLVED IN THE IMPLEMENTATION OR SUPERVISION OF SUCH CONTRACT UNLESS THE CONFLICT STEMMING FROM SUCH RELATIONSHIP HAS BEEN RESOLVED IN A MANNER ACCEPTABLE TO THE PROCURING ENTITY THROUGHOUT THE TENDERING PROCESS AND EXECUTION OF THE CONTRACT.

A FIRM THAT IS A TENDERER (EITHER INDIVIDUALLY OR AS A JV MEMBER) SHALL NOT PARTICIPATE IN MORE THAN ONE TENDER, EXCEPT FOR PERMITTED ALTERNATIVE TENDERS. THIS INCLUDES PARTICIPATION AS A SUBCONTRACTOR. SUCH PARTICIPATION SHALL RESULT IN THE DISQUALIFICATION OF ALL TENDERS IN WHICH THE FIRM IS INVOLVED. A FIRM THAT IS NOT A TENDERER OR A JV MEMBER MAY PARTICIPATE AS A SUBCONTRACTOR IN MORE THAN ONE TENDER.

4.4 A TENDERER MAY HAVE THE NATIONALITY OF ANY COUNTRY, SUBJECT TO THE RESTRICTIONS PURSUANT TO ITT 4.9. A TENDERER SHALL BE DEEMED TO HAVE THE NATIONALITY OF A COUNTRY IF THE TENDERER IS CONSTITUTED, INCORPORATED OR REGISTERED IN AND OPERATES IN CONFORMITY WITH THE PROVISIONS OF THE LAWS OF THAT COUNTRY, AS EVIDENCED BY ITS ARTICLES OF INCORPORATION (OR EQUIVALENT DOCUMENTS OF CONSTITUTION OR ASSOCIATION) AND ITS REGISTRATION DOCUMENTS, AS THE CASE MAY BE. THIS CRITERION ALSO SHALL APPLY TO THE DETERMINATION OF THE NATIONALITY OF PROPOSED SUBCONTRACTORS OR SUB-CONSULTANTS FOR ANY PART OF THE CONTRACT INCLUDING RELATED SERVICES.

4.5 A TENDERER THAT HAS BEEN DEBARRED FROM PARTICIPATING IN PUBLIC PROCUREMENT SHALL BE IN ELIGIBLE TO BE PREQUALIFIED FOR, INITIALLY SELECTED FOR, TENDER FOR, PROPOSE FOR, OR BE AWARDED A CONTRACT DURING SUCH PERIOD OF TIME AS THE PPRA SHALL HAVE DETERMINED. THE LIST OF DEBARRED FIRMS AND INDIVIDUALS IS AVAILABLE AT PPRA'S WEBSITE INFO@PPRA.GO.KE OR COMPLAINTS@PPRA.GO.KE.

4.6 TENDERERS THAT ARE STATE-OWNED ENTERPRISES OR INSTITUTIONS IN KENYA MAY BE ELIGIBLE TO COMPETE AND BE AWARDED A CONTRACT(S) ONLY IF THEY CAN ESTABLISH, IN A MANNER ACCEPTABLE TO THE PROCURING ENTITY, THAT THEY (I) ARE LEGALLY AND FINANCIALLY AUTONOMOUS (II) OPERATE UNDER COMMERCIAL LAW, AND (III) ARE NOT UNDER SUPERVISION OF THE PROCURING ENTITY.

4.7 A TENDERER SHALL NOT BE UNDER SUSPENSION FROM TENDERING BY THE PROCURING ENTITY AS THE RESULT OF THE OPERATION OF A TENDER-SECURING DECLARATION OR PROPOSAL-SECURING DECLARATION.

4.8 FIRMS AND INDIVIDUALS MAY BE INELIGIBLE IF (A) AS A MATTER OF LAW OR OFFICIAL REGULATIONS, KENYA PROHIBITS COMMERCIAL RELATIONS WITH THAT COUNTRY, OR (B) BY AN ACT OF COMPLIANCE WITH A DECISION OF THE UNITED NATIONS SECURITY COUNCIL TAKEN UNDER CHAPTER VII OF THE CHARTER OF THE UNITED NATIONS, KENYA PROHIBITS ANY IMPORT OF GOODS OR CONTRACTING OF WORKS OR SERVICES FROM THAT COUNTRY, OR ANY PAYMENTS TO ANY COUNTRY, PERSON, OR ENTITY IN THAT COUNTRY.

4.9 FOREIGN TENDERERS ARE REQUIRED TO SOURCE AT LEAST FORTY (40%) PERCENT OF THEIR CONTRACT INPUTS (IN SUPPLIES, SUBCONTRACTS AND LABOR) FROM NATIONAL SUPPLIERS AND CONTRACTORS. TO THIS END, A FOREIGN TENDERER SHALL PROVIDE IN ITS TENDER DOCUMENTARY EVIDENCE THAT THIS REQUIREMENT IS MET. FOREIGN TENDERERS NOT MEETING THIS CRITERION WILL BE AUTOMATICALLY DISQUALIFIED. INFORMATION REQUIRED TO ENABLE THE PROCURING ENTITY DETERMINE IF THIS CONDITION IS MET SHALL BE PROVIDED IN FOR THIS PURPOSE IS BE PROVIDED IN "SECTION III - EVALUATION AND QUALIFICATION CRITERIA, ITEM 9".

4.10 PURSUANT TO THE ELIGIBILITY REQUIREMENTS OF ITT 4.10, A TENDER IS CONSIDERED A FOREIGN TENDERER IF THE TENDERER IS NOT REGISTERED IN KENYA OR IF THE TENDERER IS REGISTERED IN KENYA AND HAS LESS THAN 51 PERCENT OWNERSHIP BY KENYAN CITIZENS. JVS ARE CONSIDERED AS FOREIGN TENDERERS IF THE INDIVIDUAL MEMBER FIRMS ARE NOT REGISTERED IN KENYA OR IF ARE REGISTERED IN KENYA AND HAVE LESS THAN 51 PERCENT OWNERSHIP BY KENYAN CITIZENS. THE JV SHALL NOT SUBCONTRACT TO FOREIGN FIRMS MORE THAN 10 PERCENT OF THE CONTRACT PRICE, EXCLUDING PROVISIONAL SUMS.

4.11 THE COMPETITION ACT OF KENYA REQUIRES THAT FIRMS WISHING TO TENDER AS JOINT VENTURE UNDERTAKINGS WHICH MAY PREVENT, DISTORT OR LESSEN COMPETITION IN PROVISION OF SERVICES ARE PROHIBITED UNLESS THEY ARE EXEMPT IN ACCORDANCE WITH THE PROVISIONS OF SECTION 25 OF THE COMPETITION ACT, 2010. JVS WILL BE REQUIRED TO SEEK FOR EXEMPTION FROM THE COMPETITION AUTHORITY. EXEMPTION SHALL NOT BE A CONDITION FOR TENDER, BUT IT SHALL BE A CONDITION OF CONTRACT AWARD AND SIGNATURE. A JV TENDERER SHALL BE GIVEN OPPORTUNITY TO SEEK SUCH EXEMPTION AS A CONDITION OF AWARD AND SIGNATURE OF CONTRACT. APPLICATION FOR EXEMPTION FROM THE COMPETITION AUTHORITY OF KENYA MAY BE ACCESSED FROM THE WEBSITE WWW.CAK.GO.KE.

4.12 A KENYAN TENDERER SHALL PROVIDE EVIDENCE OF HAVING FULFILLED HIS/HER TAX OBLIGATIONS BY PRODUCING A VALID TAX COMPLIANCE CLEARANCE CERTIFICATE OR TAX EXEMPTION CERTIFICATE ISSUED BY THE KENYA REVENUE AUTHORITY.

5. ELIGIBLE GOODS AND RELATED SERVICES

5.1 ALL THE GOODS AND RELATED SERVICES TO BE SUPPLIED UNDER THE CONTRACT MAY HAVE THEIR ORIGIN IN ANY ELIGIBLE COUNTRY.

5.2 FOR PURPOSES OF THIS ITT, THE TERM "GOODS" INCLUDES ANY GOODS THAT ARE THE SUBJECT OF THIS INVITATION TO TENDER, AND "RELATED SERVICES" INCLUDES SERVICES SUCH AS TRANSPORTATION, INSURANCE, COMMISSIONING AND TRAINING.

5.3 THE TERM "ORIGIN" MEANS THE COUNTRY WHERE THE GOODS HAVE BEEN MINED, GROWN, CULTIVATED, PRODUCED, MANUFACTURED OR PROCESSED; OR, THROUGH MANUFACTURE, PROCESSING, OR ASSEMBLY, ANOTHER COMMERCIALY RECOGNIZED ARTICLE RESULTS THAT DIFFERS SUBSTANTIALY IN ITS BASIC CHARACTERISTICS FROM ITS COMPONENTS.

5.4 ANY GOODS, WORKS AND PRODUCTION PROCESSES WITH CHARACTERISTIC THAT HAVE BEEN DECLARED BY THE RELEVANT NATIONAL ENVIRONMENTAL PROTECTION AGENCY OR BY OTHER COMPETENT AUTHORITY AS HARMFUL TO HUMAN BEINGS AND TO THE ENVIRONMENT SHALL NOT BE ELIGIBLE FOR PROCUREMENT.

B. CONTENTS OF TENDERING DOCUMENT

6. SECTIONS OF TENDERING DOCUMENT

6.1 THE TENDERING DOCUMENT CONSISTS OF PARTS 1, 2, AND 3, WHICH INCLUDES ALL THE SECTIONS INDICATED BELOW, AND SHOULD BE READ IN CONJUNCTION WITH ANY ADDENDA ISSUED IN ACCORDANCE WITH ITT 8

.PART 1 - TENDERING PROCEDURES

SECTION I - INSTRUCTIONS TO TENDERERS (ITT)

SECTION II - TENDERING DATA SHEET (TDS)

SECTION III - EVALUATION AND QUALIFICATION CRITERIA

SECTION IV - TENDERING FORMS

PART 2 - SUPPLY REQUIREMENTS

SECTION V - SCHEDULE OF REQUIREMENTS

PART 3 - CONTRACT

SECTION VI - GENERAL CONDITIONS OF CONTRACT

SECTION VII - SPECIAL CONDITIONS OF CONTRACT

SECTION VIII - CONTRACT FORMS

6.2 THE SPECIFIC PROCUREMENT NOTICE-INVITATION TO TENDER (ITT) NOTICE ISSUED BY THE PROCURING ENTITY IS NOT PART OF THIS TENDERING DOCUMENT.

6.3 UNLESS OBTAINED DIRECTLY FROM THE PROCURING ENTITY, THE PROCURING ENTITY IS NOT RESPONSIBLE FOR THE COMPLETENESS OF THE DOCUMENT, RESPONSES TO REQUESTS FOR CLARIFICATION, OR ADDENDA TO THE TENDERING DOCUMENT IN ACCORDANCE WITH ITT 11. IN CASE OF ANY CONTRADICTION, DOCUMENTS OBTAINED DIRECTLY FROM THE PROCURING ENTITY SHALL PREVAIL.

6.4 THE TENDERER IS EXPECTED TO EXAMINE ALL INSTRUCTIONS, FORMS, TERMS, AND SPECIFICATIONS IN THE TENDERING DOCUMENT AND TO FURNISH WITH ITS TENDER ALL INFORMATION OR DOCUMENTATION AS IS REQUIRED BY THE TENDERING DOCUMENT.

7. CLARIFICATION OF TENDERING DOCUMENT

7.1 A TENDERER REQUIRING ANY CLARIFICATION OF THE TENDER DOCUMENT SHALL CONTACT THE PROCURING ENTITY IN WRITING AT THE PROCURING ENTITY'S ADDRESS SPECIFIED IN THE **TDS**. THE PROCURING ENTITY WILL RESPOND IN WRITING TO ANY INVITATION TO CLARIFICATION, PROVIDED THAT SUCH REQUEST IS RECEIVED PRIOR TO THE DEADLINE FOR SUBMISSION OF TENDERS WITHIN A PERIOD SPECIFIED IN THE **TDS**. THE PROCURING ENTITY SHALL FORWARD COPIES OF ITS RESPONSE TO ALL TENDERERS WHO HAVE ACQUIRED THE TENDERING DOCUMENT IN ACCORDANCE WITH ITT6.3, INCLUDING A DESCRIPTION OF THE INQUIRY BUT WITHOUT IDENTIFYING ITS SOURCE. IF SO SPECIFIED IN THE TDS, THE PROCURING ENTITY SHALL ALSO PROMPTLY PUBLISH ITS RESPONSE AT THE WEB PAGE IDENTIFIED IN THE **TDS**. SHOULD THE CLARIFICATION RESULT IN CHANGES TO THE ESSENTIAL ELEMENTS OF THE TENDERING DOCUMENT, THE PROCURING ENTITY SHALL AMEND THE TENDERING DOCUMENT FOLLOWING THE PROCEDURE UNDER ITT 8 AND ITT 22.2

8. AMENDMENT OF TENDERING DOCUMENT

8.1 AT ANY TIME PRIOR TO THE DEADLINE FOR SUBMISSION OF TENDERS, THE PROCURING ENTITY MAY AMEND THE TENDERING DOCUMENT BY ISSUING ADDENDA.

8.2 ANY ADDENDUM ISSUED SHALL BE PART OF THE TENDERING DOCUMENT AND SHALL BE COMMUNICATED IN WRITING TO ALL WHO HAVE OBTAINED THE TENDERING DOCUMENT FROM THE PROCURING ENTITY IN ACCORDANCE WITH ITT 6.3. THE PROCURING ENTITY SHALL ALSO PROMPTLY PUBLISH THE ADDENDUM ON THE PROCURING ENTITY'S WEB PAGE IN ACCORDANCE WITH ITT 7.1.

8.3 TO GIVE PROSPECTIVE TENDERERS REASONABLE TIME IN WHICH TO TAKE AN ADDENDUM INTO ACCOUNT IN PREPARING THEIR TENDERS, THE PROCURING ENTITY MAY, AT ITS DISCRETION, EXTEND THE DEADLINE FOR THE SUBMISSION OF TENDERS, PURSUANT TO ITT 22.2.

C. PREPARATION OF TENDERS

9. COST OF TENDERING

9.1 THE TENDERER SHALL BEAR ALL COSTS ASSOCIATED WITH THE PREPARATION AND SUBMISSION OF ITS TENDER, AND THE PROCURING ENTITY SHALL NOT BE RESPONSIBLE OR LIABLE FOR THOSE COSTS, REGARDLESS OF THE CONDUCT OR OUTCOME OF THE TENDERING PROCESS.

10. LANGUAGE OF TENDER

10.1 THE TENDER, AS WELL AS ALL CORRESPONDENCE AND DOCUMENTS RELATING TO THE TENDER EXCHANGED BY THE TENDERER AND THE PROCURING ENTITY, SHALL BE WRITTEN IN THE ENGLISH LANGUAGE. SUPPORTING DOCUMENTS AND PRINTED LITERATURE THAT ARE PART OF THE TENDER MAY BE IN ANOTHER LANGUAGE PROVIDED THEY ARE ACCOMPANIED BY AN ACCURATE TRANSLATION OF THE RELEVANT PASSAGES INTO THE ENGLISH LANGUAGE, IN WHICH CASE, FOR PURPOSES OF INTERPRETATION OF THE TENDER, SUCH TRANSLATION SHALL GOVERN.

11. DOCUMENTS COMPRISING THE TENDER

11.1 THE TENDER SHALL COMPRISE THE FOLLOWING:

- A) FORM OF TENDER PREPARED IN ACCORDANCE WITH ITT 12;
- B) PRICE SCHEDULES: COMPLETED IN ACCORDANCE WITH ITT 12 AND ITT 14;
- C) TENDER SECURITY OR TENDER-SECURING DECLARATION, IN ACCORDANCE WITH ITT 19.1;
- D) ALTERNATIVE TENDER, IF PERMISSIBLE, IN ACCORDANCE WITH ITT 13;
- E) AUTHORIZATION: WRITTEN CONFIRMATION AUTHORIZING THE SIGNATORY OF THE TENDER TO COMMIT THE TENDERER, IN ACCORDANCE WITH ITT 20.3;
- G) TENDERER'S ELIGIBILITY: DOCUMENTARY EVIDENCE IN ACCORDANCE WITH ITT 17 ESTABLISHING THE TENDERER'S ELIGIBILITY TO TENDER;
- H) ELIGIBILITY OF GOODS AND RELATED SERVICES: DOCUMENTARY EVIDENCE IN ACCORDANCE WITH ITT 16, ESTABLISHING THE ELIGIBILITY OF THE GOODS AND RELATED SERVICES TO BE SUPPLIED BY THE TENDERER;
- I) CONFORMITY: DOCUMENTARY EVIDENCE IN ACCORDANCE WITH ITT 16, THAT THE GOODS AND RELATED SERVICES CONFORM TO THE TENDERING DOCUMENT; AND
- F) TENDERER'S QUALIFICATIONS: DOCUMENTARY EVIDENCE IN ACCORDANCE WITH ITT 17 ESTABLISHING THE TENDERER'S QUALIFICATIONS TO PERFORM THE CONTRACT IF ITS TENDER IS ACCEPTED;

NOTE: ADDITIONAL INFORMATION REQUIRED FOR VACCINES AS SPECIFIED IN THE **TDS**.

- J) ANY OTHER DOCUMENT REQUIRED IN THE **TDS**.

11.2 IN ADDITION TO THE REQUIREMENTS UNDER ITT 11.1, TENDERS SUBMITTED BY A JV SHALL INCLUDE A COPY OF THE JOINT VENTURE AGREEMENT ENTERED INTO BY ALL MEMBERS. ALTERNATIVELY, A FORM OF INTENT TO EXECUTE A JOINT VENTURE AGREEMENT IN THE EVENT OF A SUCCESSFUL TENDER SHALL BE SIGNED BY ALL MEMBERS AND SUBMITTED WITH THE TENDER, TOGETHER WITH A COPY OF THE PROPOSED AGREEMENT. THE TENDERER SHALL CHRONOLOGICALLY SERIALIZE PAGES OF ALL TENDER DOCUMENTS SUBMITTED.

11.3 THE TENDERER SHALL FURNISH IN THE FORM OF TENDER INFORMATION ON COMMISSIONS AND GRATUITIES, IF ANY, PAID OR TO BE PAID TO AGENTS OR ANY OTHER PARTY RELATING TO THIS TENDER.

12. FORM OF TENDER AND PRICE SCHEDULES

12.1 THE FORM OF TENDER AND PRICE SCHEDULES SHALL BE PREPARED USING THE RELEVANT FORMS FURNISHED IN SECTION IV, TENDERING FORMS. THE FORMS MUST BE COMPLETED WITHOUT ANY ALTERATIONS TO THE TEXT, AND NO SUBSTITUTES SHALL BE ACCEPTED EXCEPT AS PROVIDED UNDER ITT 20.3. ALL BLANK SPACES SHALL BE FILLED IN WITH THE INFORMATION REQUESTED.

13. ALTERNATIVE TENDERS

13.1 UNLESS OTHERWISE SPECIFIED IN THE **TDS**, ALTERNATIVE TENDERS SHALL NOT BE CONSIDERED.:

14. TENDER PRICES AND DISCOUNTS

14.1 THE PRICES AND DISCOUNTS QUOTED BY THE TENDERER IN THE FORM OF TENDER AND IN THE PRICE SCHEDULES SHALL CONFORM TO THE REQUIREMENTS SPECIFIED BELOW.

14.2 ALL LOTS (CONTRACTS) AND ITEMS MUST BE LISTED AND PRICED SEPARATELY IN THE PRICE SCHEDULES.

14.3 THE PRICE TO BE QUOTED IN THE FORM OF TENDER IN ACCORDANCE WITH ITT 11.1 SHALL BE THE TOTAL PRICE OF THE TENDER, INCLUDING ANY DISCOUNTS OFFERED.

14.4 THE TENDERER SHALL QUOTE ANY DISCOUNTS AND INDICATE THE METHODOLOGY FOR THEIR APPLICATION IN THE FORM OF TENDER, IN ACCORDANCE WITH ITT 14.1.

14.5 PRICES QUOTED BY THE TENDERER SHALL BE FIXED DURING THE TENDERER'S PERFORMANCE OF THE CONTRACT AND NOT SUBJECT TO VARIATION ON ANY ACCOUNT, UNLESS OTHERWISE SPECIFIED IN THE **TDS**. A TENDER SUBMITTED WITH AN ADJUSTABLE PRICE QUOTATION SHALL BE TREATED AS NON-RESPONSIVE AND SHALL BE REJECTED, PURSUANT TO ITT 29. HOWEVER, IF IN ACCORDANCE WITH THE TDS, PRICES QUOTED BY THE TENDERER SHALL BE SUBJECT TO ADJUSTMENT DURING THE PERFORMANCE OF THE CONTRACT, A TENDER SUBMITTED WITH A FIXED PRICE QUOTATION SHALL NOT BE REJECTED, BUT THE PRICE ADJUSTMENT SHALL BE TREATED AS ZERO.

[THE LOCAL CURRENCY PORTION OF THE CONTRACT PRICE SHALL BE ADJUSTED BY A FACTOR REFLECTING LOCAL INFLATION DURING THE PERIOD OF EXTENSION, AND THE FOREIGN CURRENCY PORTION OF THE CONTRACT PRICE SHALL BE ADJUSTED BY A FACTOR REFLECTING THE INTERNATIONAL INFLATION (IN THE COUNTRY OF THE FOREIGN CURRENCY) DURING THE PERIOD OF EXTENSION.]

14.6 IF SO SPECIFIED IN ITT 1.1, TENDERS ARE BEING INVITED FOR INDIVIDUAL LOTS (CONTRACTS) OR ANY COMBINATION OF LOTS (PACKAGES). UNLESS OTHERWISE SPECIFIED IN THE TDS, PRICES QUOTED SHALL CORRESPOND TO 100 % OF THE ITEMS SPECIFIED FOR EACH LOT AND TO 100% OF THE QUANTITIES SPECIFIED FOR EACH ITEM OF A LOT. TENDERERS WISHING TO OFFER DISCOUNTS FOR THE AWARD OF MORE THAN ONE CONTRACT SHALL SPECIFY IN THEIR TENDER THE PRICE REDUCTIONS APPLICABLE TO EACH PACKAGE, OR ALTERNATIVELY, TO INDIVIDUAL CONTRACTS WITHIN THE PACKAGE. DISCOUNTS SHALL BE SUBMITTED IN ACCORDANCE WITH ITT 14.4 PROVIDED THE TENDERS FOR ALL LOTS (CONTRACTS) ARE OPENED AT THE SAME TIME.

14.7 THE TERMS EXW, CIP, AND OTHER SIMILAR TERMS SHALL BE GOVERNED BY THE RULES PRESCRIBED IN THE CURRENT EDITION OF INCOTERMS, PUBLISHED BY THE INTERNATIONAL CHAMBER OF COMMERCE, AS SPECIFIED IN THE **TDS**.

14.8 PRICES SHALL BE QUOTED AS SPECIFIED IN EACH PRICE SCHEDULE INCLUDED IN SECTION IV, TENDERING FORMS. THE DIS- AGGREGATION OF PRICE COMPONENTS IS REQUIRED SOLELY FOR THE PURPOSE OF FACILITATING THE COMPARISON OF TENDERS BY THE PROCURING ENTITY. THIS SHALL NOT IN ANY WAY LIMIT THE PROCURING ENTITY'S RIGHT TO CONTRACT ON ANY OF THE TERMS OFFERED. IN QUOTING PRICES, THE TENDERER SHALL BE FREE TO USE TRANSPORTATION THROUGH CARRIERS REGISTERED IN ANY ELIGIBLE COUNTRY, IN ACCORDANCE WITH SECTION V, ELIGIBLE COUNTRIES. SIMILARLY, THE TENDERER MAY OBTAIN INSURANCE SERVICES FROM ANY ELIGIBLE COUNTRY IN ACCORDANCE WITH SECTION V, ELIGIBLE COUNTRIES. PRICES SHALL BE ENTERED IN THE FOLLOWING MANNER:

A) FOR GOODS MANUFACTURED IN KENYA:

- I) THE PRICE OF THE GOODS QUOTED EXW (EX-WORKS, EX-FACTORY, EX WAREHOUSE, EX SHOWROOM, OR OFF-THE- SHELF, AS APPLICABLE), INCLUDING ALL CUSTOMS DUTIES AND SALES AND OTHER TAXES ALREADY PAID OR PAYABLE ON THE COMPONENTS AND RAW MATERIAL USED IN THE MANUFACTURE OR ASSEMBLY OF THE GOODS;
- II) ANY KENYA SALES TAX AND OTHER TAXES WHICH WILL BE PAYABLE ON THE GOODS IF THE CONTRACT IS AWARDED TO THE TENDERER; AND

14.8(A)(III) THE PRICE FOR INLAND TRANSPORTATION, INSURANCE, AND OTHER LOCAL SERVICES REQUIRED TO CONVEY THE GOODS TO THEIR FINAL DESTINATION (PROJECT SITE) SPECIFIED IN THE **TDS**;

14.8(B) FOR GOODS MANUFACTURED OUTSIDE KENYA, TO BE IMPORTED:

I) THE PRICE OF THE GOODS, QUOTED CIP NAMED PLACE OF DESTINATION, IN KENYA, AS SPECIFIED IN THE **TDS**; AND

14.8(B)(II) THE PRICE FOR INLAND TRANSPORTATION, INSURANCE, LOCAL TAXES PAYABLE ON THE GOODS AND OTHER LOCAL SERVICES REQUIRED TO CONVEY THE GOODS FROM THE NAMED PLACE OF DESTINATION TO THEIR FINAL DESTINATION (PROJECT SITE) SPECIFIED IN THE **TDS**;

14.8(C) FOR GOODS MANUFACTURED OUTSIDE KENYA, ALREADY IMPORTED:

I) THE PRICE OF THE GOODS, INCLUDING THE ORIGINAL IMPORT VALUE OF THE GOODS; PLUS, ANY MARK-UP (OR REBATE); PLUS, ANY OTHER RELATED LOCAL COST, AND CUSTOM DUTIES AND OTHER IMPORT TAXES ALREADY PAID OR TO BE PAID ON THE GOODS ALREADY IMPORTED;

II) THE CUSTOM DUTIES AND OTHER IMPORT TAXES ALREADY PAID (NEED TO BE SUPPORTED WITH DOCUMENTARY EVIDENCE) OR TO BE PAID ON THE GOODS ALREADY IMPORTED;

III) THE PRICE OF THE GOODS, OBTAINED AS THE DIFFERENCE BETWEEN (I) AND (II) ABOVE;

IV) ANY KENYA SALES AND OTHER TAXES WHICH WILL BE PAYABLE ON THE GOODS IF THE CONTRACT IS AWARDED TO THE TENDERER; AND

14.8(C)(V) THE PRICE FOR INLAND TRANSPORTATION, INSURANCE, AND OTHER LOCAL SERVICES REQUIRED TO CONVEY THE GOODS FROM THE NAMED PLACE OF DESTINATION TO THEIR FINAL DESTINATION (PROJECT SITE) SPECIFIED IN THE **TDS**.

D) FOR RELATED SERVICES, OTHER THAN INLAND TRANSPORTATION AND OTHER SERVICES REQUIRED TO CONVEY THE GOODS TO THEIR FINAL DESTINATION, WHENEVER SUCH RELATED SERVICES ARE SPECIFIED IN THE SCHEDULE OF REQUIREMENTS:

I) THE PRICE OF EACH ITEM COMPRISING THE RELATED SERVICES (INCLUSIVE OF ANY APPLICABLE TAXES).

II) THE TENDER PRICE SHALL BE INCLUSIVE OF A CAPACITY BUILDING LEVY OF ZERO POINT ZERO THREE PERCENTUM (0.03%) OF THE TENDER SUM EXCLUSIVE OF ALL APPLICABLE TAXES.

15. CURRENCIES OF TENDER AND PAYMENT

15.1 THE CURRENCY(IES) OF THE TENDER AND THE CURRENCY(IES) OF PAYMENTS SHALL BE THE SAME. THE TENDERER SHALL QUOTE IN THE CURRENCY OF KENYA THE PORTION OF THE TENDER PRICE THAT CORRESPONDS TO EXPENDITURES INCURRED IN KENYA SHILLINGS, UNLESS OTHERWISE SPECIFIED IN THE **TDS**.

15.2 THE TENDERER MAY EXPRESS THE TENDER PRICE IN ANY CURRENCY. IF THE TENDERER WISHES TO BE PAID IN A COMBINATION OF AMOUNTS IN DIFFERENT CURRENCIES; IT MAY QUOTE ITS PRICE ACCORDINGLY BUT SHALL USE NO MORE THAN TWO FOREIGN CURRENCIES IN ADDITION TO THE CURRENCY OF KENYA.

15.3 THE RATES OF EXCHANGE TO BE USED BY THE TENDERER SHALL BE BASED ON THE EXCHANGE RATE PROVIDED BY THE CENTRAL BANK OF KENYA ON THE DATE 30 DAYS PRIOR TO THE ACTUAL DATE OF TENDER OPENING. SUCH EXCHANGE RATE SHALL APPLY FOR ALL FOREIGN PAYMENTS UNDER THE FOREIGN PAYMENTS UNDER THE CONTRACT.

16. DOCUMENTS ESTABLISHING THE ELIGIBILITY AND CONFORMITY OF THE GOODS AND RELATED SERVICES

16.1 TO ESTABLISH THE ELIGIBILITY OF THE GOODS AND RELATED SERVICES IN ACCORDANCE WITH ITT 5, TENDERERS SHALL COMPLETE THE COUNTRY-OF-ORIGIN DECLARATIONS IN THE PRICE SCHEDULE FORMS, INCLUDED IN SECTION IV, TENDERING FORMS.

16.2 TO ESTABLISH THE CONFORMITY OF THE HEALTH SECTOR GOODS AND RELATED SERVICES TO THE TENDERING DOCUMENT, THE TENDERER SHALL FURNISH AS PART OF ITS TENDER THE DOCUMENTARY EVIDENCE THAT THE GOODS CONFORM TO THE TECHNICAL SPECIFICATIONS AND STANDARDS SPECIFIED IN SECTION VII, SCHEDULE OF REQUIREMENTS.

16.3 THE DOCUMENTARY EVIDENCE MAY BE IN THE FORM OF LITERATURE, DRAWINGS OR DATA, AND SHALL CONSIST OF:

A) AN ITEM-BY-ITEM COMMENTARY ON THE PROVISIONS OF SECTION VII, SCHEDULE OF REQUIREMENTS DEMONSTRATING SUBSTANTIAL RESPONSIVENESS OF THE GOODS AND SERVICES TO THE SPECIFICATIONS, OR A STATEMENT OF DEVIATIONS AND EXCEPTIONS TO THE PROVISIONS OF THE SPECIFICATIONS; AND

B) ANY OTHER PROCUREMENT-SPECIFIC DOCUMENTATION REQUIREMENT AS STATED IN THE **TDS**.

UNLESS THE TDS STIPULATES OTHERWISE, THE GOODS TO BE SUPPLIED UNDER THE CONTRACT SHALL BE REGISTERED WITH THE RELEVANT AUTHORITY IN KENYA. A TENDERER WHO HAS ALREADY REGISTERED ITS GOODS BY THE TIME OF TENDERING SHOULD SUBMIT A COPY OF THE REGISTRATION CERTIFICATE WITH ITS TENDER. OTHERWISE, THE SUCCESSFUL TENDERER, BY THE TIME OF CONTRACT SIGNING, SHALL SUBMIT TO THE PROCURING ENTITY EITHER:

- I) A COPY OF THE REGISTRATION CERTIFICATE OF THE GOODS FOR USE IN KENYA; OR
- II) IF SUCH REGISTRATION CERTIFICATE HAS NOT YET BEEN OBTAINED, EVIDENCE ESTABLISHING TO THE PROCURING ENTITY'S SATISFACTION THAT THE TENDERER HAS COMPLIED WITH ALL THE DOCUMENTARY REQUIREMENTS FOR REGISTRATION AS **SPECIFIED IN THE TDS**.

16.4 THE PROCURING ENTITY SHALL ALWAYS COOPERATE WITH THE SUCCESSFUL TENDERER TO FACILITATE THE REGISTRATION PROCESS WITHIN KENYA. THE AGENCY AND CONTACT PERSON TO PROVIDE ADDITIONAL INFORMATION ABOUT REGISTRATION ARE IDENTIFIED IN THE **TDS**.

16.5 IF THE GOODS OF THE SUCCESSFUL TENDERER HAVE NOT BEEN REGISTERED IN KENYA AT THE TIME OF CONTRACT SIGNING, THEN THE CONTRACT SHALL BECOME EFFECTIVE UPON SUCH DATE AS THE CERTIFICATE OF REGISTRATION IS OBTAINED.

16.6 STANDARDS FOR WORKMANSHIP, PROCESS, MATERIAL, AND EQUIPMENT, AS WELL AS REFERENCES TO BRAND NAMES OR CATALOGUE NUMBERS SPECIFIED BY THE PROCURING ENTITY IN THE SCHEDULE OF REQUIREMENTS, ARE INTENDED TO BE DESCRIPTIVE ONLY AND NOT RESTRICTIVE. THE TENDERER MAY OFFER OTHER STANDARDS OF QUALITY, BRAND NAMES, AND /OR CATALOGUE NUMBERS, PROVIDED THAT IT DEMONSTRATES, TO THE PROCURING ENTITY'S SATISFACTION, THAT THE SUBSTITUTIONS ENSURE SUBSTANTIAL EQUIVALENCE OR ARE SUPERIOR TO THOSE SPECIFIED IN THE SECTION VII, SCHEDULE OF REQUIREMENTS.

17. DOCUMENTS ESTABLISHING THE ELIGIBILITY AND QUALIFICATIONS OF THE TENDERER

17.1 TO ESTABLISH TENDERER'S ELIGIBILITY IN ACCORDANCE WITH ITT 4, TENDERERS SHALL COMPLETE THE FORM OF TENDER, INCLUDED IN SECTION IV, TENDERING FORMS.

17.2 THE DOCUMENTARY EVIDENCE OF THE TENDERER'S QUALIFICATIONS TO PERFORM THE CONTRACT IF ITS TENDER IS ACCEPTED SHALL ESTABLISH TO THE PROCURING ENTITY'S SATISFACTION:

- A) THAT A TENDERER THAT DOES NOT MANUFACTURE OR PRODUCE THE HEALTH SECTOR GOODS IT OFFERS TO SUPPLY SHALL SUBMIT THE MANUFACTURER'S AUTHORIZATION USING THE FORM INCLUDED IN SECTION IV, TENDERING FORMS TO DEMONSTRATE THAT IT HAS BEEN DULY AUTHORIZED BY THE MANUFACTURER OR PRODUCER OF THE GOODS TO SUPPLY THESE GOODS IN KENYA;
- B) THAT IN CASE OF A TENDERER NOT DOING BUSINESS WITHIN KENYA (OR FOR OTHER REASONS WILL NOT ITSELF CARRY OUT SERVICE OBLIGATIONS), THE TENDERER IS OR WILL BE (IF AWARDED THE CONTRACT) REPRESENTED BY A LOCAL SERVICE PROVIDER IN KENYA EQUIPPED AND ABLE TO CARRY OUT THE TENDERER'S WARRANTY OBLIGATIONS PRESCRIBED IN THE CONDITIONS OF CONTRACT AND/OR TECHNICAL SPECIFICATIONS; AND
- C) THAT THE TENDERER MEETS EACH OF THE QUALIFICATION CRITERION SPECIFIED IN SECTION III, EVALUATION AND QUALIFICATION CRITERIA (SEE ADDITIONAL ITT FOR PHARMACEUTICALS AND VACCINES).

17.3 TENDERERS SHALL BE ASKED TO PROVIDE, AS PART OF THE DATA FOR QUALIFICATION, SUCH INFORMATION, INCLUDING DETAILS OF OWNERSHIP, AS SHALL BE REQUIRED TO DETERMINE WHETHER, ACCORDING TO THE CLASSIFICATION ESTABLISHED BY THE PROCURING ENTITY A SUPPLIER OR GROUP OF SUPPLIERS' QUALIFIES FOR A MARGIN OF PREFERENCE. FURTHER THE INFORMATION WILL ENABLE THE PROCURING ENTITY IDENTIFY ANY ACTUAL OR POTENTIAL CONFLICT OF INTEREST IN RELATION TO THE PROCUREMENT AND/OR CONTRACT MANAGEMENT PROCESSES, OR A POSSIBILITY OF COLLUSION BETWEEN TENDERERS, AND THEREBY HELP TO PREVENT ANY CORRUPT INFLUENCE IN RELATION TO THE PROCUREMENT PROCESS OR CONTRACT MANAGEMENT.

17.4 THE PURPOSE OF THE INFORMATION DESCRIBED IN ITT 17.2 ABOVE OVERRIDES ANY CLAIMS OF CONFIDENTIALITY WHICH A TENDERER MAY HAVE. THERE CAN BE NO CIRCUMSTANCES IN WHICH IT WOULD BE JUSTIFIED FOR A TENDERER TO KEEP INFORMATION RELATING TO ITS OWNERSHIP AND CONTROL CONFIDENTIAL WHERE IT IS TENDERING TO UNDERTAKE PUBLIC SECTOR WORK AND RECEIVE PUBLIC SECTOR FUNDS. THUS, CONFIDENTIALITY WILL NOT BE ACCEPTED BY THE PROCURING ENTITY AS A JUSTIFICATION FOR A TENDERER'S FAILURE TO DISCLOSE, OR FAILURE TO PROVIDE REQUIRED INFORMATION ON ITS OWNERSHIP AND CONTROL.

17.5 THE TENDERER SHALL PROVIDE FURTHER DOCUMENTARY PROOF, INFORMATION OR AUTHORIZATIONS THAT THE PROCURING ENTITY MAY REQUEST IN RELATION TO OWNERSHIP AND CONTROL WHICH INFORMATION ON ANY CHANGES TO THE INFORMATION WHICH WAS PROVIDED BY THE TENDERER UNDER ITT17.3.THE OBLIGATIONS TO REQUIRE THIS INFORMATION SHALL CONTINUE FOR THE DURATION OF THE PROCUREMENT PROCESS AND CONTRACT PERFORMANCE AND AFTER COMPLETION OF THE CONTRACT, IF ANY CHANGE TO THE INFORMATION PREVIOUSLY PROVIDED MAY REVEAL A CONFLICT OF INTEREST IN RELATION TO THE AWARD OR MANAGEMENT OF THE CONTRACT.

17.6 ALL INFORMATION PROVIDED BY THE TENDERER PURSUANT TO THESE REQUIREMENTS MUST BE COMPLETE, CURRENT AND ACCURATE AS AT THE DATE OF PROVISION TO THE PROCURING ENTITY. IN SUBMITTING THE INFORMATION REQUIRED PURSUANT TO THESE REQUIREMENTS, THE TENDERER SHALL WARRANT THAT THE INFORMATION SUBMITTED IS COMPLETE, CURRENT AND ACCURATE AS AT THE DATE OF SUBMISSION TO THE PROCURING ENTITY.

17.7 IF A TENDERER FAILS TO SUBMIT THE INFORMATION REQUIRED BY THESE REQUIREMENTS, ITS TENDERER WILL BE REJECTED. SIMILARLY, IF THE PROCURING ENTITY IS UNABLE, AFTER TAKING REASONABLE STEPS, TO VERIFY TO A REASONABLE DEGREE THE INFORMATION SUBMITTED BY A TENDERER PURSUANT TO THESE REQUIREMENTS, THEN THE TENDER WILL BE REJECTED.

17.8 IF INFORMATION SUBMITTED BY A TENDERER PURSUANT TO THESE REQUIREMENTS, OR OBTAINED BY THE PROCURING ENTITY (WHETHER THROUGH ITS OWN ENQUIRIES, THROUGH NOTIFICATION BY THE PUBLIC OR OTHERWISE), SHOWS ANY CONFLICT OF INTEREST WHICH COULD MATERIALLY AND IMPROPERLY BENEFIT THE TENDERER IN RELATION TO THE PROCUREMENT OR CONTRACT MANAGEMENT PROCESS, THEN:

- I) IF THE PROCUREMENT PROCESS IS STILL ONGOING, THE TENDERER WILL BE DISQUALIFIED FROM THE PROCUREMENT PROCESS,
- II) IF THE CONTRACT HAS BEEN AWARDED TO THAT TENDERER, THE CONTRACT AWARD WILL BE SET ASIDE,
- III) THE TENDERER WILL BE REFERRED TO THE RELEVANT LAW ENFORCEMENT AUTHORITIES FOR INVESTIGATION OF WHETHER THE TENDERER OR ANY OTHER PERSONS HAVE COMMITTED ANY CRIMINAL OFFENCE.

17.9 IF A TENDERER SUBMITS INFORMATION PURSUANT TO THESE REQUIREMENTS THAT IS IN COMPLETE, IN ACCURATE OR OUT-OF-DATE, OR ATTEMPTS TO OBSTRUCT THE VERIFICATION PROCESS, THEN THE CONSEQUENCES ITT 17.7 WILL ENSUE UNLESS THE TENDERER CAN SHOW TO THE REASONABLE SATISFACTION OF THE PROCURING ENTITY THAT ANY SUCH ACT WAS NOT MATERIAL, OR WAS DUE TO GENUINE ERROR WHICH WAS NOT ATTRIBUTABLE TO THE INTENTIONAL ACT, NEGLIGENCE OR RECKLESSNESS OF THE TENDERER.

18. PERIOD OF VALIDITY OF TENDERS

18.1 TENDERS SHALL REMAIN VALID FOR THE TENDER VALIDITY PERIOD SPECIFIED IN THE **TDS**. THE TENDER VALIDITY PERIOD STARTS FROM THE DATE FIXED FOR THE TENDER SUBMISSION DEADLINE (AS PRESCRIBED BY THE PROCURING ENTITY IN ACCORDANCE WITH ITT 22.1). A TENDER VALID FOR A SHORTER PERIOD SHALL BE REJECTED BY THE PROCURING ENTITY AS NON-RESPONSIVE.

18.2 IN EXCEPTIONAL CIRCUMSTANCES, PRIOR TO THE EXPIRATION OF THE TENDER VALIDITY PERIOD, THE PROCURING ENTITY MAY REQUEST TENDERERS TO EXTEND THE PERIOD OF VALIDITY OF THEIR TENDERS. THE REQUEST AND THE RESPONSES SHALL BE MADE IN WRITING. IF A TENDER SECURITY IS REQUESTED IN ACCORDANCE WITH ITT 19, IT SHALL ALSO BE EXTENDED FOR A CORRESPONDING PERIOD. A TENDERER MAY REFUSE THE REQUEST WITHOUT FORFEITING ITS TENDER SECURITY. A TENDERER GRANTING THE REQUEST SHALL NOT BE REQUIRED OR PERMITTED TO MODIFY ITS TENDER.

19. TENDER SECURITY

19.1 THE TENDERER SHALL FURNISH AS PART OF ITS TENDER, EITHER A TENDER-SECURING DECLARATION OR A TENDER SECURITY, AS SPECIFIED IN THE **TDS**, IN ORIGINAL FORM (PHYSICAL OR ELECTRONIC) AND, IN THE CASE OF A TENDER SECURITY, IN THE AMOUNT AND CURRENCY SPECIFIED IN THE **TDS**.

19.2 A TENDER-SECURING DECLARATION SHALL USE THE FORM INCLUDED IN SECTION IV, TENDERING FORMS. IF A TENDER IS SPECIFIED PURSUANT TO ITT 19.1, THE TENDER SECURITY SHALL BE A:

- I) CASH;
- II) A BANK GUARANTEE;
- III) A GUARANTEE BY AN INSURANCE COMPANY REGISTERED AND LICENSED BY THE INSURANCE REGULATORY AUTHORITY LISTED BY THE AUTHORITY; OR
- IV) A GUARANTEE ISSUED BY A FINANCIAL INSTITUTION APPROVED AND LICENSED BY THE CENTRAL BANK OF KENYA.
- V) ANY OTHER FORM SPECIFIED IN THE **TDS**.

19.3 IF A TENDER SECURITY IS SPECIFIED PURSUANT TO ITT 19.1, ANY TENDER NOT ACCOMPANIED BY A SUBSTANTIALLY RESPONSIVE TENDER SECURITY SHALL BE REJECTED BY THE PROCURING ENTITY AS NON-RESPONSIVE.

19.4 IF A TENDER SECURITY IS SPECIFIED PURSUANT TO ITT 19.1, THE TENDER SECURITY OF UNSUCCESSFUL TENDERERS SHALL BE RETURNED AS PROMPTLY AS POSSIBLE UPON THE SUCCESSFUL TENDERER'S SIGNING THE CONTRACT AND FURNISHING THE PERFORMANCE SECURITY PURSUANT TO ITT 46. THE PROCURING ENTITY SHALL ALSO PROMPTLY RETURN THE TENDER SECURITY TO THE TENDERERS WHERE THE PROCUREMENT PROCEEDINGS ARE TERMINATED, ALL TENDERS WERE DETERMINED NON-RESPONSIVE OR ABIDER DECLINES TO EXTEND TENDER VALIDITY PERIOD.

19.5 THE TENDER SECURITY OF THE SUCCESSFUL TENDERER SHALL BE RETURNED AS PROMPTLY AS POSSIBLE ONCE THE SUCCESSFUL TENDERER HAS SIGNED THE CONTRACT AND FURNISHED THE REQUIRED PERFORMANCE SECURITY.

19.6 THE TENDER SECURITY MAY BE FORFEITED, OR THE TENDER-SECURING DECLARATION EXECUTED:

- A) IF A TENDERER WITHDRAWS ITS TENDER DURING THE PERIOD OF TENDER VALIDITY SPECIFIED BY THE TENDERER ON THE FORM OF TENDER, OR ANY EXTENSION THERETO PROVIDED BY THE TENDERER; OR
- B) IF THE SUCCESSFUL TENDERER FAILS TO:
 - I) SIGN THE CONTRACT IN ACCORDANCE WITH ITT 45 ; OR
 - II) FURNISH A PERFORMANCE SECURITY IN ACCORDANCE WITH ITT 46.

WHERE TENDER SECURING DECLARATION IS EXECUTED, THE PROCURING ENTITY MAY DECLARE THE TENDERER INELIGIBLE TO BE AWARDED A CONTRACT BY THE PROCURING ENTITY FOR A PERIOD OF NOT EXCEEDING SIX (6) MONTHS AND REPORT THE MATTER TO THE AUTHORITY WITHIN 14 DAYS OF THE SUSPENSION.

19.7 THE TENDER SECURITY OR TENDER- SECURING DECLARATION OF A JV MUST BE IN THE NAME OF THE JV THAT SUBMITS THE TENDER. IF THE JV HAS NOT BEEN LEGALLY CONSTITUTED INTO A LEGALLY ENFORCEABLE JV AT THE TIME OF TENDERING, THE TENDER SECURITY OR TENDER-SECURING DECLARATION SHALL BE IN THE NAMES OF ALL FUTURE MEMBERS AS NAMED IN THE FORM OF INTENT REFERRED TO IN ITT 4.1 AND ITT 11.2.



20. FORMAT AND SIGNING OF TENDER

20.1 THE TENDERER SHALL PREPARE ONE ORIGINAL OF THE DOCUMENTS COMPRISING THE TENDER AS DESCRIBED IN ITT 11 AND CLEARLY MARK IT "ORIGINAL." ALTERNATIVE TENDERS, IF PERMITTED IN ACCORDANCE WITH ITT 13, SHALL BE CLEARLY MARKED "ALTERNATIVE" IN ADDITION, THE TENDERER SHALL SUBMIT COPIES OF THE TENDER, IN THE NUMBER SPECIFIED IN THE **TDS** AND CLEARLY MARK THEM "COPY." IN THE EVENT OF ANY DISCREPANCY BETWEEN THE ORIGINAL AND THE COPIES, THE ORIGINAL SHALL PREVAIL.

SUBMISSION OF COPIES OF THE TENDER SHALL NOT APPLY FOR ELECTRONIC PROCUREMENT SYSTEM

20.2 TENDERERS SHALL MARK AS "CONFIDENTIAL" INFORMATION IN THEIR TENDERS WHICH IS CONFIDENTIAL TO THEIR BUSINESS. THIS MAY INCLUDE PROPRIETARY INFORMATION, TRADE SECRETS OR COMMERCIAL OR FINANCIALLY SENSITIVE INFORMATION

20.3 THE ORIGINAL AND ALL COPIES OF THE TENDER SHALL BE TYPED OR WRITTEN IN INDELIBLE INK AND SHALL BE SIGNED BY A PERSON DULY AUTHORIZED TO SIGN ON BEHALF OF THE TENDERER. THIS AUTHORIZATION SHALL CONSIST OF A WRITTEN CONFIRMATION AS SPECIFIED IN THE **TDS** AND SHALL BE ATTACHED TO THE TENDER. THE NAME AND POSITION HELD BY EACH PERSON SIGNING THE AUTHORIZATION MUST BE TYPED OR PRINTED BELOW THE SIGNATURE. ALL PAGES OF THE TENDER WHERE ENTRIES OR AMENDMENTS HAVE BEEN MADE SHALL BE SIGNED OR INITIALED BY THE PERSON SIGNING THE TENDER.

20.4 IN CASE THE TENDERER IS A JV, THE TENDER SHALL BE SIGNED BY AN AUTHORIZED REPRESENTATIVE OF THE JV ON BEHALF OF THE JV, AND SO AS TO BE LEGALLY BINDING ON ALL THE MEMBERS AS EVIDENCED BY A POWER OF ATTORNEY SIGNED BY THEIR LEGALLY AUTHORIZED REPRESENTATIVES.

20.5 ANY INTER-LINEATION, ERASURES, OR OVERWRITING SHALL BE VALID ONLY IF THEY ARE SIGNED OR INITIALED BY THE PERSON SIGNING THE TENDER.

D. SUBMISSION AND OPENING OF TENDERS

21. SEALING AND MARKING OF TENDERS

21.1 THE TENDERER SHALL DELIVER THE TENDER IN A SINGLE, SEALED ENVELOPE (ONE-ENVELOPE TENDERING PROCESS). WITHIN THE SINGLE ENVELOPE THE TENDERER SHALL PLACE THE FOLLOWING SEPARATE, SEALED ENVELOPES:

- A) IN AN ENVELOPE MARKED "ORIGINAL", ALL DOCUMENTS COMPRISING THE TENDER, AS DESCRIBED IN ITT 11; AND
- B) IN AN ENVELOPE MARKED "COPIES", ALL REQUIRED COPIES OF THE TENDER; AND
- C) IF ALTERNATIVE TENDERS ARE PERMITTED IN ACCORDANCE WITH ITT 13, AND IF RELEVANT:
 - I) IN AN ENVELOPE MARKED "ORIGINAL-ALTERNATIVE", THE ALTERNATIVE TENDER; AND
 - II) IN THE ENVELOPE MARKED "COPIES-ALTERNATIVE TENDER" ALL REQUIRED COPIES OF THE ALTERNATIVE TENDER.

21.2 THE OUTER ENVELOPES, SHALL:

- A) BE ADDRESSED TO THE PROCURING ENTITY IN ACCORDANCE WITH ITT 21.1;
 - B) BEAR THE SPECIFIC IDENTIFICATION OF THIS TENDERING PROCESS INDICATED IN ITT 1.1; AND
 - C) BEAR A WARNING NOT TO OPEN BEFORE THE TIME AND DATE FOR TENDER OPENING.
- THE INNER ENVELOPE SHALL BEAR THE NAME AND ADDRESS (INCLUDE EMAIL AND TELEPHONE NUMBER) OF THE TENDERER AND ALL THE INFORMATION ABOVE ITT 21.2 (A) TO (C).

21.3 IF ALL ENVELOPES ARE NOT SEALED AND MARKED AS REQUIRED, THE PROCURING ENTITY WILL ASSUME NO RESPONSIBILITY FOR THE MISPLACEMENT OR PREMATURE OPENING OF THE TENDER. TENDERS THAT ARE MISPLACED OR OPENED PREMATURELY WILL NOT BE ACCEPTED.

21.4 THE PROVISIONS OF CLAUSE 21 SHALL NOT APPLY TO TENDERS SUBMITTED ELECTRONICALLY.

22. DEADLINE FOR SUBMISSION OF TENDERS

22.1 TENDERS MUST BE RECEIVED BY THE PROCURING ENTITY AT THE ADDRESS AND NO LATER THAN THE DATE AND TIME SPECIFIED IN THE **TDS**. WHEN SO SPECIFIED IN THE TDS, TENDERERS SHALL HAVE THE OPTION OF SUBMITTING THEIR TENDERS ELECTRONICALLY. TENDERERS SUBMITTING TENDERS ELECTRONICALLY SHALL FOLLOW THE ELECTRONIC TENDER SUBMISSION PROCEDURES SPECIFIED IN THE **TDS**.

22.2 THE PROCURING ENTITY MAY, AT ITS DISCRETION, EXTEND THE DEADLINE FOR THE SUBMISSION OF TENDERS BY AMENDING THE TENDERING DOCUMENT IN ACCORDANCE WITH ITT 8, IN WHICH CASE ALL RIGHTS AND OBLIGATIONS OF THE PROCURING ENTITY AND TENDERERS PREVIOUSLY SUBJECT TO THE DEADLINE SHALL THEREAFTER BE SUBJECT TO THE DEADLINE AS EXTENDED.

23. LATE TENDERS

23.1 THE PROCURING ENTITY SHALL NOT CONSIDER ANY TENDER THAT ARRIVES AFTER THE DEADLINE FOR SUBMISSION OF TENDERS, IN ACCORDANCE WITH ITT 22. ANY TENDER RECEIVED BY THE PROCURING ENTITY AFTER THE DEADLINE FOR SUBMISSION OF TENDERS SHALL BE DECLARED LATE, REJECTED, AND RETURNED UNOPENED TO THE TENDERER.

24. WITHDRAWAL, SUBSTITUTION, AND MODIFICATION OF TENDERS

24.1 A TENDERER MAY WITHDRAW, SUBSTITUTE, OR MODIFY ITS TENDER AFTER IT HAS BEEN SUBMITTED BY SENDING A WRITTEN NOTICE, DULY SIGNED BY AN AUTHORIZED REPRESENTATIVE, AND SHALL INCLUDE A COPY OF THE AUTHORIZATION (THE POWER OF ATTORNEY) IN ACCORDANCE WITH ITT 20.3, (EXCEPT THAT WITHDRAWAL NOTICES DO NOT REQUIRE COPIES). THE CORRESPONDING SUBSTITUTION OR MODIFICATION OF THE TENDER MUST ACCOMPANY THE RESPECTIVE WRITTEN NOTICE. ALL NOTICES MUST BE:

- A) PREPARED AND SUBMITTED IN ACCORDANCE WITH ITT 20 AND 21 (EXCEPT THAT WITHDRAWAL NOTICES DO NOT REQUIRE COPIES), AND IN ADDITION, THE RESPECTIVE ENVELOPES SHALL BE CLEARLY MARKED "WITHDRAWAL," "SUBSTITUTION," OR "MODIFICATION;" AND
- B) RECEIVED BY THE PROCURING ENTITY PRIOR TO THE DEADLINE PRESCRIBED FOR SUBMISSION OF TENDERS, IN ACCORDANCE WITH ITT 22.1.

24.2 TENDERS REQUESTED TO BE WITHDRAWN IN ACCORDANCE WITH ITT 24. 1 SHALL BE RETURNED UNOPENED TO THE TENDERERS.

24.3 NO TENDER MAY BE WITHDRAWN, SUBSTITUTED, OR MODIFIED IN THE INTERVAL BETWEEN THE DEADLINE FOR SUBMISSION OF TENDERS AND THE EXPIRATION OF THE PERIOD OF TENDER VALIDITY SPECIFIED BY THE TENDERER ON THE FORM OF TENDER OR ANY EXTENSION THEREOF.

24.4 TENDERERS SHALL BE ALLOWED TO SUBMIT MODIFICATIONS TO BIDS OR PROPOSALS OR WITHDRAW PREVIOUSLY SUBMITTED BIDS OR PROPOSALS ELECTRONICALLY UP TO, BUT NOT AFTER, THE BID SUBMISSION DEADLINE.

25. TENDER OPENING

25.1 EXCEPT AS IN THE CASES SPECIFIED IN ITT 23 AND ITT 24.2, THE PROCURING ENTITY SHALL PUBLICLY OPEN AND READ OUT IN ACCORDANCE WITH THIS ITT ALL TENDERS RECEIVED BY THE DEADLINE AT THE DATE, TIME AND PLACE SPECIFIED IN THE TDS IN THE PRESENCE OF TENDERERS' DESIGNATED REPRESENTATIVES AND ANYONE WHO CHOOSE TO ATTEND. ALL TENDERERS, OR THEIR REPRESENTATIVES AND ANY INTERESTED PARTY MAY ATTEND A PUBLIC OPENING. ANY SPECIFIC ELECTRONIC TENDER OPENING PROCEDURES REQUIRED IF ELECTRONIC TENDERING IS PERMITTED IN ACCORDANCE WITH ITT 22. 1, SHALL BE AS SPECIFIED IN THE **TDS**.

25.2 FIRST, ENVELOPES MARKED "WITHDRAWAL" SHALL BE OPENED AND READ OUT AND THE ENVELOPE WITH THE CORRESPONDING TENDER SHALL NOT BE OPENED BUT RETURNED TO THE TENDERER. IF THE WITHDRAWAL ENVELOPE DOES NOT CONTAIN A COPY OF THE "POWER OF ATTORNEY" CONFIRMING THE SIGNATURE AS A PERSON DULY AUTHORIZED TO SIGN ON BEHALF OF THE TENDERER, THE CORRESPONDING TENDER WILL BE OPENED. NO TENDER WITHDRAWAL SHALL BE PERMITTED UNLESS THE CORRESPONDING WITHDRAWAL NOTICE CONTAINS A VALID AUTHORIZATION TO REQUEST THE WITHDRAWAL AND IS READ OUT AT TENDER OPENING.

25.3 NEXT, ENVELOPES MARKED "SUBSTITUTION" SHALL BE OPENED AND READ OUT AND EXCHANGED WITH THE CORRESPONDING TENDER BEING SUBSTITUTED, AND THE SUBSTITUTED TENDER SHALL NOT BE OPENED, BUT RETURNED TO THE TENDERER. NO TENDER SUBSTITUTION SHALL BE PERMITTED UNLESS THE CORRESPONDING SUBSTITUTION NOTICE CONTAINS A VALID AUTHORIZATION TO REQUEST THE SUBSTITUTION AND IS READ OUT AT TENDER OPENING.

25.4 NEXT, ENVELOPES MARKED "MODIFICATION" SHALL BE OPENED AND READ OUT WITH THE CORRESPONDING TENDER. NO TENDER MODIFICATION SHALL BE PERMITTED UNLESS THE CORRESPONDING MODIFICATION NOTICE CONTAINS A VALID AUTHORIZATION TO REQUEST THE MODIFICATION AND IS READ OUT AT TENDER OPENING.

25.5 NEXT, ALL REMAINING ENVELOPES SHALL BE OPENED ONE AT A TIME, READING OUT: THE NAME OF THE TENDERER AND WHETHER THERE IS A MODIFICATION; THE TOTAL TENDER PRICES, PER ITEM OR LOT (CONTRACT) IF APPLICABLE, INCLUDING ANY DISCOUNTS AND ALTERNATIVE TENDERS; THE PRESENCE OR ABSENCE OF A TENDER SECURITY, IF REQUIRED; AND ANY OTHER DETAILS AS THE PROCURING ENTITY MAY CONSIDER APPROPRIATE.

25.6 ONLY TENDERS, ALTERNATIVE TENDERS AND DISCOUNTS THAT ARE OPENED AND READ OUT AT TENDER OPENING SHALL BE CONSIDERED FURTHER FOR EVALUATION. THE FORM OF TENDER AND THE PRICE SCHEDULES ARE TO BE INITIALED BY REPRESENTATIVES OF THE PROCURING ENTITY ATTENDING TENDER OPENING.

25.7 THE PROCURING ENTITY SHALL NEITHER DISCUSS THE MERITS OF ANY TENDER NOR REJECT ANY TENDER (EXCEPT FOR LATE TENDERS, IN ACCORDANCE WITH ITT 23.1).

- A) THE NAME OF THE TENDERER AND WHETHER THERE IS A WITHDRAWAL, SUBSTITUTION, OR MODIFICATION.
- B) THE TENDER PRICE, PER LOT(CONTRACT)IF APPLICABLE, INCLUDING ANY DISCOUNTS.
- C) ANY ALTERNATIVE TENDERS; AND
- D) THE PRESENCE OR ABSENCE OF A TENDER SECURITY OR TENDER SECURING DECLARATION, IF ONE WAS REQUIRED.

25.9 THE TENDERERS' REPRESENTATIVES WHO ARE PRESENT SHALL BE REQUESTED TO SIGN THE RECORD. THE OMISSION OF A TENDERER'S SIGNATURE ON THE RECORD SHALL NOT INVALIDATE THE CONTENTS AND EFFECT OF THE RECORD. A COPY OF THE TENDER OPENING REGISTER SHALL BE ISSUED TO A TENDERER UPON REQUEST.

E. EVALUATION AND COMPARISON OF TENDERS

26. CONFIDENTIALITY

26.1 INFORMATION RELATING TO THE EVALUATION OF TENDERS AND RECOMMENDATION OF CONTRACT AWARD, SHALL NOT BE DISCLOSED TO TENDERERS OR ANY OTHER PERSONS NOT OFFICIALLY CONCERNED WITH THE TENDERING PROCESS UNTIL THE NOTIFICATION OF INTENTION TO AWARD THE CONTRACT IS TRANSMITTED TO ALL TENDERERS IN ACCORDANCE WITH ITT 41.

26.2 ANY EFFORT BY A TENDERER TO INFLUENCE THE PROCURING ENTITY IN THE EVALUATION OR CONTRACT AWARD DECISIONS MAY RESULT IN THE REJECTION OF ITS TENDER.

26.3 NOTWITHSTANDING ITT 26.2, FROM THE TIME OF TENDER OPENING TO THE TIME OF CONTRACT AWARD, IF ANY TENDERER WISHES TO CONTACT THE PROCURING ENTITY ON ANY MATTER RELATED TO THE TENDERING PROCESS, IT SHOULD DO SO IN WRITING.

27. CLARIFICATION OF TENDERS

27.1 TO ASSIST IN THE EXAMINATION, EVALUATION, COMPARISON OF THE TENDERS, AND QUALIFICATION OF THE TENDERERS, THE PROCURING ENTITY MAY, AT ITS DISCRETION, ASK ANY TENDERER FOR A CLARIFICATION OF ITS TENDER. ANY CLARIFICATION SUBMITTED BY A TENDERER IN RESPECT TO ITS TENDER AND THAT IS NOT IN RESPONSE TO A REQUEST BY THE PROCURING ENTITY SHALL NOT BE CONSIDERED. THE PROCURING ENTITY'S INVITATION TO CLARIFICATION AND THE RESPONSE SHALL BE IN WRITING. NO CHANGE, INCLUDING ANY VOLUNTARY INCREASE OR DECREASE, IN THE PRICES OR SUBSTANCE OF THE TENDER SHALL BE SOUGHT, OFFERED, OR PERMITTED, EXCEPT TO CONFIRM THE CORRECTION OF ARITHMETIC ERRORS DISCOVERED BY THE PROCURING ENTITY IN THE EVALUATION OF THE TENDERS, IN ACCORDANCE WITH ITT 31.

27.2 IF A TENDERER DOES NOT PROVIDE CLARIFICATIONS OF ITS TENDER BY THE DATE AND TIME SET IN THE PROCURING ENTITY'S INVITATION TO CLARIFICATION, ITS TENDER MAY BE REJECTED.

28. DEVIATIONS, RESERVATIONS, AND OMISSIONS

28.1 DURING THE EVALUATION OF TENDERS, THE FOLLOWING DEFINITIONS APPLY:

- A) "DEVIATION" IS A DEPARTURE FROM THE REQUIREMENTS SPECIFIED IN THE TENDERING DOCUMENT;
- B) "RESERVATION" IS THE SETTING OF LIMITING CONDITIONS OR WITHHOLDING FROM COMPLETE ACCEPTANCE OF THE REQUIREMENTS SPECIFIED IN THE TENDERING DOCUMENT; AND
- C) "OMISSION" IS THE FAILURE TO SUBMIT PART OR ALL OF THE INFORMATION OR DOCUMENTATION REQUIRED IN THE TENDERING DOCUMENT.

29. DETERMINATION OF RESPONSIVENESS

29.1 THE PROCURING ENTITY'S DETERMINATION OF A TENDER'S RESPONSIVENESS IS TO BE BASED ON THE CONTENTS OF THE TENDER ITSELF, AS DEFINED IN ITT 11.

29.2 A SUBSTANTIALLY RESPONSIVE TENDER IS ONE THAT MEETS THE REQUIREMENTS OF THE TENDERING DOCUMENT WITHOUT MATERIAL DEVIATION, RESERVATION, OR OMISSION. A MATERIAL DEVIATION, RESERVATION, OR OMISSION IS ONE THAT:

A) IF ACCEPTED, WOULD:

I) AFFECT IN ANY SUBSTANTIAL WAY THE SCOPE, QUALITY, OR PERFORMANCE OF THE GOODS AND RELATED SERVICES SPECIFIED IN THE CONTRACT; OR

II) LIMIT IN ANY SUBSTANTIAL WAY, INCONSISTENT WITH THE TENDERING DOCUMENT, THE PROCURING ENTITY'S RIGHTS OR THE TENDERER'S OBLIGATIONS UNDER THE CONTRACT; OR

B) IF RECTIFIED, WOULD UNFAIRLY AFFECT THE COMPETITIVE POSITION OF OTHER TENDERERS PRESENTING SUBSTANTIALLY RESPONSIVE TENDERS.

29.3 THE PROCURING ENTITY SHALL EXAMINE THE TECHNICAL ASPECTS OF THE TENDER SUBMITTED IN ACCORDANCE WITH ITT 16 AND ITT 17, IN PARTICULAR, TO CONFIRM THAT ALL REQUIREMENTS OF SECTION VII, SCHEDULE OF REQUIREMENTS HAVE BEEN MET WITHOUT ANY MATERIAL DEVIATION OR RESERVATION, OR OMISSION.

29.4 IF A TENDER IS NOT SUBSTANTIALLY RESPONSIVE OTHER REQUIREMENTS OF TENDERING DOCUMENT, IT SHALL BE REJECTED BY THE PROCURING ENTITY AND MAY NOT SUBSEQUENTLY BE MADE RESPONSIVE BY CORRECTION OF THE MATERIAL DEVIATION, RESERVATION, OR OMISSION.

30. NON-CONFORMITIES, ERROR SAND OMISSIONS

30.1 PROVIDED THAT A TENDER IS SUBSTANTIALLY RESPONSIVE, THE PROCURING ENTITY MAY WAIVE ANY NON-CONFORMITY IN THE TENDER.

30.2 PROVIDED THAT A TENDER IS SUBSTANTIALLY RESPONSIVE, THE PROCURING ENTITY MAY REQUEST THAT THE TENDERER SUBMIT THE NECESSARY INFORMATION OR DOCUMENTATION, WITHIN A REASONABLE PERIOD, TO RECTIFY NONMATERIAL NON- CONFORMITIES OR OMISSIONS IN THE TENDER RELATED TO DOCUMENTATION REQUIREMENTS. SUCH OMISSION SHALL NOT BE RELATED TO ANY ASPECT OF THE PRICE OF THE TENDER. FAILURE OF THE TENDERER TO COMPLY WITH THE REQUEST MAY RESULT IN THE REJECTION OF ITS TENDER.

30.3 PROVIDED THAT A TENDER IS SUBSTANTIALLY RESPONSIVE, THE PROCURING ENTITY SHALL RECTIFY QUANTIFIABLE NON-MATERIAL NON-CONFORMITIES RELATED TO THE TENDER PRICE. TO THIS EFFECT, THE TENDER PRICE SHALL BE ADJUSTED, FOR COMPARISON PURPOSES ONLY, TO REFLECT THE PRICE OF A MISSING OR NON-CONFORMING ITEM OR COMPONENT IN THE MANNER SPECIFIED IN THE **TDS**.



31. ARITHMETICAL ERRORS

31.1 THE TENDERS SUBMITTED AND READ OUT DURING THE TENDER OPENING SHALL BE ABSOLUTE AND FINAL AND SHALL NOT BE THE SUBJECT OF CORRECTION, ADJUSTMENT OR AMENDMENT IN ANY WAY BY ANY PERSON OR ENTITY.

31.2 PROVIDED THAT THE TENDER IS SUBSTANTIALLY RESPONSIVE, THE PROCURING ENTITY SHALL HANDLE ERRORS ON THE FOLLOWING BASIS:

- A) ANY ERROR DETECTED IF CONSIDERED A MAJOR DEVIATION, THAT AFFECTS THE SUBSTANCE OF THE TENDER, SHALL LEAD TO DISQUALIFICATION OF THE TENDER AS NON-RESPONSIVE.
- B) ANY ERRORS IN THE SUBMITTED TENDER ARISING FROM A MISCALCULATION OF UNIT PRICE, QUANTITY, AND SUBTOTAL AND TOTAL BID PRICE SHALL BE CONSIDERED AS A MAJOR DEVIATION THAT AFFECTS THE SUBSTANCE OF THE TENDER AND SHALL LEAD TO DISQUALIFICATION OF THE TENDER AS NON-RESPONSIVE. AND
- C) IF THERE IS A DISCREPANCY BETWEEN WORDS AND FIGURES, THE AMOUNT IN WORDS SHALL PREVAIL

31.3 TENDERERS SHALL BE NOTIFIED OF ANY ERROR DETECTED IN THEIR BID DURING THE NOTIFICATION OF INTENTION TO AWARD.

32. CONVERSION TO SINGLE CURRENCY

32.1 FOR EVALUATION AND COMPARISON PURPOSES, THE CURRENCY(IES) OF THE TENDER SHALL BE CONVERTED INTO A SINGLE CURRENCY AS SPECIFIED IN THE **TDS**.

33. MARGIN OF PREFERENCE AND RESERVATIONS

33.1 A MARGIN OF PREFERENCE MAY BE ALLOWED ON LOCALLY MANUFACTURED HEALTH GOODS ONLY WHEN THE CONTRACT IS OPEN TO INTERNATIONAL TENDERING, WHERE THE TENDER IS LIKELY TO ATTRACT FOREIGN GOODS AND WHERE THE CONTRACT EXCEEDS THE THRESHOLD SPECIFIED IN THE REGULATIONS. A MARGIN OF PREFERENCE SHALL NOT BE ALLOWED UNLESS IT IS SPECIFIED SO IN THE **TDS**.

33.2 CONTRACTS PROCURED ON THE BASIS OF INTERNATIONAL COMPETITIVE TENDERING SHALL NOT BE SUBJECT TO RESERVATIONS TO SPECIFIC GROUPS AS PROVIDED IN ITT 33.3.

33.3 WHERE IT IS INTENDED TO RESERVE A CONTRACT TO A SPECIFIC GROUP OF BUSINESSES (THESE GROUPS ARE SMALL AND MEDIUM ENTERPRISES, WOMEN ENTERPRISES, YOUTH ENTERPRISES AND ENTERPRISES OF PERSONS LIVING WITH DISABILITY, AS THE CASE MAYBE), AND WHO ARE APPROPRIATELY REGISTERED AS SUCH BY A COMPETENT AUTHORITY, A PROCURING ENTITY SHALL ENSURE THAT THE INVITATION TO TENDER SPECIFICALLY INDICATES THAT ONLY BUSINESSES OR FIRMS BELONGING TO THE GROUP ARE ELIGIBLE TO TENDER. NO TENDER SHALL BE RESERVED TO MORE THAN ONE GROUP. IF NOT SO STATED IN THE TENDER DOCUMENTS, THE INVITATION TO TENDER WILL BE OPEN TO ALL INTERESTED TENDERERS.

34. EVALUATION OF TENDERS

34.1 THE PROCURING ENTITY SHALL USE THE CRITERIA AND METHODOLOGIES LISTED IN THIS ITT AND SECTION III, EVALUATION AND QUALIFICATION CRITERIA. NO OTHER EVALUATION CRITERIA OR METHODOLOGIES SHALL BE PERMITTED. BY APPLYING THE CRITERIA AND METHODOLOGIES, THE PROCURING ENTITY SHALL DETERMINE THE LOWEST EVALUATED TENDER. THIS IS THE TENDER OF THE TENDERER THAT MEETS THE QUALIFICATION CRITERIA AND WHOSE TENDER HAS BEEN DETERMINED TO BE:

- A) SUBSTANTIALLY RESPONSIVE TO THE TENDERING DOCUMENT; AND
- B) THE LOWEST EVALUATED COST.

34.2 TO EVALUATE A TENDER, THE PROCURING ENTITY SHALL CONSIDER THE FOLLOWING:

- A) PRICE ADJUSTMENT DUE TO DISCOUNTS OFFERED IN ACCORDANCE WITH ITT 14.4;
- B) PRICE ADJUSTMENT DUE TO QUANTIFIABLE NONMATERIAL NON-CONFORMITIES IN ACCORDANCE WITH ITT 30.3; AND
- C) CONVERTING THE AMOUNT RESULTING FROM APPLYING (A) AND (B) ABOVE, IF RELEVANT, TO A SINGLE CURRENCY IN ACCORDANCE WITH ITT 32;
- D) ANY ADDITIONAL EVALUATION FACTORS SPECIFIED IN SECTION III, EVALUATION AND QUALIFICATION CRITERIA.

34.3 THE ESTIMATED EFFECT OF THE PRICE ADJUSTMENT PROVISIONS OF THE CONDITIONS OF CONTRACT, APPLIED OVER THE PERIOD OF EXECUTION OF THE CONTRACT, SHALL NOT BE TAKEN IN TO ACCOUNT IN TENDER EVALUATION.

34.4 IN THE CASE OF MULTIPLE CONTRACTS OR LOTS, TENDERERS ARE ALLOWED TO TENDER FOR ONE OR MORE LOTS AND THE METHODOLOGY TO DETERMINE THE LOWEST EVALUATED COST OF THE LOT (CONTRACT) AND FOR COMBINATIONS, INCLUDING ANY DISCOUNTS OFFERED IN THE FORM OF TENDER, IS SPECIFIED IN SECTION III, EVALUATION AND QUALIFICATION CRITERIA.

34.5 THE PROCURING ENTITY'S EVALUATION OF A TENDER WILL EXCLUDE AND NOT TAKEN TO ACCOUNT:

- A) IN THE CASE OF GOODS MANUFACTURED IN KENYA, SALES AND OTHER SIMILAR TAXES, WHICH WILL BE PAYABLE ON THE GOODS IF A CONTRACT IS AWARDED TO THE TENDERER;
- B) IN THE CASE OF GOODS MANUFACTURED OUTSIDE KENYA, ALREADY IMPORTED OR TO BE IMPORTED, CUSTOMS DUTIES AND OTHER IMPORT TAXES LEVIED ON THE IMPORTED GOOD, SALES AND OTHER SIMILAR TAXES, WHICH WILL BE PAYABLE ON THE GOODS IF THE CONTRACT IS AWARDED TO THE TENDERER;
- C) ANY ALLOWANCE FOR PRICE ADJUSTMENT DURING THE PERIOD OF EXECUTION OF THE CONTRACT, IF PROVIDED IN THE TENDER.

34.6 THE PROCURING ENTITY'S EVALUATION OF A TENDER MAY REQUIRE THE CONSIDERATION OF OTHER FACTORS, IN ADDITION TO THE TENDER PRICE QUOTED IN ACCORDANCE WITH ITT 14. THESE FACTORS MAY BE RELATED TO THE CHARACTERISTICS, PERFORMANCE, AND TERMS AND CONDITIONS OF PURCHASE OF THE GOODS AND RELATED SERVICES. THE EFFECT OF THE FACTORS SELECTED, IF ANY, SHALL BE EXPRESSED IN MONETARY TERMS TO FACILITATE COMPARISON OF TENDERS, UNLESS OTHERWISE SPECIFIED IN THE **TDS** FROM AMONGST THOSE SET OUT IN SECTION III, EVALUATION AND QUALIFICATION CRITERIA. THE CRITERIA AND METHODOLOGIES TO BE USED SHALL BE AS SPECIFIED IN ITT 34.2

35. COMPARISON OF TENDERS

35.1 THE PROCURING ENTITY SHALL COMPARE THE EVALUATED COSTS OF ALL SUBSTANTIALLY RESPONSIVE TENDERS ESTABLISHED IN ACCORDANCE WITH ITT 34.2 TO DETERMINE THE TENDER THAT HAS THE LOWEST EVALUATED COST. THE COMPARISON SHALL BE ON THE BASIS OF CIP (PLACE OF FINAL DESTINATION) PRICES FOR IMPORTED GOODS AND EXW PRICES, PLUS COST OF INLAND TRANSPORTATION AND INSURANCE TO PLACE OF DESTINATION, FOR GOODS TOGETHER WITH PRICES FOR ANY REQUIRED INSTALLATION, TRAINING, COMMISSIONING, OPERATION, MAINTENANCE, DISPOSAL AND OTHER SERVICES. THE EVALUATION OF PRICES SHALL NOT TAKE INTO ACCOUNT CUSTOM DUTIES AND OTHER TAXES LEVIED ON IMPORTED GOODS QUOTED CIP AND SALES AND SIMILAR TAXES LEVIED IN CONNECTION WITH THE SALE OR DELIVERY OF GOODS.

36. ABNORMALLY LOW TENDERS AND ABNORMALLY

ABNORMALLY LOW TENDERS

36.1 AN ABNORMALLY LOW TENDER IS ONE WHERE THE TENDER PRICE IN COMBINATION WITH OTHER CONSTITUENT ELEMENTS OF THE TENDER, APPEARS UNREASONABLY LOW TO THE EXTENT THAT THE TENDER PRICE RAISES MATERIAL CONCERNS WITH THE PROCURING ENTITY AS TO THE CAPABILITY OF THE TENDERER TO PERFORM THE CONTRACT FOR THE OFFERED TENDER PRICE.

36.2 IN THE EVENT OF IDENTIFICATION OF A POTENTIALLY ABNORMALLY LOW TENDER BY THE EVALUATION COMMITTEE, THE PROCURING ENTITY SHALL SEEK WRITTEN CLARIFICATION FROM THE TENDERER, INCLUDING A DETAILED PRICE ANALYSES OF ITS TENDER PRICE IN RELATION TO THE SUBJECT MATTER OF THE CONTRACT, SCOPE, DELIVERY SCHEDULE, ALLOCATION OF RISKS AND RESPONSIBILITIES AND ANY OTHER REQUIREMENTS OF THE TENDERING DOCUMENT.

36.3 AFTER EVALUATION OF THE PRICE ANALYSES, IN THE EVENT THAT IF THE PROCURING ENTITY DETERMINES THAT THE TENDERER HAS FAILED TO DEMONSTRATE ITS CAPABILITY TO PERFORM THE CONTRACT FOR THE OFFERED TENDER PRICE, THE PROCURING ENTITY SHALL REJECT THE TENDER.



ABNORMALLY HIGH TENDERS

36.4 AN ABNORMALLY HIGH TENDER PRICE IS ONE WHERE THE TENDER PRICE, IN COMBINATION WITH OTHER CONSTITUENT ELEMENTS OF THE TENDER, APPEARS UNREASONABLY TOO HIGH TO THE EXTENT THAT THE PROCURING ENTITY IS CONCERNED THAT IT (THE PROCURING ENTITY) MAY NOT BE GETTING VALUE FOR MONEY, OR IT MAY BE PAYING TOO HIGH A PRICE FOR THE CONTRACT COMPARED WITH MARKET PRICES OR THAT GENUINE COMPETITION BETWEEN TENDERERS IS COMPROMISED.

36.5 IN CASE OF AN ABNORMALLY HIGH PRICE, THE PROCURING ENTITY SHALL MAKE A SURVEY OF THE MARKET PRICES, CHECK IF THE ESTIMATED COST OF THE CONTRACT IS CORRECT AND REVIEW THE TENDER DOCUMENTS TO CHECK IF THE SPECIFICATIONS, SCOPE OF WORK AND CONDITIONS OF CONTRACT ARE CONTRIBUTORY TO THE ABNORMALLY HIGH TENDERS. THE PROCURING ENTITY MAY ALSO SEEK WRITTEN CLARIFICATION FROM THE TENDERER ON THE REASON FOR THE HIGH TENDER PRICE. THE PROCURING ENTITY SHALL PROCEED AS FOLLOWS:

- (I) IF THE TENDER PRICE IS ABNORMALLY HIGH BASED ON WRONG ESTIMATED COST OF THE CONTRACT, THE PROCURING ENTITY MAY ACCEPT OR NOT ACCEPT THE TENDER DEPENDING ON THE PROCURING ENTITY'S BUDGET CONSIDERATIONS.
- (II) IF SPECIFICATIONS, SCOPE OF WORK AND/OR CONDITIONS OF CONTRACT ARE CONTRIBUTORY TO THE ABNORMALLY HIGH TENDER PRICES, SCOPE OF WORK AND CONDITIONS OF CONTRACT, AS THE CASE MAY BE.

36.6 IF THE PROCURING ENTITY DETERMINES THAT THE TENDER PRICE IS ABNORMALLY TOO HIGH BECAUSE GENUINE COMPETITION BETWEEN TENDERERS IS COMPROMISED (OFTEN DUE TO COLLUSION, CORRUPTION OR OTHER MANIPULATIONS), THE PROCURING ENTITY SHALL REJECT ALL TENDERS AND SHALL INSTITUTE OR CAUSE COMPETENT GOVERNMENT AGENCIES TO INSTITUTE AN INVESTIGATION ON THE CAUSE OF THE COMPROMISE, BEFORE RETENDERING.

37. QUALIFICATION OF THE TENDERER

37.1 THE PROCURING ENTITY SHALL DETERMINE TO ITS SATISFACTION WHETHER THE TENDERER THAT IS SELECTED A HAVING SUBMITTED THE LOWEST EVALUATED COST AND SUBSTANTIALLY RESPONSIVE TENDER IS ELIGIBLE AND MEETS THE QUALIFYING CRITERIA SPECIFIED IN ITT 11.1 AS APPLICABLE, AND SECTION III, EVALUATION AND QUALIFICATION CRITERIA.

37.2 THE DETERMINATION SHALL BE BASED UPON AN EXAMINATION OF THE DOCUMENTARY EVIDENCE OF THE TENDERER'S QUALIFICATIONS SUBMITTED BY THE TENDERER, PURSUANT TO ITT 17. THE DETERMINATION SHALL NOT TAKE INTO CONSIDERATION THE QUALIFICATIONS OF OTHER FIRMS SUCH AS THE TENDERER'S SUBSIDIARIES, PARENT ENTITIES, AFFILIATES, SUB-CONTRACTORS OR ANY OTHER FIRM (S) DIFFERENT FROM THE TENDERER.

37.3 AN AFFIRMATIVE DETERMINATION SHALL BE A PREREQUISITE FOR AWARD OF THE CONTRACT TO THE TENDERER. A NEGATIVE DETERMINATION SHALL RESULT IN DISQUALIFICATION OF THE TENDER, IN WHICH EVENT THE PROCURING ENTITY SHALL PROCEED TO THE TENDERER WHO OFFERS A SUBSTANTIALLY RESPONSIVE TENDER WITH THE NEXT LOWEST EVALUATED COST TO MAKE A SIMILAR DETERMINATION OF THAT TENDERER'S QUALIFICATION STOPPER FORM SATISFACTORILY.

38. PROCURING ENTITY'S RIGHT TO ACCEPT ANY TENDER, AND TO REJECT ANY OR ALL TENDERS

38.1 THE PROCURING ENTITY RESERVES THE RIGHT TO ACCEPT OR REJECT ANY TENDER, AND TO ANNUL THE TENDERING PROCESS AND REJECT ALL TENDERS AT ANY TIME PRIOR TO CONTRACT AWARD, WITHOUT THEREBY INCURRING ANY LIABILITY TO TENDERERS. IN CASE OF ANNULMENT, ALL TENDERERS SHALL BE NOTIFIED WITH REASONS AND ALL TENDERS SUBMITTED AND SPECIFICALLY, TENDER SECURITIES, SHALL BE PROMPTLY RETURNED TO THE TENDERERS.

F. AWARD OF CONTRACT

39. AWARD CRITERIA

39.1 THE PROCURING ENTITY SHALL AWARD THE CONTRACT TO THE SUCCESSFUL TENDERER WHOSE TENDER HAS BEEN DETERMINED TO BE THE LOWEST EVALUATED TENDER IN ACCORDANCE WITH PROCEDURES IN ITT 37.1 AND IN SECTION 3: EVALUATION AND QUALIFICATION CRITERIA.

40. PROCURING ENTITY'S RIGHT TO VARY QUANTITIES AT TIME OF AWARD

40.1 THE PROCURING ENTITY RESERVES THE RIGHT AT THE TIME OF CONTRACT AWARD TO INCREASE OR DECREASE, BY NOT MORE THAN 10% FOR ITEMS AS INDICATED IN THE TDS.

41. NOTICE OF INTENTION TO ENTER INTO A CONTRACT

41.1 UPON AWARD OF THE CONTRACT AND PRIOR TO THE EXPIRY OF THE TENDER VALIDITY PERIOD THE PROCURING ENTITY SHALL ISSUE A NOTIFICATION OF INTENTION TO ENTER IN TO A CONTRACT/NOTIFICATION OF AWARD TO ALL TENDERERS WHICH SHALL CONTAIN, AT A MINIMUM, THE FOLLOWING INFORMATION:

- A) THE NAME AND ADDRESS OF THE TENDERER SUBMITTING THE SUCCESSFUL TENDER;
- B) THE CONTRACT PRICE OF THE SUCCESSFUL TENDERER;
- C) A STATEMENT OF THE ALL REASON(S) THE TENDER OF THE UNSUCCESSFUL TENDERER TO WHOM THE LETTER IS ADDRESSED WAS UNSUCCESSFUL,
- D) THE EXPIRY DATE OF THE STANDS TILL PERIOD; AND
- E) INSTRUCTIONS ON HOW TO REQUEST A DE BRIEFING DURING THE STAND STILL PERIOD;

42. STANDSTILL PERIOD

42.1 THE CONTRACT SHALL NOT BE SIGNED EARLIER THAN THE EXPIRY OF A STANDSTILL PERIOD OF 14 DAYS TO ALLOW ANY DISSATISFIED TENDER TO LAUNCH A COMPLAINT.

42.2 THE STANDSTILL PERIOD SHALL COMMENCE WHEN THE PROCURING ENTITY HAS TRANSMITTED TO EACH TENDERER THE NOTIFICATION OF INTENTION TO ENTER IN A CONTRACT WITH THE SUCCESSFUL TENDERER.

43. DEBRIEFING BY THE PROCURING ENTITY

43.1 ON RECEIPT OF THE PROCURING ENTITY'S NOTIFICATION OF INTENTION TO ENTER INTO A CONTRACT REFERRED TO IN ITT 41, AN UNSUCCESSFUL TENDERER MAY MAKE A WRITTEN REQUEST TO THE PROCURING ENTITY FOR A DEBRIEFING ON SPECIFIC ISSUES OR CONCERNS REGARDING THEIR TENDER. THE PROCURING ENTITY SHALL PROVIDE THE DEBRIEFING WITHIN FIVE DAYS OF RECEIPT OF THE REQUEST.

43.2 DEBRIEFINGS OF UNSUCCESSFUL FULL TENDERERS MAY BE DONE IN WRITING OR VERBALLY. WHERE THE DEBRIEFING IS VERBAL, IT SHOULD BE FOLLOWED UP IN WRITING. THE TENDERER SHALL BEAR ITS OWN COSTS OF ATTENDING SUCH A DEBRIEFING MEETING.

44. LETTER OF AWARD

44.1 PRIOR TO THE EXPIRY OF THE TENDER VALIDITY PERIOD AND UPON EXPIRY OF THE STANDSTILL PERIOD SPECIFIED IN ITT 42.1, THE PROCURING ENTITY SHALL TRANSMIT THE LETTER OF AWARD TO THE SUCCESSFUL TENDERER. THE LETTER OF AWARD SHALL REQUEST THE SUCCESSFUL TENDERER TO FURNISH THE PROCURING ENTITY WITH LETTER OF ACCEPTANCE, DULY FILLED BENEFICIAL OWNERSHIP INFORMATION (BOI) FORM AND PERFORMANCE SECURITY WITHIN 21 DAYS OF THE DATE OF THE LETTER.

45. SIGNING OF CONTRACT

45.1 UPON THE EXPIRY OF THE FOURTEEN DAYS OF THE NOTIFICATION OF INTENTION TO ENTER IN TO CONTRACT AND UPON THE PARTIES MEETING THEIR RESPECTIVE STATUTORY REQUIREMENTS, THE PROCURING ENTITY SHALL SEND THE SUCCESSFUL TENDERER THE CONTRACT AGREEMENT.

45.2 WITHIN FOURTEEN (14) DAYS OF RECEIPT OF THE CONTRACT AGREEMENT, THE SUCCESSFUL TENDERER SHALL SIGN, DATE, AND RETURN IT TO THE PROCURING ENTITY.

45.3 THE WRITTEN CONTRACT SHALL BE ENTERED INTO WITHIN THE PERIOD SPECIFIED IN THE NOTIFICATION OF AWARD AND BEFORE EXPIRY OF THE TENDER VALIDITY PERIOD.

46. PERFORMANCE SECURITY

46.1 WITHIN TWENTY-ONE (21) DAYS OF THE RECEIPT OF THE LETTER OF AWARD FROM THE PROCURING ENTITY, THE SUCCESSFUL TENDERER SHALL FURNISH THE PERFORMANCE SECURITY AND, ANY OTHER DOCUMENTS REQUIRED **IN THE TDS**, IN ACCORDANCE WITH THE GENERAL CONDITIONS OF CONTRACT, SUBJECT TO ITT 38.2 (B), 46, USING THE PERFORMANCE SECURITY AND OTHER FORMS INCLUDED IN SECTION X, CONTRACT FORMS, OR ANOTHER FORM ACCEPTABLE TO THE PROCURING ENTITY. A FOREIGN INSTITUTION PROVIDING A BANK GUARANTEE SHALL HAVE A CORRESPONDENT FINANCIAL INSTITUTION LOCATED IN KENYA, UNLESS THE PROCURING ENTITY HAS AGREED IN WRITING THAT A CORRESPONDENT BANK IS NOT REQUIRED.

46.2 FAILURE OF THE SUCCESSFUL TENDERER TO SUBMIT THE ABOVE-MENTIONED PERFORMANCE SECURITY AND OTHER DOCUMENTS REQUIRED IN THE **TDS** OR SIGN THE CONTRACT SHALL CONSTITUTE SUFFICIENT GROUNDS FOR THE ANNULMENT OF THE AWARD AND FORFEITURE OF THE TENDER SECURITY. IN THAT EVENT THE PROCURING ENTITY MAY AWARD THE CONTRACT TO THE TENDERER OFFERING THE NEXT BEST EVALUATED TENDER.

47. PUBLICATION OF PROCUREMENT CONTRACT

47.1 WITHIN FOURTEEN DAYS AFTER SIGNING THE CONTRACT, THE PROCURING ENTITY SHALL PUBLISH THE AWARDED CONTRACT ON THE STATE PORTAL, ENTITY'S WEBSITE, ITS NOTICEBOARDS AND WEBSITES; A. AT THE MINIMUM, THE NOTICE SHALL CONTAIN THE FOLLOWING INFORMATION:

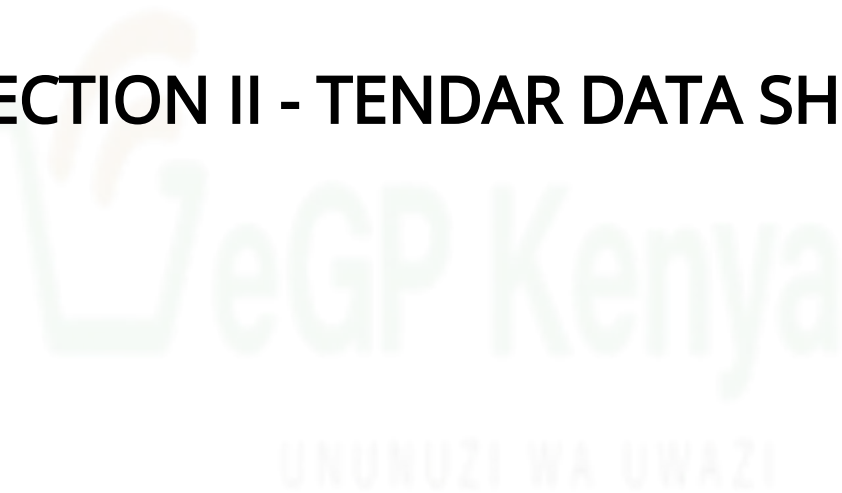
- A) NAME AND ADDRESS OF THE PROCURING ENTITY;
- B) NAME AND REFERENCE NUMBER OF THE CONTRACT BEING AWARDED, A SUMMARY OF ITS SCOPE AND THE SELECTION METHOD USED;
- C) THE NAME OF THE SUCCESSFUL TENDERER, THE FINAL TOTAL CONTRACT PRICE, THE CONTRACT DURATION.
- D) DATES OF SIGNATURE, COMMENCEMENT AND COMPLETION OF CONTRACT;
- E) NAMES OF ALL TENDERERS THAT SUBMITTED TENDERS, AND THEIR TENDER PRICES AS READ OUT AT TENDER OPENING.

48. PROCUREMENT RELATED COMPLAINT AND ADMINISTRATIVE REVIEW

48.1 THE PROCEDURES FOR MAKING A PROCUREMENT-RELATED COMPLAINT ARE AVAILABLE ON THE PPRA WEBSITE WWW.PPRA.GO.KE .

48.2 A REQUEST FOR ADMINISTRATIVE REVIEW SHALL BE MADE IN THE FORM PROVIDED UNDER CONTRACT FORMS.

SECTION II - TENDAR DATA SHEET



Tender Data Sheet (TDS)

	ITT Reference & TDS Detail	Filled By	Value to be Auto Populated in Tender Document
ITT Reference	1. SCOPE OF TENDER 1.1 IN CONNECTION WITH THIS INVITATION TO TENDERER (ITT), THE PROCURING ENTITY ISSUES THIS TENDERING DOCUMENT FOR THE SUPPLY OF HEALTH GOODS (PHARMACEUTICALS, VACCINES, AND CONDOMS AND RELATED SERVICES INCIDENTAL THERETO AS SPECIFIED IN SECTION V, SCHEDULE OF REQUIREMENTS. THE REFERENCE NUMBER AND DESCRIPTION OF THE TENDER NUMBER AND IDENTIFICATION OF ITEMS OR LOTS (CONTRACTS) OF THIS ITT ARE SPECIFIED IN THE TDS.	-	-
TDS Detail	THE NAME OF THE PROCURING ENTITY IS:	Auto Populate	KENYA INSTITUTE OF PRIMATE RESEARCH
TDS Detail	THE REFERENCE NUMBER OF THE TENDERS (ITT) IS:	Auto Populate	KIPRE/961/0004 /2025-26

TDS Detail	THE DESCRIPTION OF THE CONTRACT IS:	Manual Input	DEVELOPING A POLYVALENT SNAKE VENOM ANTI SERUM FOR THE EFFECTIVE TREATMENT OF SNAKEBITE ENVENOMING IN KENYA AND REST OF EAST AFRICA
TDS Detail	THE NUMBER OF LOTS (CONTRACTS) COMPRISING THIS ITT IS:	Manual Input	1
ITT Reference	2. DEFINITIONS THROUGHOUT THIS TENDER DOCUMENT: A) THE TERM "IN WRITING" MEANS COMMUNICATED IN WRITTEN FORM (E.G. BY MAIL, E-MAIL, FAX, INCLUDING IF SPECIFIED IN THE TDS , DISTRIBUTED OR RECEIVED THROUGH THE ELECTRONIC-PROCUREMENT SYSTEM USED BY THE PROCURING ENTITY) WITH PROOF OF RECEIPT.	-	-
TDS Detail	<i>[DELETE IF NOT APPLICABLE]</i> ELECTRONIC –PROCUREMENT SYSTEM THE PROCURING ENTITY SHALL USE THE FOLLOWING ELECTRONIC-PROCUREMENT SYSTEM TO MANAGE THIS TENDERING PROCESS: <i>[INSERT NAME OF THE E-SYSTEM AND URL ADDRESS OR LINK]</i>	Auto Populate	https://egp.treasury.go.ke/login

ITT Reference	3. FRAUD AND CORRUPTION 3.3 UNFAIR COMPETITIVE ADVANTAGE - FAIRNESS AND TRANSPARENCY IN THE TENDER PROCESS REQUIRE THAT THE FIRMS OR THEIR AFFILIATES COMPETING FOR A SPECIFIC ASSIGNMENT DO NOT DERIVE A COMPETITIVE ADVANTAGE FROM HAVING PROVIDED CONSULTING SERVICES RELATED TO THE ASSIGNMENT IN QUESTION. TO THAT END, THE PROCURING ENTITY SHALL INDICATE IN THE DATA SHEET AND MAKE AVAILABLE TO ALL THE FIRMS TOGETHER WITH THIS TENDER DOCUMENT ALL INFORMATION THAT WOULD IN THAT RESPECT GIVE SUCH FIRM ANY UNFAIR COMPETITIVE ADVANTAGE OVER COMPETING FIRMS.	-	-
TDS Detail	THE FIRMS THAT PROVIDED CONSULTING SERVICES ARE _____	Manual Input	NONE

ITT Reference	4. ELIGIBLE TENDERERS 4.1 A TENDERER MAY BE A FIRM THAT IS A PRIVATE ENTITY, A STATE-OWNED ENTERPRISE OR INSTITUTION SUBJECT TO ITT4.6 OR ANY COMBINATION OF SUCH ENTITIES IN THE FORM OF A JOINT VENTURE (JV) UNDER AN EXISTING AGREEMENT OR WITH THE INTENT TO ENTER IN TO SUCH AN AGREEMENT SUPPORTED BY A FORM OF INTENT. IN THE CASE OF A JOINT VENTURE, ALL MEMBERS SHALL BE JOINTLY AND SEVERALLY LIABLE FOR THE EXECUTION OF THE ENTIRE CONTRACT IN ACCORDANCE WITH THE CONTRACT TERMS. THE JV SHALL NOMINATE A REPRESENTATIVE WHO SHALL HAVE THE AUTHORITY TO CONDUCT ALL BUSINESS FOR AND ON BEHALF OF ANY AND ALL THE MEMBERS OF THE JV DURING THE TENDERING PROCESS AND, IN THE EVENT THE JV IS AWARDED THE CONTRACT, DURING CONTRACT EXECUTION. MEMBERS OF A JOINT VENTURE MAY NOT ALSO MAKE AN INDIVIDUAL TENDER, BE A SUBCONTRACTOR IN A SEPARATE TENDER OR BE PART OF ANOTHER JOINT VENTURE FOR THE PURPOSES OF THE SAME TENDER. THE MAXIMUM NUMBER OF JV MEMBERS TO BE ALLOWED SHALL BE SPECIFIED IN THE TDS.	-	-
TDS Detail	MAXIMUM NUMBER OF MEMBERS IN THE JOINT VENTURE (JV) SHALL BE: [INSERT A NUMBER] _____	Manual Input	NOT APPLICABLE

ITT Reference	7. CLARIFICATION OF TENDERING DOCUMENT 7.1 A TENDERER REQUIRING ANY CLARIFICATION OF THE TENDER DOCUMENT SHALL CONTACT THE PROCURING ENTITY IN WRITING AT THE PROCURING ENTITY'S ADDRESS SPECIFIED IN THE TDS. THE PROCURING ENTITY WILL RESPOND IN WRITING TO ANY INVITATION TO CLARIFICATION, PROVIDED THAT SUCH REQUEST IS RECEIVED PRIOR TO THE DEADLINE FOR SUBMISSION OF TENDERS WITHIN A PERIOD SPECIFIED IN THE TDS. THE PROCURING ENTITY SHALL FORWARD COPIES OF ITS RESPONSE TO ALL TENDERERS WHO HAVE ACQUIRED THE TENDERING DOCUMENT IN ACCORDANCE WITH ITT6.3, INCLUDING A DESCRIPTION OF THE INQUIRY BUT WITHOUT IDENTIFYING ITS SOURCE. IF SO SPECIFIED IN THE TDS, THE PROCURING ENTITY SHALL ALSO PROMPTLY PUBLISH ITS RESPONSE AT THE WEB PAGE IDENTIFIED IN THE TDS. SHOULD THE CLARIFICATION RESULT IN CHANGES TO THE ESSENTIAL ELEMENTS OF THE TENDERING DOCUMENT, THE PROCURING ENTITY SHALL AMEND THE TENDERING DOCUMENT FOLLOWING THE PROCEDURE UNDER ITT 8 AND ITT 22.2	-	-
TDS Detail	THE CONTACT ADDRESS IS:	Auto Populate	https://egp.treasury.go.ke/login
TDS Detail	REQUESTS FOR CLARIFICATION SHOULD BE RECEIVED BY THE PROCURING ENTITY NO LATER THAN: <i>[INSERT DATE]</i> .	Manual Input	13TH MARCH 2026

TDS Detail	THE PROCURING ENTITY SHALL PUBLISH ITS RESPONSE AT	Auto Populate	https://egp.treasury.go.ke/login
ITT Reference	11. DOCUMENTS COMPRISING THE TENDER F) TENDERER'S QUALIFICATIONS: DOCUMENTARY EVIDENCE IN ACCORDANCE WITH ITT 17 ESTABLISHING THE TENDERER'S QUALIFICATIONS TO PERFORM THE CONTRACT IF ITS TENDER IS ACCEPTED; NOTE: ADDITIONAL INFORMATION REQUIRED FOR VACCINES AS SPECIFIED IN THE TDS.	-	-



TDS Detail	(ADDITIONAL TDS FOR VACCINES) [NOTE: <i>THE BELOW DATA SHOULD BE INCLUDED IN THE TENDER DATA SHEET TENDERING DOCUMENT FOR THE PROCUREMENT OF VACCINES.</i>] ITT 11.1 (F) DOCUMENTARY EVIDENCE OF THE TENDERER'S QUALIFICATIONS TO PERFORM THE CONTRACT IF ITS TENDER IS ACCEPTED: A) IS CERTIFIED BY A COMPETENT AUTHORITY IN THE COUNTRY OF MANUFACTURE ACCORDING TO RESOLUTION WHA 28 65 OF THE WORLD HEALTH ORGANIZATION'S CERTIFICATE SCHEME ON THE QUALITY OF PHARMACEUTICAL PRODUCTS MOVING IN INTERNATIONAL COMMERCE. THE TENDERER WILL SUBMIT THE FOLLOWING ADDITIONAL INFORMATION: B) LIST OF VACCINES BEING MANUFACTURED BY THE TENDERER WITH PRODUCT REGISTRATION / LICENSE NUMBER AND DATE.	Manual Input	AS PER THE MANDATORY AND EVALUATION CRITERIA
ITT Reference	J) ANY OTHER DOCUMENT REQUIRED IN THE TDS.	-	-

TDS Detail	THE TENDERER SHALL SUBMIT THE FOLLOWING ADDITIONAL DOCUMENTS IN ITS TENDER: <i>[LIST ANY ADDITIONAL DOCUMENT NOT ALREADY LISTED IN ITT 11.1 THAT MUST BE SUBMITTED WITH THE TENDER]</i>	Manual Input	NOT APPLICABLE
ITT Reference	13. ALTERNATIVE TENDERS 13.1 UNLESS OTHERWISE SPECIFIED IN THE TDS, ALTERNATIVE TENDERS SHALL NOT BE CONSIDERED.:	-	-
TDS Detail	ALTERNATIVE TENDERS [INSERT "SHALL BE" OR "SHALL NOT BE"] CONSIDERED. <i>[IF ALTERNATIVES SHALL BE CONSIDERED, THE METHODOLOGY SHALL BE DEFINED IN SECTION III – EVALUATION AND QUALIFICATION CRITERIA. SEE SECTION III FOR FURTHER DETAILS]</i>	Manual Input	SHALL NOT BE

ITT Reference	14. TENDER PRICES AND DISCOUNTS 14.5 PRICES QUOTED BY THE TENDERER SHALL BE FIXED DURING THE TENDERER'S PERFORMANCE OF THE CONTRACT AND NOT SUBJECT TO VARIATION ON ANY ACCOUNT, UNLESS OTHERWISE SPECIFIED IN THE TDS. A TENDER SUBMITTED WITH AN ADJUSTABLE PRICE QUOTATION SHALL BE TREATED AS NON-RESPONSIVE AND SHALL BE REJECTED, PURSUANT TO ITT 29. HOWEVER, IF IN ACCORDANCE WITH THE TDS, PRICES QUOTED BY THE TENDERER SHALL BE SUBJECT TO ADJUSTMENT DURING THE PERFORMANCE OF THE CONTRACT, A TENDER SUBMITTED WITH A FIXED PRICE QUOTATION SHALL NOT BE REJECTED, BUT THE PRICE ADJUSTMENT SHALL BE TREATED AS ZERO. <i>[THE LOCAL CURRENCY PORTION OF THE CONTRACT PRICE SHALL BE ADJUSTED BY A FACTOR REFLECTING LOCAL INFLATION DURING THE PERIOD OF EXTENSION, AND THE FOREIGN CURRENCY PORTION OF THE CONTRACT PRICE SHALL BE ADJUSTED BY A FACTOR REFLECTING THE INTERNATIONAL INFLATION (IN THE COUNTRY OF THE FOREIGN CURRENCY) DURING THE PERIOD OF EXTENSION.]</i>	-	-
TDS Detail	THE PRICES QUOTED BY THE TENDERER [<i>INSERT "SHALL "OR "SHALL NOT"</i>] BE SUBJECT TO ADJUSTMENT DURING THE PERFORMANCE OF THE CONTRACT.	Manual Input	SHALL NOT

TDS Detail	THE TENDER PRICE SHALL BE ADJUSTED BY THE FOLLOWING FACTOR(S): _____	Manual Input	NOT APPLICABLE
ITT Reference	14.6 IF SO SPECIFIED IN ITT 1.1, TENDERS ARE BEING INVITED FOR INDIVIDUAL LOTS (CONTRACTS) OR ANY COMBINATION OF LOTS (PACKAGES). UNLESS OTHERWISE SPECIFIED IN THE TDS, PRICES QUOTED SHALL CORRESPOND TO 100 % OF THE ITEMS SPECIFIED FOR EACH LOT AND TO 100% OF THE QUANTITIES SPECIFIED FOR EACH ITEM OF A LOT. TENDERERS WISHING TO OFFER DISCOUNTS FOR THE AWARD OF MORE THAN ONE CONTRACT SHALL SPECIFY IN THEIR TENDER THE PRICE REDUCTIONS APPLICABLE TO EACH PACKAGE, OR ALTERNATIVELY, TO INDIVIDUAL CONTRACTS WITHIN THE PACKAGE. DISCOUNTS SHALL BE SUBMITTED IN ACCORDANCE WITH ITT 14.4 PROVIDED THE TENDERS FOR ALL LOTS (CONTRACTS) ARE OPENED AT THE SAME TIME.	-	-
TDS Detail	PRICES QUOTED FOR EACH LOT (CONTRACT) SHALL CORRESPOND AT LEAST TO [INSERT FIGURE] PERCENT OF THE ITEMS SPECIFIED FOR EACH LOT (CONTRACT).	Manual Input	100
TDS Detail	PRICES QUOTED FOR EACH ITEM OF A LOT SHALL CORRESPOND AT LEAST TO <i>[INSERT FIGURE] PERCENT OF THE QUANTITIES SPECIFIED FOR THIS ITEM OF A LOT.</i>	Manual Input	100

ITT Reference	14.7 THE TERMS EXW, CIP, AND OTHER SIMILAR TERMS SHALL BE GOVERNED BY THE RULES PRESCRIBED IN THE CURRENT EDITION OF INCOTERMS, PUBLISHED BY THE INTERNATIONAL CHAMBER OF COMMERCE, AS SPECIFIED IN THE TDS .	-	-
TDS Detail	THE INCOTERMS EDITION IS: <i>[INSERT RELEVANT EDITION]</i> .	Manual Input	INCOTERMS 2020 - DDP
ITT Reference	14.8(A)(III) THE PRICE FOR INLAND TRANSPORTATION, INSURANCE, AND OTHER LOCAL SERVICES REQUIRED TO CONVEY THE GOODS TO THEIR FINAL DESTINATION (PROJECT SITE) SPECIFIED IN THE TDS ;	-	-
TDS Detail	PLACE OF DESTINATION: <i>[INSERT NAMED PLACE OF DESTINATION AS PER INCOTERM USED]</i>	Manual Input	KENYA INSTITUTE OF PRIMATE RESEARCH -END OF KAREN ROAD, NAIROBI-KENYA
TDS Detail	FINAL DESTINATION (PROJECT SITE): <i>[INSERT FINAL DESTINATION, IF DIFFERENT FROM NAMED PLACE OF DESTINATION]</i>	Manual Input	NOT APPLICABLE
ITT Reference	14.8(B) FOR GOODS MANUFACTURED OUTSIDE KENYA, TO BE IMPORTED: I) THE PRICE OF THE GOODS, QUOTED CIP NAMED PLACE OF DESTINATION, IN KENYA, AS SPECIFIED IN THE TDS ; AND	-	-

TDS Detail	PLACE OF DESTINATION: [INSERT NAMED PLACE OF DESTINATION AS PER INCOTERM USED]	Manual Input	KENYA INSTITUTE OF PRIMATE RESEARCH -END OF KAREN ROAD, NAIROBI-KENYA
ITT Reference	14.8(B)(II) THE PRICE FOR INLAND TRANSPORTATION, INSURANCE, LOCAL TAXES PAYABLE ON THE GOODS AND OTHER LOCAL SERVICES REQUIRED TO CONVEY THE GOODS FROM THE NAMED PLACE OF DESTINATION TO THEIR FINAL DESTINATION (PROJECT SITE) SPECIFIED IN THE TDS ;	-	-
TDS Detail	FINAL DESTINATION (PROJECT SITE): [INSERT FINAL DESTINATION, IF DIFFERENT FROM NAMED PLACE OF DESTINATION]	Manual Input	NOT PPLICABLE
ITT Reference	14.8(C)(V) THE PRICE FOR INLAND TRANSPORTATION, INSURANCE, AND OTHER LOCAL SERVICES REQUIRED TO CONVEY THE GOODS FROM THE NAMED PLACE OF DESTINATION TO THEIR FINAL DESTINATION (PROJECT SITE) SPECIFIED IN THE TDS .	-	-
TDS Detail	PLACE OF DESTINATION: [INSERT NAMED PLACE OF DESTINATION AS PER INCOTERM USED]	Manual Input	KENYA INSTITUTE OF PRIMATE RESEARCH -END OF KAREN ROAD, NAIROBI-KENYA
TDS Detail	FINAL DESTINATION (PROJECT SITE): [INSERT FINAL DESTINATION, IF DIFFERENT FROM NAMED PLACE OF DESTINATION]	Manual Input	NOT APPLICABLE

ITT Reference	15. CURRENCIES OF TENDER AND PAYMENT 15.1 THE CURRENCY(IES) OF THE TENDER AND THE CURRENCY(IES) OF PAYMENTS SHALL BE THE SAME. THE TENDERER SHALL QUOTE IN THE CURRENCY OF KENYA THE PORTION OF THE TENDER PRICE THAT CORRESPONDS TO EXPENDITURES INCURRED IN KENYA SHILLINGS, UNLESS OTHERWISE SPECIFIED IN THE TDS .	-	-
TDS Detail	THE TENDERER [<i>INSERT "IS" OR "IS NOT"</i>] REQUIRED TO QUOTE IN KENYA SHILLINGS THE PORTION OF THE TENDER PRICE THAT CORRESPONDS TO EXPENDITURES INCURRED IN THAT CURRENCY.	Manual Input	IS REQUIRED
ITT Reference	16. DOCUMENTS ESTABLISHING THE ELIGIBILITY AND CONFORMITY OF THE GOODS AND RELATED SERVICES B) ANY OTHER PROCUREMENT-SPECIFIC DOCUMENTATION REQUIREMENT AS STATED IN THE TDS .	-	-
TDS Detail	OTHER PROCUREMENT-SPECIFIC DOCUMENTATION REQUIREMENTS ARE 	Manual Input	NONE

ITT Reference	UNLESS THE TDS STIPULATES OTHERWISE, THE GOODS TO BE SUPPLIED UNDER THE CONTRACT SHALL BE REGISTERED WITH THE RELEVANT AUTHORITY IN KENYA. A TENDERER WHO HAS ALREADY REGISTERED ITS GOODS BY THE TIME OF TENDERING SHOULD SUBMIT A COPY OF THE REGISTRATION CERTIFICATE WITH ITS TENDER. OTHERWISE, THE SUCCESSFUL TENDERER, BY THE TIME OF CONTRACT SIGNING, SHALL SUBMIT TO THE PROCURING ENTITY EITHER: I) A COPY OF THE REGISTRATION CERTIFICATE OF THE GOODS FOR USE IN KENYA; OR II) IF SUCH REGISTRATION CERTIFICATE HAS NOT YET BEEN OBTAINED, EVIDENCE ESTABLISHING TO THE PROCURING ENTITY'S SATISFACTION THAT THE TENDERER HAS COMPLIED WITH ALL THE DOCUMENTARY REQUIREMENTS FOR REGISTRATION AS SPECIFIED IN THE TDS.	-	-
TDS Detail	GOODS TO BE SUPPLIED UNDER THE CONTRACT SHALL BE REGISTERED WITH _____ IN KENYA.	Manual Input	THE RELEVANT AUTHORITY

TDS Detail	PHARMACEUTICALS <i>(ADDITIONAL TDS FOR PHARMACEUTICALS)</i> [NOTE: THE BELOW DATA SHOULD BE INCLUDED IN THE TENDER DATA SHEET TENDERING DOCUMENT FOR THE PROCUREMENT OF PHARMACEUTICALS]. ITT 16.3(B) [SAMPLE ITT] THE PHARMACEUTICALS OFFERED SHOULD MEET THE SPECIFIED PHARMACOPOEIA STANDARDS AS STATED IN THE TECHNICAL SPECIFICATION. IF THE GOODS OFFERED ARE NOT INCLUDED IN ONE OF THE SPECIFIED PHARMACOPOEIAS (E.G., THE CASE OF A NEW DRUG), THE TENDERER WILL PROVIDE TESTING PROTOCOLS AND ALTERNATIVE REFERENCE STANDARDS.	Manual Input	WHO STANDARDS
TDS Detail	(ADDITIONAL TDS FOR VACCINES) <i>[NOTE: THE BELOW DATA SHOULD BE INCLUDED IN THE TENDER DATA SHEET TENDERING DOCUMENT FOR THE PROCUREMENT OF VACCINES.]</i>	Manual Input	WHO STANDARDS

[SAMPLE ITT]

(I) THE VACCINES TO BE SUPPLIED UNDER THE CONTRACT MUST BE LICENSED BOTH IN THE COUNTRY OF MANUFACTURE AND IN KENYA BY THE TIME OF CONTRACT SIGNING BY A RECOGNIZED NATIONAL CONTROL AUTHORITY (NCA). AN NCA IS AN ORGANIZATION THAT PERFORMS ALL SIX CRITICAL FUNCTIONS FOR CONTROL OF BIOLOGICAL PRODUCTS AS DEFINED BY THE WORLD HEALTH ORGANIZATION, NAMELY: LICENSING BASED ON PUBLISHED SET OF REQUIREMENTS; SURVEILLANCE OF VACCINE FIELD PERFORMANCE; SYSTEM OF LOT RELEASE FOR VACCINES; USE OF LABORATORY WHEN NEEDED; REGULAR INSPECTIONS FOR GOOD MANUFACTURING PRACTICE AND EVALUATION OF CLINICAL PERFORMANCE. THE LICENSE FROM COUNTRY OF MANUFACTURE MUST STATE THAT THE TENDERER IS LICENSED TO MANUFACTURE THE GOODS BY THE NCA IN THE MANUFACTURING COUNTRY. DOCUMENTARY EVIDENCE IN THE FORM OF A CERTIFIED COPY OF THE LICENSE AND A COPY OF THE VACCINE LICENSE/REGISTRATION THAT THE OFFERED VACCINE HAS BEEN LICENSED BY THE NCA S OF THE MANUFACTURER'S COUNTRY SHALL ACCOMPANY THE TENDER AND A COPY OF THE LICENSE ISSUED BY AN NCA IN KENYA MUST BE SUBMITTED BY CONTRACT SIGNING. IF THERE IS NO NCA WITH SPECIFIC BIOLOGICS EXPERTISE IN KENYA, THE TENDERER SHALL FURNISH EVIDENCE THAT THE GOODS MEET THE QUALIFICATION CRITERIA IN THE TECHNICAL SPECIFICATIONS.

	(II) IF THE GOODS OFFERED DO NOT MEET THE SPECIFIED PHARMACOPOEIA STANDARDS AS STATED IN THE TECHNIC A SPECIFICATION, THE TENDERER WILL PROVIDE SPECIFICATION; THE TENDERER WILL PROVIDE TESTING PROTOCOLS AND ALTERNATIVE REFERENCE STANDARDS.		
ITT Reference	16.4 THE PROCURING ENTITY SHALL ALWAYS COOPERATE WITH THE SUCCESSFUL TENDERER TO FACILITATE THE REGISTRATION PROCESS WITHIN KENYA. THE AGENCY AND CONTACT PERSON TO PROVIDE ADDITIONAL INFORMATION ABOUT REGISTRATION ARE IDENTIFIED IN THE TDS .	-	-
TDS Detail	THE CONTACT PERSON IN THE PROCURING ENTITY ABLE TO PROVIDE ADDITIONAL INFORMATION ABOUT REGISTRATION IS _____ (GIVE NAME, DESIGNATION, TELEPHONE NUMBER, POSTAL AND EMAIL ADDRESSES).	Manual Input	MAIMUNA JUMA ALHAMID HEAD OF PROCUREMENT TEL. +254 722955573 P.O BOX 24481-00502 NAIROBI KENYA SUPPLIES@PRIMATERESEARCH.ORG

ITT Reference	18. PERIOD OF VALIDITY OF TENDERS 18.1 TENDERS SHALL REMAIN VALID FOR THE TENDER VALIDITY PERIOD SPECIFIED IN THE TDS. THE TENDER VALIDITY PERIOD STARTS FROM THE DATE FIXED FOR THE TENDER SUBMISSION DEADLINE (AS PRESCRIBED BY THE PROCURING ENTITY IN ACCORDANCE WITH ITT 22.1). A TENDER VALID FOR A SHORTER PERIOD SHALL BE REJECTED BY THE PROCURING ENTITY AS NON-RESPONSIVE.	-	-
TDS Detail	THE TENDER VALIDITY PERIOD SHALL BE <i>[INSERT A NUMBER OF DAYS THAT IS A MULTIPLE OF SEVEN COUNTING AS OF THE DEADLINE FOR TENDER SUBMISSION]</i> DAYS.	Auto Populate	154
ITT Reference	19. TENDER SECURITY 19.1 THE TENDERER SHALL FURNISH AS PART OF ITS TENDER, EITHER A TENDER-SECURING DECLARATION OR A TENDER SECURITY, AS SPECIFIED IN THE TDS, IN ORIGINAL FORM (PHYSICAL OR ELECTRONIC) AND, IN THE CASE OF A TENDER SECURITY, IN THE AMOUNT AND CURRENCY SPECIFIED IN THE TDS.	-	-
TDS Detail	<i>[IF A TENDER SECURITY SHALL BE REQUIRED, A TENDER-SECURING DECLARATION SHALL NOT BE REQUIRED, AND VICE VERSA.]</i> A TENDER SECURITY <i>[INSERT "SHALL BE" OR "SHALL NOT BE"]</i> REQUIRED.	Manual Input	SHALL BE

TDS Detail	A TENDER-SECURING DECLARATION <i>[INSERT "SHALL BE" OR "SHALL NOT BE"]</i> REQUIRED. IF A TENDER SECURITY SHALL BE REQUIRED, THE AMOUNT AND CURRENCY OF THE TENDER SECURITY SHALL BE	Manual Input	2040000 KENYA SHILLINGS
ITT Reference	19.2 A TENDER-SECURING DECLARATION SHALL USE THE FORM INCLUDED IN SECTION IV, TENDERING FORMS. IF A TENDER IS SPECIFIED PURSUANT TO ITT 19.1, THE TENDER SECURITY SHALL BE A: I) CASH; II) A BANK GUARANTEE; III) A GUARANTEE BY AN INSURANCE COMPANY REGISTERED AND LICENSED BY THE INSURANCE REGULATORY AUTHORITY LISTED BY THE AUTHORITY; OR IV) A GUARANTEE ISSUED BY A FINANCIAL INSTITUTION APPROVED AND LICENSED BY THE CENTRAL BANK OF KENYA. V) ANY OTHER FORM SPECIFIED IN THE TDS.	-	-
TDS Detail	OTHER TYPES OF ACCEPTABLE SECURITIES	Manual Input	A BANK GUARANTEE SHALL BE REQUIRED AND NO OTHER TYPES OF SECURITIES SHALL APPLY

ITT Reference	20. FORMAT AND SIGNING OF TENDER 20.3 THE ORIGINAL AND ALL COPIES OF THE TENDER SHALL BE TYPED OR WRITTEN IN INDELIBLE INK AND SHALL BE SIGNED BY A PERSON DULY AUTHORIZED TO SIGN ON BEHALF OF THE TENDERER. THIS AUTHORIZATION SHALL CONSIST OF A WRITTEN CONFIRMATION AS SPECIFIED IN THE TDS AND SHALL BE ATTACHED TO THE TENDER. THE NAME AND POSITION HELD BY EACH PERSON SIGNING THE AUTHORIZATION MUST BE TYPED OR PRINTED BELOW THE SIGNATURE. ALL PAGES OF THE TENDER WHERE ENTRIES OR AMENDMENTS HAVE BEEN MADE SHALL BE SIGNED OR INITIALED BY THE PERSON SIGNING THE TENDER.	-	-
TDS Detail	THE WRITTEN CONFIRMATION OF AUTHORIZATION TO SIGN ON BEHALF OF THE TENDERER SHALL CONSIST OF: <i>[INSERT THE NAME AND DESCRIPTION OF THE DOCUMENTATION REQUIRED TO DEMONSTRATE THE AUTHORITY OF THE SIGNATORY TO SIGN THE TENDER].</i>	Manual Input	POWER OF ATTORNEY

ITT Reference	22. DEADLINE FOR SUBMISSION OF TENDERS 22.1 TENDERS MUST BE RECEIVED BY THE PROCURING ENTITY AT THE ADDRESS AND NO LATER THAN THE DATE AND TIME SPECIFIED IN THE TDS. WHEN SO SPECIFIED IN THE TDS, TENDERERS SHALL HAVE THE OPTION OF SUBMITTING THEIR TENDERS ELECTRONICALLY. TENDERERS SUBMITTING TENDERS ELECTRONICALLY SHALL FOLLOW THE ELECTRONIC TENDER SUBMISSION PROCEDURES SPECIFIED IN THE TDS.	-	-
TDS Detail	FOR TENDER SUBMISSION PURPOSES ONLY, THE PROCURING ENTITY'S ADDRESS IS:	Auto Populate	https://egp.treasury.go.ke/login
TDS Detail	THE DEADLINE FOR TENDER SUBMISSION IS: DATE: [INSERT DAY, MONTH, AND YEAR, E.G. 15 JUNE, 2017] TIME: [INSERT TIME, AND IDENTIFY IF A.M. OR P.M., E.G. 10:30 A.M.] AND TIME ZONE [THE DATE AND TIME SHOULD BE THE SAME AS THOSE PROVIDED IN THE SPECIFIC PROCUREMENT NOTICE - INVITATION TO TENDERS, UNLESS SUBSEQUENTLY AMENDED PURSUANT TO ITT 22.2]	Auto Populate	01/04/2026 11:00:00

ITT Reference	25. TENDER OPENING 25.1 EXCEPT AS IN THE CASES SPECIFIED IN ITT 23 AND ITT 24.2, THE PROCURING ENTITY SHALL PUBLICLY OPEN AND READ OUT IN ACCORDANCE WITH THIS ITT ALL TENDERS RECEIVED BY THE DEADLINE AT THE DATE, TIME AND PLACE SPECIFIED IN THE TDS IN THE PRESENCE OF TENDERERS' DESIGNATED REPRESENTATIVES AND ANYONE WHO CHOOSE TO ATTEND. ALL TENDERERS, OR THEIR REPRESENTATIVES AND ANY INTERESTED PARTY MAY ATTEND A PUBLIC OPENING. ANY SPECIFIC ELECTRONIC TENDER OPENING PROCEDURES REQUIRED IF ELECTRONIC TENDERING IS PERMITTED IN ACCORDANCE WITH ITT 22. 1, SHALL BE AS SPECIFIED IN THE TDS.	-	-
TDS Detail	THE TENDER OPENING SHALL TAKE PLACE [<i>INSERT WHETHER ELECTRONIC OR PREFERRED LOCATION</i>]	Manual Input	ON EGP(ONLINE)
TDS Detail	FOR ELECTRONIC TENDER OPENING ADDRESS [INSERT DATE, TIME AND LINK/URL]	Manual Input	1.04.2026 11.01 AM EAST AFRICA TIME URL;HTTPS://US06 WEB.ZOOM.US /MEETING /REGISTER/TWKU8 AGTQW2JM3LJZRL FOW

TDS Detail	<i>INSERT DATE, TIME AND LOCATION OF TENDER OPENING, WHERE APPLICABLE</i>	Manual Input	NOT APPLICABLE
ITT Reference	30. NON-CONFORMITIES, ERROR SAND OMISSIONS 30.3 PROVIDED THAT A TENDER IS SUBSTANTIALLY RESPONSIVE, THE PROCURING ENTITY SHALL RECTIFY QUANTIFIABLE NON-MATERIAL NON-CONFORMITIES RELATED TO THE TENDER PRICE. TO THIS EFFECT, THE TENDER PRICE SHALL BE ADJUSTED, FOR COMPARISON PURPOSES ONLY, TO REFLECT THE PRICE OF A MISSING OR NON-CONFORMING ITEM OR COMPONENT IN THE MANNER SPECIFIED IN THE TDS.	-	-
TDS Detail	THE ADJUSTMENT SHALL BE BASED ON THE _____ (<i>INSERT "AVERAGE" OR "HIGHEST"</i>) PRICE OF THE ITEM OR COMPONENT AS QUOTED IN OTHER SUBSTANTIALLY RESPONSIVE TENDERS. IF THE PRICE OF THE ITEM OR COMPONENT CANNOT BE DERIVED FROM THE PRICE OF OTHER SUBSTANTIALLY RESPONSIVE TENDERS, THE PROCURING ENTITY SHALL USE ITS LOWEST ESTIMATE.	Manual Input	NOT APPLICABLE
ITT Reference	32. CONVERSION TO SINGLE CURRENCY 32.1 FOR EVALUATION AND COMPARISON PURPOSES, THE CURRENCY(IES) OF THE TENDER SHALL BE CONVERTED INTO A SINGLE CURRENCY AS SPECIFIED IN THE TDS.	-	-

TDS Detail	THE CURRENCY THAT SHALL BE USED FOR TENDER EVALUATION AND COMPARISON PURPOSES TO CONVERT AT THE SELLING EXCHANGE RATE ALL TENDER PRICES EXPRESSED IN VARIOUS CURRENCIES INTO A SINGLE CURRENCY IS: <i>[INSERT NAME OF CURRENCY]</i> THE SOURCE OF EXCHANGE RATE SHALL BE: <i>[INSERT NAME OF THE SOURCE OF EXCHANGE RATES (E.G., THE CENTRAL BANK IN KENYA).]</i> THE DATE FOR THE EXCHANGE RATE SHALL BE: _____ <i>[INSERT DATE OR DATE FOR SUBMISSION OF THE TENDERS OR DATE FOR THE EXPIRY OF TENDER VALIDITY PERIOD].</i>	Manual Input	KENYA SHILLINGS CENTRAL BANK OF KENYA 01.04.2026
ITT Reference	33. MARGIN OF PREFERENCE AND RESERVATIONS 33.1 A MARGIN OF PREFERENCE MAY BE ALLOWED ON LOCALLY MANUFACTURED HEALTH GOODS ONLY WHEN THE CONTRACT IS OPEN TO INTERNATIONAL TENDERING, WHERE THE TENDER IS LIKELY TO ATTRACT FOREIGN GOODS AND WHERE THE CONTRACT EXCEEDS THE THRESHOLD SPECIFIED IN THE REGULATIONS. A MARGIN OF PREFERENCE SHALL NOT BE ALLOWED UNLESS IT IS SPECIFIED SO IN THE TDS.	-	-
TDS Detail	A MARGIN OF PREFERENCE <i>[INSERT EITHER "SHALL" OR "SHALL NOT"]</i> APPLY.	Manual Input	SHALL NOT APPLY

ITT Reference	33.2 CONTRACTS PROCURED ON THE BASIS OF INTERNATIONAL COMPETITIVE TENDERING SHALL NOT BE SUBJECT TO RESERVATIONS TO SPECIFIC GROUPS AS PROVIDED IN ITT 33.3. 33.3 WHERE IT IS INTENDED TO RESERVE A CONTRACT TO A SPECIFIC GROUP OF BUSINESSES (THESE GROUPS ARE SMALL AND MEDIUM ENTERPRISES, WOMEN ENTERPRISES, YOUTH ENTERPRISES AND ENTERPRISES OF PERSONS LIVING WITH DISABILITY, AS THE CASE MAYBE), AND WHO ARE APPROPRIATELY REGISTERED AS SUCH BY A COMPETENT AUTHORITY, A PROCURING ENTITY SHALL ENSURE THAT THE INVITATION TO TENDER SPECIFICALLY INDICATES THAT ONLY BUSINESSES OR FIRMS BELONGING TO THE GROUP ARE ELIGIBLE TO TENDER. NO TENDER SHALL BE RESERVED TO MORE THAN ONE GROUP. IF NOT SO STATED IN THE TENDER DOCUMENTS, THE INVITATION TO TENDER WILL BE OPEN TO ALL INTERESTED TENDERERS.	-	-
TDS Detail	THE SPECIFIC GROUP OF BUSINESSES IS _____	Manual Input	NONE

ITT Reference	34. EVALUATION OF TENDERS 34.6 THE PROCURING ENTITY'S EVALUATION OF A TENDER MAY REQUIRE THE CONSIDERATION OF OTHER FACTORS, IN ADDITION TO THE TENDER PRICE QUOTED IN ACCORDANCE WITH ITT 14. THESE FACTORS MAY BE RELATED TO THE CHARACTERISTICS, PERFORMANCE, AND TERMS AND CONDITIONS OF PURCHASE OF THE GOODS AND RELATED SERVICES. THE EFFECT OF THE FACTORS SELECTED, IF ANY, SHALL BE EXPRESSED IN MONETARY TERMS TO FACILITATE COMPARISON OF TENDERS, UNLESS OTHERWISE SPECIFIED IN THE TDS FROM AMONGST THOSE SET OUT IN SECTION III, EVALUATION AND QUALIFICATION CRITERIA. THE CRITERIA AND METHODOLOGIES TO BE USED SHALL BE AS SPECIFIED IN ITT 34.2	-	-
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TDS Detail	THE ADJUSTMENTS SHALL BE DETERMINED USING THE FOLLOWING CRITERIA, FROM AMONGST THOSE SET OUT IN SECTION III, EVALUATION AND QUALIFICATION CRITERIA: [REFER TO SECTION III, EVALUATION AND QUALIFICATION CRITERIA; INSERT COMPLEMENTARY DETAILS IF NECESSARY] (A) DEVIATION IN DELIVERY SCHEDULE: [INSERT YES OR NO. IF YES INSERT THE ADJUSTMENT FACTOR IN SECTION III, EVALUATION AND QUALIFICATION CRITERIA] (B) DEVIATION IN PAYMENT SCHEDULE: [INSERT YES OR NO. IF YES INSERT THE ADJUSTMENT FACTOR] IN SECTION III, EVALUATION AND QUALIFICATION CRITERIA] [INSERT ANY OTHER SPECIFIC CRITERIA IN SECTION III, EVALUATION AND QUALIFICATION CRITERIA]	Manual Input	NOT APPLICABLE
ITT Reference	40. PROCURING ENTITY'S RIGHT TO VARY QUANTITIES AT TIME OF AWARD 40.1 THE PROCURING ENTITY RESERVES THE RIGHT AT THE TIME OF CONTRACT AWARD TO INCREASE OR DECREASE, BY NOT MORE THAN 10% FOR ITEMS AS INDICATED IN THE TDS.	-	-
TDS Detail	THE MAXIMUM PERCENTAGE BY WHICH QUANTITIES MAY BE INCREASED IS: <i>[INSERT PERCENTAGE]</i>	Manual Input	10

TDS Detail	THE MAXIMUM PERCENTAGE BY WHICH QUANTITIES MAY BE DECREASED IS: <i>[INSERT PERCENTAGE]</i>	Manual Input	10
ITT Reference	46. PERFORMANCE SECURITY 46.1 WITHIN TWENTY-ONE (21) DAYS OF THE RECEIPT OF THE LETTER OF AWARD FROM THE PROCURING ENTITY, THE SUCCESSFUL TENDERER SHALL FURNISH THE PERFORMANCE SECURITY AND, ANY OTHER DOCUMENTS REQUIRED IN THE TDS, IN ACCORDANCE WITH THE GENERAL CONDITIONS OF CONTRACT, SUBJECT TO ITT 38.2 (B), 46, USING THE PERFORMANCE SECURITY AND OTHER FORMS INCLUDED IN SECTION X, CONTRACT FORMS, OR ANOTHER FORM ACCEPTABLE TO THE PROCURING ENTITY. A FOREIGN INSTITUTION PROVIDING A BANK GUARANTEE SHALL HAVE A CORRESPONDENT FINANCIAL INSTITUTION LOCATED IN KENYA, UNLESS THE PROCURING ENTITY HAS AGREED IN WRITING THAT A CORRESPONDENT BANK IS NOT REQUIRED.	-	-
TDS Detail	OTHER DOCUMENTS REQUIRED ARE	Manual Input	A BANK GUARANTEE FROM FINANCIAL INSTITUTION LOCATED IN KENYA SHALL BE REQUIRED

SECTION III - EVALUATION AND QUALIFICATION CRITERIA

Evaluation and Qualification Criteria

Detail

1. GENERAL PROVISION

Evaluation Type :-

1.1. WHEREVER A TENDERER IS REQUIRED TO STATE A MONETARY AMOUNT, TENDERERS SHOULD INDICATE THE KENYA SHILLING EQUIVALENT USING THE RATE OF EXCHANGE DETERMINED AS FOLLOWS:

A) FOR CONSTRUCTION TURN OVER OR FINANCIAL DATA REQUIRED FOR EACH YEAR-EXCHANGE RATE PREVAILING ON THE LAST DAY OF THE RESPECTIVE FINANCIAL YEARS (IN WHICH THE THE REPORT RELATES) WAS ORIGINALLY ESTABLISHED.

B) VALUE OF SINGLE CONTRACT-EXCHANGE RATE PREVAILING ON THE DATE OF THE CONTRACT SIGNATURE.

C) EXCHANGE RATES SHALL BE TAKEN FROM THE PUBLICLY AVAILABLE SOURCE IDENTIFIED IN THE ITT. ANY ERROR IN DETERMINING THE EXCHANGE RATES IN THE TENDER MAY BE CORRECTED BY THE PROCURING ENTITY.

1.2. THIS SECTION CONTAINS THE CRITERIA THAT THE PROCURING ENTITY SHALL USE TO EVALUATE TENDER AND QUALIFY TENDERERS. NO OTHER FACTORS, METHODS OR CRITERIA SHALL BE USED OTHER THAN SPECIFIED IN THIS TENDER DOCUMENT. THE TENDERER SHALL PROVIDE ALL THE INFORMATION REQUESTED IN THE FORMS INCLUDED IN SECTION IV, TENDERING FORMS. THE PROCURING ENTITY SHOULD USE THE STANDARD TENDER EVALUATION REPORT FOR GOODS AND WORKS FOR EVALUATING TENDERS.

Evaluation Type : Mandatory Evaluation Requirement

2. EVALUATION AND CONTRACT AWARD CRITERIA

Evaluation Type :-

2.1 THE PROCURING ENTITY SHALL USE THE CRITERIA AND METHODOLOGIES LISTED IN THIS SECTION TO EVALUATE TENDERS AND ARRIVE AT THE LOWEST EVALUATED TENDER. THE TENDER THAT (I) MEETS THE QUALIFICATION CRITERIA, (II) HAS BEEN DETERMINED TO BE SUBSTANTIALLY RESPONSIVE TO THE TENDER DOCUMENTS, AND (III) IS DETERMINED TO HAVE THE LOWEST EVALUATED TENDER PRICE SHALL BE SELECTED FOR AWARD OF CONTRACT.

Evaluation Type : -

3. PRELIMINARY EXAMINATION FOR DETERMINATION OF RESPONSIVENESS

Evaluation Type :-

3.1 THE PROCURING ENTITY WILL START BY EXAMINING ALL TENDERS TO ENSURE THEY MEET IN ALL RESPECTS THE ELIGIBILITY CRITERIA AND OTHER MANDATORY REQUIREMENTS IN THE ITT, AND THAT THE TENDER IS COMPLETE IN ALL ASPECTS IN MEETING THE REQUIREMENTS PROVIDED FOR IN THE PRELIMINARY EVALUATION CRITERIA OUTLINED BELOW. THE STANDARD TENDER EVALUATION REPORT DOCUMENT FOR GOODS AND WORKS FOR EVALUATING TENDERS PROVIDES VERY CLEAR GUIDE ON HOW TO DEAL WITH REVIEW OF THESE REQUIREMENTS. TENDERS THAT DO NOT PASS THE PRELIMINARY EXAMINATION WILL BE CONSIDERED NON-RESPONSIVE AND WILL NOT BE CONSIDERED FURTHER.

AS PER MANDATORY REQUIREMENTS

Evaluation Type : -

4. TENDER EVALUATION (ITT 34)

Evaluation Type :-

A) IN ADDITION TO THE CRITERIA LISTED IN ITT 34.2 (A)-(C) THE ADDITIONAL EVALUATION FACTORS AS PER ITT 34.2 (D) IS SPECIFIED AS FOLLOWS:

4.1 TO EVALUATE ITEMS OR LOTS THAT INCLUDE AT LEAST THE PERCENTAGES OF ITEMS PER LOT AND QUANTITY PER ITEM AS SPECIFIED IN ITT 14.6, IF APPLICABLE. EVALUATION OF SUCH TENDERS WILL BE CARRIED OUT AS PER THE FOLLOWING PROCEDURES.

THE AVERAGE PRICE (OR HIGHEST PRICE AS SPECIFIED IN TDS 30.3) OF AN ITEM QUOTED BY SUBSTANTIALLY RESPONSIVE TENDERS WILL BE ADDED TO THE TENDER PRICE OF THOSE WHO DID NOT QUOTE FOR THAT ITEM AND THE EQUIVALENT TOTAL COST OF THE TENDER SO DETERMINED WILL BE USED FOR TENDER COMPARISON, EVALUATION, AND AWARD.

AS PER THE TECHNICAL EVALUATION CRITERIA

Evaluation Type : -

B) **DELIVERY SCHEDULE.** (AS SPECIFIED IN THE TDS)

ONE YEAR UPON SIGNING OF THE CONTRACT.

Evaluation Type : -

C) **DEVIATION IN PAYMENT SCHEDULE.** *[INSERT ONE OF THE FOLLOWING]*

AS PER THE CONTRACT

Evaluation Type : -

D) **SPECIFIC ADDITIONAL CRITERIA**

NOT APPLICABLE

Evaluation Type : -

5. MULTIPLE CONTRACTS (ITT 34.4)

Evaluation Type :-

5.1 MULTIPLE CONTRACTS WILL BE PERMITTED IN ACCORDANCE WITH ITT 34.4. TENDERERS ARE EVALUATED ON BASIS OF LOTS AND THE LOWEST EVALUATED TENDERER IDENTIFIED FOR EACH LOT. THE PROCURING ENTITY WILL SELECT ONE OPTION OF THE TWO OPTIONS LISTED BELOW FOR AWARD OF CONTRACTS.

OPTION 1

I) IF A TENDERER WINS ONLY ONE LOT, THE TENDERER WILL BE AWARDED A CONTRACT FOR THAT LOT, PROVIDED THE TENDERER MEETS THE ELIGIBILITY AND QUALIFICATION CRITERIA FOR THAT LOT.

II) IF A TENDERER WINS MORE THAN ONE LOT, THE TENDER WILL BE AWARDED CONTRACTS FOR ALL WON LOTS, PROVIDED THE TENDERER MEETS THE AGGREGATE ELIGIBILITY AND QUALIFICATION CRITERIA FOR ALL THE LOTS. THE TENDERER WILL BE AWARDED THE COMBINATION OF LOTS FOR WHICH THE TENDERER QUALIFIES AND THE OTHERS WILL BE CONSIDERED FOR AWARD TO SECOND LOWEST THE TENDERERS.

OPTION 2

5.2 THE PROCURING ENTITY WILL CONSIDER ALL POSSIBLE COMBINATIONS OF WON LOTS [CONTRACT(S)] AND DETERMINE THE COMBINATIONS WITH THE LOWEST EVALUATED PRICE. TENDERS WILL THEN BE AWARDED TO THE TENDERER OR TENDERERS IN THE COMBINATIONS PROVIDED THE TENDERER MEETS THE AGGREGATE ELIGIBILITY AND QUALIFICATION CRITERIA FOR ALL THE WON LOTS. THE PROCURING ENTITY SHALL FIRST AWARD THE LOT OR COMBINATION OF LOTS THAT PROVIDE THE BEST ECONOMIC ADVANTAGE TO THE PROCURING ENTITY AND PROCEED SYSTEMATICALLY TO AWARD THE LOT OR COMBINATION OF THE REMAINING LOTS.

5.3 A TENDERER WILL BE AWARDED THE COMBINATION OF LOTS FOR WHICH THE TENDERER QUALIFIES AND THE OTHER LOTS WILL BE CONSIDERED FOR AWARD TO THE SECOND LOWEST TENDERERS.

Evaluation Type : -

6. ALTERNATIVE TENDERS (ITT 13.1)

Evaluation Type :-

6.1 AN ALTERNATIVE IF PERMITTED UNDER ITT 13, WILL BE EVALUATED AS FOLLOWS: THE PROCURING ENTITY SHALL CONSIDER TENDERS OFFERED FOR ALTERNATIVES AS SPECIFIED IN PART II SECTION II, SCHEDULE OF REQUIREMENTS. ONLY THE TECHNICAL ALTERNATIVES, IF ANY, OF THE TENDERER WITH THE LOWEST EVALUATED TENDER CONFORMING TO THE BASIC TECHNICAL SHALL BE CONSIDERED BY THE PROCURING ENTITY.

Evaluation Type : -

7. MARGIN OF PREFERENCE

Evaluation Type :-

7.1 IF THE TDS SO SPECIFIES, THE PROCURING ENTITY WILL GRANT A MARGIN OF PREFERENCE AS FOLLOWS:

A) TWENTY PERCENT (20%) MARGIN OF PREFERENCE OF THE EVALUATED PRICE OF THE TENDER GIVEN TO CANDIDATES OFFERING GOODS MANUFACTURED, MINED, EXTRACTED, GROWN, ASSEMBLED OR SEMI-PROCESSED IN KENYA AND THE PERCENTAGE OF SHAREHOLDING OF KENYAN CITIZENS IS MORE THAN 50%

B) FIFTEEN PERCENT (15%) MARGIN OF PREFERENCE OF THE EVALUATED TENDER GIVEN TO CANDIDATES OFFERING GOODS MANUFACTURED, MINED, EXTRACTED, GROWN, ASSEMBLED OR SEMI-PROCESSED IN KENYA.

C) TEN PERCENT (10) MARGIN OF PREFERENCE OF THE EVALUATED PRICE OF THE TENDER, WHERE THE PERCENTAGE OF SHAREHOLDING OF KENYAN CITIZENS IS MORE THAN FIFTY PERCENT (50%);

D) EIGHT PERCENT (8%) MARGIN OF PREFERENCE OF THE EVALUATED PRICE OF THE TENDER, WHERE THE PERCENTAGE OF SHAREHOLDING OF KENYAN CITIZENS IS LESS THAN FIFTY PERCENT (50%) BUT ABOVE TWENTY PERCENT (20%).

E) GOODS ASSEMBLED OR SEMI-PROCESSED IN KENYA SHALL HAVE A LOCAL CONTENT OF NOT LESS THAN 40%.

QUALIFICATION, SUCH INFORMATION, INCLUDING DETAILS OF THE GOODS PRODUCED IN KENYA, SO AS TO DETERMINE WHETHER, ACCORDING TO THE CLASSIFICATION ESTABLISHED BY THE PROCURING ENTITY, A PARTICULAR CATEGORY OF GOODS OR GROUP OF GOODS QUALIFIES FOR A MARGIN OF PREFERENCE.

B) AFTER TENDERS HAVE BEEN RECEIVED AND REVIEWED BY THE PROCURING ENTITY, GOODS OFFERED IN THE RESPONSIVE TENDERS SHALL BE ASSESSED TO ASCERTAIN THEY ARE MANUFACTURED, MINED, EXTRACTED, GROWN, ASSEMBLED OR SEMI- PROCESSED IN KENYA. RESPONSIVE TENDERS SHALL BE CLASSIFIED INTO THE FOLLOWING GROUPS:

I) GROUP A: TENDERS OFFERING GOODS MANUFACTURED IN KENYA, FOR WHICH (A) LABOR, RAW MATERIALS, AND COMPONENTS FROM WITHIN KENYA ACCOUNT FOR MORE THAN FORTY (40) PERCENT OF THE EX-WORKS PRICE; AND (B) THE PRODUCTION FACILITY IN WHICH THEY WILL BE MANUFACTURED OR ASSEMBLED HAS BEEN ENGAGED IN MANUFACTURING OR ASSEMBLING SUCH GOODS AT LEAST SINCE THE DATE OF TENDER SUBMISSION DATE.

II) GROUP B: ALL OTHER TENDERS OFFERING GOODS MANUFACTURED IN KENYA.

III) GROUP C: TENDERS OFFERING GOODS MANUFACTURED OUTSIDE KENYA THAT HAVE BEEN ALREADY IMPORTED OR THAT WILL BE IMPORTED:

A) TO FACILITATE THIS CLASSIFICATION BY THE PROCURING ENTITY, THE TENDERER SHALL COMPLETE WHICHEVER VERSION OF THE PRICE SCHEDULE FURNISHED IN THE TENDERING DOCUMENT IS APPROPRIATE, PROVIDED HOWEVER, THAT THE COMPLETION OF AN INCORRECT VERSION OF THE PRICE SCHEDULE BY THE TENDERER SHALL NOT RESULT IN REJECTION OF ITS TENDER, BUT MERELY IN THE PROCURING ENTITY'S RECLASSIFICATION OF THE TENDER IN TO ITS APPROPRIATE TENDER GROUP.

B) THE TENDERS IN EACH GROUP WILL THEN BE COMPARED TO DETERMINE THE TENDER WITH THE LOWEST EVALUATED COST IN THAT GROUP. THE LOWEST EVALUATED COST TENDER FROM EACH GROUP SHALL THEN BE COMPARED WITH EACH OTHER AND IF AS A RESULT OF THIS COMPARISON A TENDER FROM GROUP A OR GROUP B IS THE LOWEST, IT SHALL BE SELECTED FOR THE AWARD.

C) IF AS A RESULT OF THE PRECEDING COMPARISON, A TENDER FROM GROUP C IS THE LOWEST EVALUATED COST, AN AMOUNT EQUAL TO OR 15% OF THE RESPECTIVE TENDER PRICE, INCLUDING UNCONDITIONAL DISCOUNTS AND EXCLUDING PROVISIONAL SUMS, IF ANY, SHALL BE ADDED TO THE EVALUATED PRICE OFFERED IN EACH TENDER FROM GROUP C. IF THE TENDER FROM GROUP C IS STILL THE LOWEST TENDER, IT SHALL BE SELECTED FOR AWARD. IF NOT, THE LOWEST EVALUATED TENDER FROM GROUP A OR B BASED ON THE FIRST EVALUATION PRICE SHALL BE SELECTED.

Evaluation Type :-

8. POST QUALIFICATION AND CONTRACT AWARD (ITT 37), MORE SPECIFICALLY

Evaluation Type :-

8.1 AFTER DETERMINING THE SUBSTANTIALLY RESPONSIVE TENDER WHICH OFFERS THE LOWEST-EVALUATED PRICE, WHETHER THE TENDERER IS A MANUFACTURER OR JUST A SUPPLIER: THE PROCURING ENTITY SHALL CARRY OUT THE POST-QUALIFICATION, IF NO PREQUALIFICATION WAS DONE USING THE FOLLOWING CRITERIA:

A) IN CASE THE TENDER WAS SUBJECT TO POST-QUALIFICATION, THE CONTRACT SHALL BE AWARDED TO THE LOWEST EVALUATED TENDERER, SUBJECT TO CONFIRMATION OF PREQUALIFICATION DATA, IF SO REQUIRED.

B) IN CASE THE TENDER WAS NOT SUBJECT TO POST-QUALIFICATION, THE TENDER THAT HAS BEEN DETERMINED TO BE THE LOWEST EVALUATED TENDERER SHALL BE CONSIDERED FOR CONTRACT AWARD, SUBJECT TO MEETING EACH OF THE FOLLOWING CONDITIONS.

I) THE TENDERER SHALL DEMONSTRATE THAT IT HAS ACCESS TO, OR HAS AVAILABLE, LIQUID ASSETS, UNENCUMBERED REAL ASSETS, LINES OF CREDIT, AND OTHER FINANCIAL MEANS (INDEPENDENT OF ANY CONTRACTUAL ADVANCE PAYMENT) SUFFICIENT TO MEET THE CONSTRUCTION CASH FLOW OF KENYA SHILLINGS.

II) MINIMUM AVERAGE ANNUAL CONSTRUCTION TURNOVER OF KENYA SHILLINGS [**INSERT AMOUNT**], EQUIVALENT CALCULATED AS TOTAL CERTIFIED PAYMENTS RECEIVED FOR CONTRACTS IN PROGRESS AND/OR COMPLETED WITHIN THE LAST [**INSERT OF YEAR**] YEARS.

III) AT LEAST (**INSERT NUMBER**) OF CONTRACT(S) OF A SIMILAR NATURE EXECUTED WITHIN KENYA, OR THE EAST AFRICAN COMMUNITY OR ABROAD, THAT HAVE BEEN SATISFACTORILY AND SUBSTANTIALLY COMPLETED AS A PRIME CONTRACTOR, OR JOINT VENTURE MEMBER OR SUB-CONTRACT OR EACH OF MINIMUM VALUE KENYA SHILLINGS EQUIVALENT.

Evaluation Type : -

IV) OTHER CONDITIONS DEPENDING ON THEIR SERIOUSNESS.

Evaluation Type : -

A) HISTORY OF NON-PERFORMING CONTRACTS:

TENDERER AND EACH MEMBER OF JV IN CASE THE TENDERER IS A JV, SHALL DEMONSTRATE THAT NON- PERFORMANCE OF A CONTRACT DID NOT OCCUR BECAUSE OF THE DEFAULT OF THE TENDERER, OR THE MEMBER OF A JV IN THE LAST (SPECIFY YEARS). THE REQUIRED INFORMATION SHALL BE FURNISHED IN THE APPROPRIATE FORM.

Evaluation Type : -

B) PENDING LITIGATION

FINANCIAL POSITION AND PROSPECTIVE LONG-TERM PROFITABILITY OF THE SINGLE TENDERER, AND IN THE CASE THE TENDERER IS A JV, OF EACH MEMBER OF THE JV, SHALL REMAIN SOUND ACCORDING TO CRITERIA ESTABLISHED WITH RESPECT TO FINANCIAL CAPABILITY UNDER PARAGRAPH (I) ABOVE IF ALL PENDING LITIGATION WILL BE RESOLVED AGAINST THE TENDERER. TENDERER SHALL PROVIDE INFORMATION ON PENDING LITIGATIONS IN THE APPROPRIATE FORM.

Evaluation Type : -

C) LITIGATION HISTORY

THERE SHALL BE NO CONSISTENT HISTORY OF COURT/ARBITRAL AWARD DECISIONS AGAINST THE TENDERER, IN THE LAST (SPECIFY YEARS). ALL PARTIES TO THE CONTRACT SHALL FURNISH THE INFORMATION IN THE APPROPRIATE FORM ABOUT ANY LITIGATION OR ARBITRATION RESULTING FROM CONTRACTS COMPLETED OR ONGOING UNDER ITS EXECUTION OVER THE YEARS SPECIFIED. A CONSISTENT HISTORY OF AWARDS AGAINST THE TENDERER OR ANY MEMBER OF A JV MAY RESULT IN REJECTION OF THE TENDER.

Evaluation Type : -

ELIGIBILITY AND QUALIFICATION CRITERIA			COMPLIANCE REQUIREMENTS				DOCUMENTATION
N O .	SUBJECT	REQUIREMENT	SINGLE ENTITY	JOINT VENTURE (EXISTING OR INTENDED)			SUBMISSION REQUIREMENTS
				ALL MEMBER COMPANIES	EAC MEMBER	ON MEMBER	
1. ELIGIBILITY							
1 . 1	NATIONALITY	NATIONALITY IN ACCORDANCE WITH ITT 4.4	MUST MEET REQUIREMENT	MUST MEET REQUIREMENT	MUST MEET REQUIREMENT	N/A	FORMS ELI – 1.1 WITH ATTACHEDMENTS
1 . 2	CONFLICT OF INTEREST	NO CONFLICTS OF INTEREST IN ACCORDANCE WITH ITT 4.3	MUST MEET REQUIREMENT	MUST MEET REQUIREMENT	MUST MEET REQUIREMENT	N/A	TENDER SUBMISSION LETTER

1 3	BANK ELIGIBILITY	NOT HAVING BEEN DECLARED INELIGIBLE BY THE PPRA AS DESCRIBED IN ITT 4.5 AND 5.1	MU ST MEE T RE QUI REM ENT	MU ST MEE T RE QUI REM ENT	MUS T M EET REQ UIRE MEN T	N/A	TEND ER SU BMISS ION L ETTER
1 4	STATE-OWNED ENTERPRISE OF KENYA	MEET CONDITIONS OF ITT 4.6	MU ST MEE T RE QUI REM ENT	MU ST MEE T RE QUI REM ENT	MUS T M EET REQ UIRE MEN T	N/A	FORM S ELI - 1.1 WITH ATTA CHME NTS
1 5	UNITED NATIONS RESOLUTION OR KENYA LAW	NOT HAVING BEEN EXCLUDED AS A RESULT OF PROHIBITION IN KENYA LAWS OR OFFICIAL REGULATIONS AGAINST COMMERCIAL RELATIONS WITH THE TENDERER'S COUNTRY, OR BY AN ACT OF COMPLIANCE WITH UN SECURITY COUNCIL RESOLUTION, BOTH IN ACCORDANCE WITH ITT 4.9 AND SECTION V.	MU ST MEE T RE QUI REM ENT	MU ST MEE T RE QUI REM ENT	MUS T M EET REQ UIRE MEN T	N/A	FORM S ELI - 1.1 WITH ATTA CHME NTS
2. HISTORICAL CONTRACT NON-PERFORMANCE							
2 1	HISTORY OF NON- PERFORMING CONTRACTS	NON-PERFORMANCE OF A CONTRACT ^[1] DID NOT OCCUR AS A RESULT OF SUPPLIER'S DEFAULT SINCE 1ST JANUARY <i>[INSERT YEAR]</i> .	MU ST MEE T RE QUI REM ENT 2	MU ST MEE T RE QUI REM ENT S	MUS T M EET REQ UIRE MEN T ^[2]	N/A	FORM PER-1
2 2	SUSPENSION BASED ON EXECUTION OF TENDER/PROPOSAL SECURING DECLARATION BY THE PROCURING ENTITY	NOT UNDER SUSPENSION BASED ON EXECUTION OF A TENDER/PROPOSAL SECURING DECLARATION PURSUANT TO ITT 4.7	MU ST MEE T RE QUI REM ENT	MU ST MEE T RE QUI REM ENT	MUS T M EET REQ UIRE MEN T	N/A	TEND ER SU BMISS ION L ETTER
2 3	PENDING LITIGATION	TENDERER'S FINANCIAL POSITION AND PROSPECTIVE LONG-TERM PROFITABILITY STILL SOUND ACCORDING TO CRITERIA ESTABLISHED IN 8.1 BELOW AND ASSUMING THAT ALL PENDING LITIGATION WILL BE RESOLVED AGAINST THE TENDERER	MU ST MEE T RE QUI REM ENT	N/A	MUS T M EET REQ UIRE MEN T	N/A	FORM PER-1

2	LITIGATION HISTORY	NO CONSISTENT HISTORY OF COURT/ARBITRAL AWARD DECISIONS AGAINST THE TENDERER SINCE 1ST JANUARY <i>[INSERT YEAR]</i> [3]	MU ST MEE T RE QUI REM ENT	MU ST MEE T RE QUI REM ENT	MUS T M EET REQ UIRE MEN T	N/A	FORM PER- 1
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3. FINANCIAL SITUATION AND PERFORMANCE

3	FINANCIAL CAPABILITIES	THE AUDITED BALANCE SHEETS OR, IF NOT REQUIRED BY THE LAWS OF THE TENDERER'S COUNTRY, OTHER FINANCIAL STATEMENTS ACCEPTABLE TO THE PROCURING ENTITY, FOR THE LAST <i>[INSERT NUMBER]</i> YEARS SHALL BE SUBMITTED AND MUST DEMONSTRATE THE CURRENT SOUNDNESS OF THE TENDERER'S FINANCIAL POSITION AND INDICATE ITS PROSPECTIVE LONG-TERM PROFITABILITY.	MU ST MEE T RE QUI REM ENT	N/A	MUS T M EET REQ UIRE MEN T	N/A	
3	AVERAGE ANNUAL TURNOVER	AVERAGE ANNUAL TURNOVER (AVERAGE ANNUAL SALES REVENUE) FROM SUPPLY OF HEALTH SECTOR GOODS OF US\$ <i>[INSERT AMOUNT IN US\$ EQUIVALENT IN WORDS AND FIGURES]</i> , CALCULATED AS TOTAL CERTIFIED PAYMENTS RECEIVED FOR CONTRACTS IN PROGRESS AND/OR COMPLETED DURING THE LAST THREE YEARS. <i>[INSERT A FIGURE WHICH IS AT LEAST FIVE TIMES THE ESTIMATED CONTRACT AMOUNT]</i>	MU ST MEE T RE QUI REM ENT	MU ST MEE T RE QUI REM ENT	N/A	N/A	FORM FIN – 3.2
3	CURRENT COMMITMENTS	THE TENDERER SHALL ALSO DEMONSTRATE, TO THE SATISFACTION OF THE PROCURING ENTITY, THAT IT HAS ADEQUATE SOURCES OF FINANCE TO MEET THE CASH FLOW REQUIREMENTS ON CONTRACTS CURRENTLY IN PROGRESS AND FOR FUTURE CONTRACT COMMITMENTS.					FORM CON -1

4. EXPERIENCE

4	GENERAL EXPERIENCE	EXPERIENCE IN SUPPLY OF HEALTH SECTOR GOODS FOR AT LEAST THE LAST THREE YEARS	MU ST MEE T RE QUI REM ENT	N/A	MUS T M EET REQ UIRE MEN T	N/A	FORM EXP -1
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4 . 2 (A)	SPECIFIC EXPERIENCE	1. DOCUMENTARY EVIDENCE OF THE TENDERER'S QUALIFICATIONS TO PERFORM THE CONTRACT IN ACCORDANCE WITH 4.2 (B) (I) BELOW.	MU ST MEE T RE QUI REM ENT	MU ST MEE T RE QUI REM ENT	N/A	MU ST MEE T RE QUI RE ME NT
		1. TECHNICAL AND PRODUCTION CAPABILITY IN ACCORDANCE WITH 4.2 (B) (II) AS BELOW.			N/A	
		1. EXPERIENCE ON PACKAGING, DISTRIBUTION IN ACCORDANCE WITH 4.2 (B) (III) BELOW.	MU ST MEE T RE QUI REM ENT	MU ST MEE T RE QUI REM ENT	N/A	MU ST MEE T RE QUI RE ME NT
			MU ST MEE T RE QUI REM ENT	MU ST MEE T RE QUI REM ENT		MU ST MEE T RE QUI RE ME NT
4 . 2 (B)	SEE BELOW FOR DETAILS					

[1] NONPERFORMANCE, AS DECIDED BY THE PROCURING ENTITY, SHALL INCLUDE ALL CONTRACTS WHERE (A) NONPERFORMANCE WAS NOT CHALLENGED BY THE SUPPLIER, INCLUDING THROUGH REFERRAL TO THE DISPUTE RESOLUTION MECHANISM UNDER THE RESPECTIVE CONTRACT, AND (B) CONTRACTS THAT WERE SO CHALLENGED BUT FULLY SETTLED AGAINST THE SUPPLIER. NONPERFORMANCE SHALL NOT INCLUDE CONTRACTS WHERE PROCURING ENTITY'S DECISION WAS OVERRULED BY THE DISPUTE RESOLUTION MECHANISM. NONPERFORMANCE MUST BE BASED ON ALL INFORMATION ON FULLY SETTLED DISPUTES OR LITIGATION, I.E. DISPUTE OR LITIGATION THAT HAS BEEN RESOLVED IN ACCORDANCE WITH THE DISPUTE RESOLUTION MECHANISM UNDER THE RESPECTIVE CONTRACT AND WHERE ALL APPEAL INSTANCES AVAILABLE TO THE TENDERER HAVE BEEN EXHAUSTED.

[2] THIS REQUIREMENT ALSO APPLIES TO CONTRACTS EXECUTED BY THE TENDERER AS JV MEMBER.

[3] THE TENDERER SHALL PROVIDE ACCURATE INFORMATION ON THE TENDER SUBMISSION FORM ABOUT ANY LITIGATION OR ARBITRATION RESULTING FROM CONTRACTS COMPLETED OR ONGOING UNDER ITS EXECUTION OVER THE LAST FIVE YEARS. A CONSISTENT HISTORY OF COURT /ARBITRAL AWARDS AGAINST THE TENDERER OR ANY MEMBER OF A JOINT VENTURE MAY RESULT IN DISQUALIFYING THE TENDERER.

Evaluation Type :-

SPECIFIC EXPERIENCE REQUIREMENTS

THE SPECIFIC EXPERIENCE REQUIREMENTS UNDER 4.2 (B) (FROM THE TABLE ABOVE) ARE AS FOLLOWS:

4.2 (B) (I) DOCUMENTARY EVIDENCE IN ACCORDANCE WITH TDS ITT 11.1 4.2 (B)

(II) TECHNICAL AND PRODUCTION CAPABILITY.

THE TENDERER SHALL PROVIDE EVIDENCE THAT IT HAS THE TECHNICAL, AND PRODUCTION CAPABILITY NECESSARY TO PERFORM THE CONTRACT:

(I) THAT IT HAS SUCCESSFULLY COMPLETED OR SUBSTANTIALLY COMPLETED AT LEAST [INSERT NUMBER] SIMILAR CONTRACTS FOR SUPPLY OF THE GOODS AND WITHIN THE LAST FIVE YEARS.[
THE NUMBER OF SIMILAR CONTRACTS REQUIRED SHOULD BE NOT LESS THAN THREE AND NOT MORE THAN FIVE (NORMALLY FOUR),DEPENDING ON THE SIZE AND COMPLEXITY OF THE SUBJECT CONTRACT].SIMILAR CONTRACTS ARE THOSE OF APPROXIMATELY THE SAME SIZE AND THAT INCLUDES COMPARABLE PRODUCTS, E.G., CAPSULES, TABLETS, VACCINES.
THE GOODS MAY HAVE BEEN SUPPLIED BY THE TENDERER AS A MANUFACTURER OR BY ITS AGENT, WITH REFERENCES BEING SUBMITTED TO CONFIRM SATISFACTORY PERFORMANCE.

(II) THAT IT HAS ACHIEVED AN ANNUAL AVERAGE PRODUCTION RATE OF [THE ANNUAL PRODUCTION RATE REQUIRED SHOULD BE AT LEAST THREE TIMES THE QUANTITIES SPECIFIED UNDER THE CONTRACT] DURING THE LAST THREE YEARS.

4.2 (B) (III) EXPERIENCE ON PACKAGING, DISTRIBUTION AND TRANSPORTATION

THE TENDERER SHOULD PROVIDE PROOF OF EXPERIENCE WITH AND KNOWLEDGE OF MODES OF PACKING, DISTRIBUTION, AND TRANSPORTATION OF PHARMACEUTICALS SIMILAR TO THOSE SUBJECT TO TENDERING UNDER LOGISTICAL AND CLIMATIC CONDITIONS SIMILAR TO THE ONES IN KENYA. IT SHOULD PROVIDE NAMES OF COUNTRIES TO WHICH THE TENDERER HAS SUPPLIED (INCLUDING PACKAGED, DISTRIBUTED, AND TRANSPORTED) PRODUCTS WORTH AT LEAST THE AMOUNT [INSERT THE AMOUNT] WITHIN THE PAST THREE YEARS.

Evaluation Type :-

MANDATORY REQUIREMENTS

Mandatory Evaluation Requirement

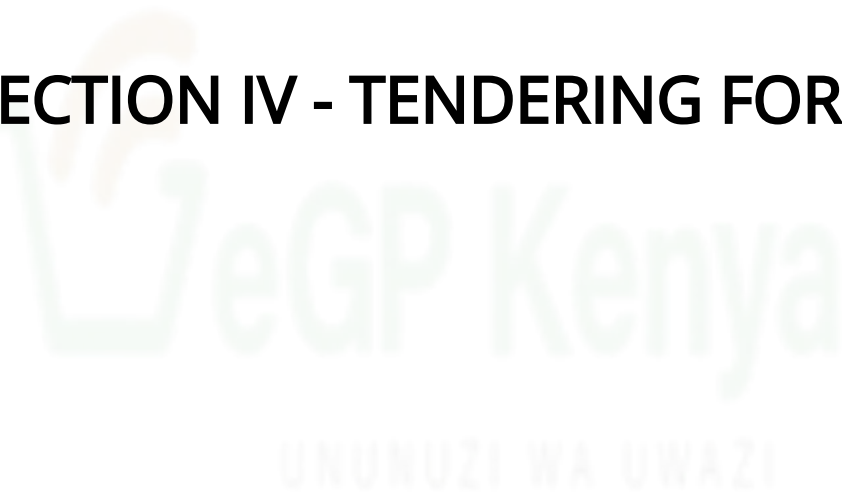
Evaluation Requirement	Is Document Required from Supplier ?
SELF DECLARATION FORM SD1 AND SD2	Yes
COMPANY REGISTRATION CERTIFICATE IN THE COUNTRY OF ORIGIN	Yes
VALID TAX COMPLIANCE CERTIFICATE	Yes
CERTIFIED COPY OF RECENT CR12 FORM OR EQUIVALENT ISSUED NOT EARLIER THAN 6 MONTHS FROM TENDER CLOSING DATE	Yes
MUST SUBMIT TENDER SECURITY OF 2040000 KENYA SHILLINGS	Yes
MUST BE A LICENSED BIOLOGICAL MANUFACTURER	Yes
MUST HOLD A VALID GMP CERTIFICATION FOR BIOLOGICAL PRODUCTS	Yes
HAVE A MINIMUM 5 YEARS CONTINUOUS PRODUCTION OF SNAKE ANTIVENOM	Yes
MUST DEMONSTRATE ANNUAL PRODUCTION CAPACITY SUFFICIENT TO MEET CONTRACT QUANTITY	Yes
MUST PROVIDE EVIDENCE OF FUNCTIONING PHARMACOVIGILANCE SYSTEM	Yes
MUST HAVE A MANUFACTURING FACILITY APPROVED BY WHO GENEVA FOR MANUFACTURE OF SNAKE VENOM ANTISERUM FOR SUB SAHARAN AFRICA	Yes

PROOF OF PRESENCE OF COMPANY'S
PRODUCT DISTRIBUTORSHIP IN KENYA

Yes



SECTION IV - TENDERING FORMS



TENDERER'S DECLARATION : FORM OF TENDER

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

TENDERER DECLARATION	Supplier response
a) No reservations: We have examined and have no reservations to the Tendering document, including Addenda issued in accordance with Instructions to tenderers (ITT 7);	
b) Eligibility: We meet the eligibility requirements and have no conflict of interest in accordance with ITT 3;	
c) Tender/Proposal-Securing Declaration: We have not been suspended nor declared ineligible by the Procuring Entity based on execution of a Tender-Securing Declaration. Or Proposal-Securing Declaration in Kenya in accordance with ITT 3.6;	
d) Conformity: We offer to supply in conformity with the Tendering document and in accordance with the Delivery Schedules specified in the Schedule of Requirements.	

e) Tender Validity Period: Our Tender shall be valid for the period specified in TDS 17.1 (as amended, if applicable) from the date fixed for the Tender submission deadline specified in TDS 21.1 (as amended, if applicable), and it shall remain binding upon us and may be accepted at any time before the expiration of that period;	
f) Performance Security: If our Tender is accepted, we commit to obtain a performance security in accordance with the Tender document;	
g) One Tender per tenderer: We are not submitting any other Tender(s) as an individual tenderer, and we are not participating in any other Tender(s) as a Joint Venture member, or as a subcontractor, and meet the requirements of ITT 3.5, other than alternative Tenders submitted in accordance with ITT 12;	
h) Suspension and Debarment: We, along with any of our subcontractors, suppliers, consultants, manufacturers, or service providers for any part of the contract, are not subject to, and not controlled by any entity or individual that is subject to, a temporary suspension by the procuring entity or a debarment imposed by the Public Procurement Regulatory Authority. Further, we are not ineligible under the Kenya laws or official regulations or pursuant to a decision of International organizations to which Kenya is a member;	

i) Binding Contract: We understand that this Tender, together with your written acceptance thereof included in your Letter of Award, shall not constitute a binding contract between us, until a formal contract is prepared and executed;	
j) Procuring Entity Not Bound to Accept: We understand that you are not bound to accept the lowest evaluated cost Tender, the Best Evaluated Tender or any other Tender that you may receive;	
k) Fraud and Corruption: We hereby certify that we have taken steps to ensure that no person acting for us or on our behalf engages in any type of Fraud and Corruption. Further, we confirm that we have read and understood the full content and scope of fraud and corruption as informed in "Appendix 1- Fraud and Corruption" .	
l) Code of Ethical Conduct: We have read and understood the contents of the Code of Ethics for persons participating in Public Procurement and Asset Disposal and my responsibilities under the Code and we commit to abide by the provisions of the Code of Ethics copy available from www.ppra.go.ke during the procurement process and the execution of any resulting contract;	

m) Anti-competitive and Collusive practices:
We hereby certify and confirm that the tender is genuine, non-collusive and made with the intention of accepting the contract if awarded. We have arrived at the Tender independently without consultation, communication, agreement or arrangement with, any competitor on but not limited to prices; methods, factors or formulas used to calculate prices; the intention or decision to submit, or not to submit, a tender; or the submission of a tender which does not meet the specifications of the request for Tenders except as disclosed in the Tenderer's Eligibility - Confidential Business Questionnaire. Further, we confirm that the terms of the Tender have not been, and will not be, knowingly disclosed by the Tenderer, directly or indirectly to any competitor, prior to the date and time of the official tender opening, or of the awarding of the Contract, whichever comes first, unless otherwise required by law or as specifically disclosed above.;

n) Beneficial Ownership Information: We commit to provide to the procuring entity the Beneficial Ownership Information in conformity with the Beneficial Ownership Disclosure Form upon receipt of notification of intention to enter into a contract in the event we are the successful tenderer in this subject procurement proceeding;

o) We, the Tenderer, have duly completed, signed and stamped the following Forms as part of our Tender:

i) Tenderer's Eligibility & Confidential Business Questionnaire	
ii) Self-Declaration of the Tenderer (FORM SD 1 & SD 2)	
Table Footer : -	



OPTION 1; TENDER PRICE (ONE LOT) : FORM OF TENDER

Technical Evaluation Process : No

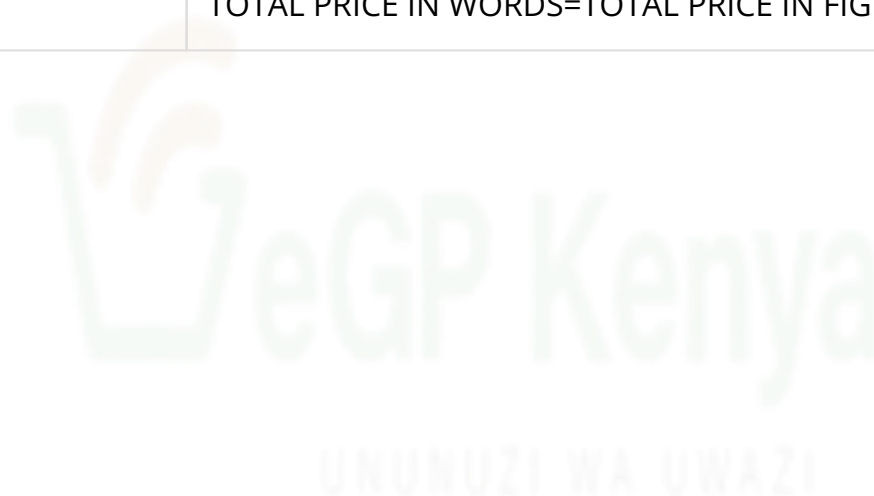
Consider for Technical Evaluation : No

Table Header : THE TOTAL PRICE OF OUR TENDER, INCLUDING ANY DISCOUNTS OFFERED

TOTAL PRICE IN FIGURES	TOTAL PRICE IN WORDS	CURRENCY

Table Footer : -

Sr no.	Formula
1	TOTAL PRICE IN WORDS=TOTAL PRICE IN FIGURES



OPTION 2; TENDER PRICE (MULTIPLE LOTS) : FORM OF TENDER

Technical Evaluation Process : No

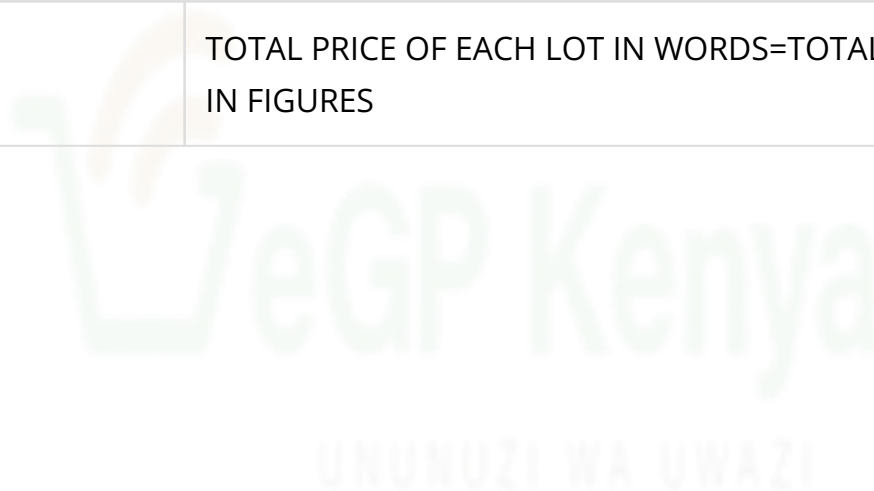
Consider for Technical Evaluation : No

Table Header :

LOT NO/DESCRIPTION	TOTAL PRICE OF EACH LOT IN FIGURES	TOTAL PRICE OF EACH LOT IN WORDS	CURRENCY

Table Footer : -

Sr no.	Formula
1	TOTAL PRICE OF EACH LOT IN WORDS=TOTAL PRICE OF EACH LOT IN FIGURES



THE DISCOUNTS OFFERED AND THE METHODOLOGY FOR THEIR APPLICATION ARE: : FORM OF TENDER

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : DISCOUNTS:

DISCOUNTS OFFERED	II) THE EXACT METHOD OF CALCULATIONS TO DETERMINE THE NET PRICE AFTER APPLICATION OF DISCOUNTS	AMOUNT OF DISCOUNT IN FIGURES	AMOUNT OF DISCOUNT IN WORDS

Table Footer : -

Sr no.	Formula
1	AMOUNT OF DISCOUNT IN WORDS=AMOUNT OF DISCOUNT IN FIGURES

COMMISSIONS, GRATUITIES AND FEES: : FORM OF TENDER

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : WE HAVE PAID, OR WILL PAY THE FOLLOWING COMMISSIONS, GRATUITIES, OR FEES WITH RESPECT TO THE TENDERING PROCESS OF THE CONTRACT: [INSERT COMPLETE NAME OF EACH RECIPIENT, ITS FULL ADDRESS, THE REASON FOR WHICH EACH COMMISSION OR GRATUITY WAS PAID AND THE AMOUNT AND CURRENCY OF EACH SUCH COMMISSION OR GRATUITY].

NAME OF RECEPIENT	ADDRESS	REASON(S)	AMOUNT	CURRENCY

Table Footer : IF NONE HAS BEEN PAID OR IS TO BE PAID, INDICATE "NONE."



STATE-OWNED ENTERPRISE OR INSTITUTION : FORM OF TENDER

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header :

STATEMENT	TENDERER'S RESPONSE
WE ARE NOT A STATE-OWNED ENTERPRISE OR INSTITUTION	
WE ARE A STATE OWNED ENTERPRISE OR INSTITUTION BUT MEET THE REQUIREMENTS OF ITT 3.1 & 3.8	

Table Footer : -



SIGN OFF : FORM OF TENDER

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header :

STATEMENT	TENDERER'S RESPONSE	NAME	TITLE /DESIGNATION	DATE
WE CONFIRM THAT THE INFORMATION GIVEN ABOVE IS CORRECT AND WE UNDERSTAND THAT GIVING FALSE INFORMATION WILL LEAD TO DISQUALIFICATION OF OUR TENDER				

Table Footer : IN THE CASE OF THE TENDER SUBMITTED BY A JOINT VENTURE SPECIFY THE NAME OF THE JOINT VENTURE AS TENDERER. **: PERSON SIGNING THE TENDER SHALL HAVE THE POWER OF ATTORNEY GIVEN BY THE TENDERER. THE POWER OF ATTORNEY SHALL BE ATTACHED WITH THE TENDER SCHEDULES.

1. LIST OF GOODS AND DELIVERY SCHEDULE : SCHEDULE OF REQUIREMENTS

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : [THE PROCURING ENTITY SHALL FILL IN THIS TABLE, WITH THE EXCEPTION OF THE COLUMN “TENDERER'S OFFERED DELIVERY DATE ”TO BE FILLED BY THE TENDERER]							
LINE ITEM NO.	DESCRIPTION OF GOODS	QUANTITY	UNIT OF MEASURE	FINAL (PROJECT SITE) DESTINATION AS SPECIFIED IN TDS	EARLIEST DELIVERY DATE(AS PER INCOTERMS)	LATEST DELIVERY DATE (AS PER INCOTERMS)	TENDERER'S OFFERED DELIVERY DATE [TO BE PROVIDED BY THE TENDERER](AS PER INCOTERMS)
1	ANTIVENOM	1	EACH	KIPRE	2027-04-30	2027-05-30	
Table Footer : -							

TENDERER'S DETAILS : FORM CON 1: TENDERER'S ELIGIBILITY & CONFIDENTIAL BUSINESS QUESTIONNAIRE FORM

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

TENDERER'S NAME	TENDERER'S ACTUAL OR INTENDED COUNTRY OF REGISTRATION	TENDERER'S YEAR OF REGISTRATION	TENDERER'S LEGAL ADDRESS IN COUNTRY OF REGISTRATION

Table Footer : -



JV DETAILS : FORM CON 1: TENDERER'S ELIGIBILITY & CONFIDENTIAL BUSINESS QUESTIONNAIRE FORM

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -			
JV'S NAME	JV'S ACTUAL OR INTENDED COUNTRY OF REGISTRATION	JV'S YEAR OF REGISTRATION	JV'S LEGAL ADDRESS IN COUNTRY OF REGISTRATION
Table Footer : -			



TENDERER'S/JV MEMBER'S AUTHORIZED REPRESENTATIVE INFORMATION : FORM CON 1: TENDERER'S ELIGIBILITY & CONFIDENTIAL BUSINESS QUESTIONNAIRE FORM

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

NAME	ADDRESS	TELEPHONE NO.	EMAIL

Table Footer : -



ATTACHED COPIES OF ORIGINAL DOCUMENTS : FORM CON 1: TENDERER'S ELIGIBILITY & CONFIDENTIAL BUSINESS QUESTIONNAIRE FORM

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : TENDERER'S ARE REQUIRED TO ATTACH COPIES OF THE FOLLOWING DOCUMENTS:

STATEMENT	TENDERER'S RESPONSE
A) FOR KENYAN TENDERERS A CURRENT TAX COMPLIANCE CERTIFICATE OR TAX EXEMPTION CERTIFICATE ISSUED BY THE KENYA REVENUE AUTHORITY IN ACCORDANCE WITH ITT 4.12.	
B) ARTICLES OF INCORPORATION (OR EQUIVALENT DOCUMENTS OF CONSTITUTION OR ASSOCIATION), AND/OR DOCUMENTS OF REGISTRATION OF THE LEGAL ENTITY NAMED ABOVE, IN ACCORDANCE WITH ITT 4.4	
C) IN CASE OF JV, LETTER OF INTENT TO FORM JV OR JV AGREEMENT, IN ACCORDANCE WITH ITT 11.2	
D) IN CASE OF STATE-OWNED ENTERPRISE OR INSTITUTION, IN ACCORDANCE WITH ITT 4.1 DOCUMENTS ESTABLISHING: (I) LEGAL AND FINANCIAL AUTONOMY (II) OPERATION UNDER COMMERCIAL LAW (III) ESTABLISHING THAT THE TENDERER IS NOT UNDER THE SUPERVISION OF THE PROCURING ENTITY	
E) INCLUDED ARE THE ORGANIZATIONAL CHART AND LIST OF BOARD OF DIRECTORS	

Table Footer : -

A) SOLE PROPRIETOR DETAILS. : FORM CON 1: TENDERER'S ELIGIBILITY & CONFIDENTIAL BUSINESS QUESTIONNAIRE FORM

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : GENERAL AND SPECIFIC DETAILS:

NAME IN FULL	AGE	NATIONALITY	COUNTRY OF ORIGIN	CITIZENSHIP

Table Footer : -



B) PARTNERSHIP DETAILS. : FORM CON 1: TENDERER'S ELIGIBILITY & CONFIDENTIAL BUSINESS QUESTIONNAIRE FORM

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

NAMES OF PARTNERS	NATIONALITY	CITIZENSHIP	PERCENTAGE SHARES OWNED

Table Footer : -



C) REGISTERED COMPANY DETAILS. : FORM CON 1: TENDERER'S ELIGIBILITY & CONFIDENTIAL BUSINESS QUESTIONNAIRE FORM

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

PRIVATE OR PUBLIC COMPANY	STATE THE NOMINAL CAPITAL KENYA SHILLINGS (EQUIVALENT)	STATE ISSUED CAPITAL KENYA SHILLINGS (EQUIVALENT)

Table Footer : -



D) DETAILS OF DIRECTORS : FORM CON 1: TENDERER'S ELIGIBILITY & CONFIDENTIAL BUSINESS QUESTIONNAIRE FORM

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

NAME OF DIRECTOR	NATIONALITY	CITIZENSHIP	PERCENTAGE SHARES OWNED

Table Footer : -



DISCLOSURE OF INTEREST- INTEREST OF THE FIRM IN THE PROCURING ENTITY :
FORM CON 1: TENDERER'S ELIGIBILITY & CONFIDENTIAL BUSINESS
QUESTIONNAIRE FORM

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -	
STATEMENT	TENDERER'S RESPONSE
IS THERE ANY PERSON(S) IN PROCURING ENTITY WHO HAS ANY INTEREST OR RELATIONSHIP IN THIS FIRM	
Table Footer : -	



RELATIONS WITH TENDERER IN THE PROCURING ENTITY : FORM CON 1: TENDERER'S ELIGIBILITY & CONFIDENTIAL BUSINESS QUESTIONNAIRE FORM

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : IF YES, PROVIDE DETAILS AS FOLLOWS

NAME OF PERSON	DESIGNATION IN THE PROCURING ENTITY	INTEREST OR RELATIONSHIP WITH TENDERER
Table Footer : -		



CONFLICT OF INTEREST DISCLOSURE : FORM CON 1: TENDERER'S ELIGIBILITY & CONFIDENTIAL BUSINESS QUESTIONNAIRE FORM

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

TYPE OF CONFLICT	DISCLOSURE YES OR NO	IF YES PROVIDE DETAILS OF THE RELATIONSHIP WITH TENDERER
TENDERER IS DIRECTLY OR INDIRECTLY CONTROLLED BY OR IS UNDER COMMON CONTROL WITH ANOTHER TENDERER.		
TENDERER RECEIVES OR HAS RECEIVED ANY DIRECT OR INDIRECT SUBSIDY FROM ANOTHER TENDERER.		
TENDERER HAS THE SAME LEGAL REPRESENTATIVE AS ANOTHER TENDERER		

TENDERER HAS A RELATIONSHIP WITH ANOTHER TENDERER, DIRECTLY OR THROUGH COMMON THIRD PARTIES THAT PUTS IT IN A POSITION TO INFLUENCE THE TENDER OF ANOTHER TENDERER, OR INFLUENCE THE DECISIONS OF THE PROCURING ENTITY REGARDING THIS TENDER.		
ANY OF THE TENDERER'S AFFILIATES PARTICIPATED AS A CONSULTANT IN THE PREPARATION OF THE DESIGN OR TECHNICAL SPECIFICATIONS OF THE WORKS THAT ARE THE SUBJECT OF THE TENDER.		
TENDERER HAS A CLOSE BUSINESS OR FAMILY RELATIONSHIP WITH A STAFF OF THE PROCURING ENTITY.		
HAS THE CONFLICT STEMMING FROM SUCH RELATIONSHIP STATED IN ITEM 6 ABOVE BEEN RESOLVED IN A MANNER ACCEPTABLE TO THE PROCURING ENTITY THROUGHOUT THE TENDERING PROCESS AND EXECUTION OF THE CONTRACT		

THE TENDERER HAS ENTERED INTO CONSULTATIONS, COMMUNICATIONS, AGREEMENTS OR ARRANGEMENTS WITH ONE OR MORE COMPETITORS REGARDING THIS REQUEST FOR TENDERS AND THE TENDERER DISCLOSES, COMPLETE DETAILS THEREOF, INCLUDING THE NAMES OF THE COMPETITORS AND THE NATURE OF, AND REASONS FOR, SUCH CONSULTATIONS, COMMUNICATIONS, AGREEMENTS OR ARRANGEMENTS.		
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Table Footer : -

CONFIRMATION AND CERTIFICATION : FORM CON 1: TENDERER'S ELIGIBILITY & CONFIDENTIAL BUSINESS QUESTIONNAIRE FORM

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

STATEMENT	TENDERER'S RESPONSE	NAME	TITLE /SEGMENTATION	DATE
WE CONFIRM THAT INFORMATION PROVIDED ABOVE IS CORRECT AND WE UNDERSTAND THAT GIVING FALSE INFORMATION WILL LEAD TO DISQUALIFICATION OF OUR TENDER.				

Table Footer : -

NON-PERFORMED CONTRACTS IN ACCORDANCE WITH SECTION III, EVALUATION AND QUALIFICATION CRITERIA : FORM CON – 2: HISTORICAL CONTRACT NON-PERMORMANCE, PENDING LITIGATION AND LITIGATION HISTORY)

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : INCLUDE DETAILS RELATING TO BID RIGING PRACTICES SUCH PREVIOUS OCASSIONS WHERE TENDERS WERE WITHDRAWN, JOINT BIDS WITH COMPETITORS, SUBCONTRACTING WORKS TO UNSUCCESSFUL TENDERERS ETC		
STATEMENT	YEAR	TENDERERS RESPONSE
CONTRACT NON-PERFORMANCE OCCURED DURING THE PERIOD SPECIFIED IN SECTION III, EVALUATION AND QUALIFICATION CRITERIA, SUB-FACTOR 2.1		
Table Footer : IF YES GIVE DETAILS BELOW		

DETAILS OF NON PERFORMED CONTRACTS : FORM CON – 2: HISTORICAL CONTRACT NON-PERMORMANCE, PENDING LITIGATION AND LITIGATION HISTORY)

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -							
TENDERER / JV MEMBER NAME	YEAR	NON-PERFORMED PORTION OF CONTRACT	CONTRACT NAME	CONTRACT NUMBER	NAME OF PROCURING ENTITY	REASONS FOR NON-PERFORMANCE	TOTAL CONTRACT AMOUNT (KES)
Table Footer : -							



DETAILS OF PENDING LITIGATION : FORM CON – 2: HISTORICAL CONTRACT NON-PERMORMANCE, PENDING LITIGATION AND LITIGATION HISTORY)

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -									
TENDERER / JV MEMBER NAME	YEAR OF DISPUTE	TOTAL CONTRACT AMOUNT (KES)	AMOUNT IN DISPUTE(KES)	CONTRACT NAME	CONTRACT NUMBER	NAME OF PROCURING ENTITY	MATTER IN DISPUTE	PARTY WHO INITIATED THE DISPUTE	STATUS OF DISPUTE
Table Footer : -									

PENDING LITIGATION, IN ACCORDANCE WITH SECTION III, EVALUATION AND QUALIFICATION CRITERIA : FORM CON – 2: HISTORICAL CONTRACT NON-PERFORMANCE, PENDING LITIGATION AND LITIGATION HISTORY)

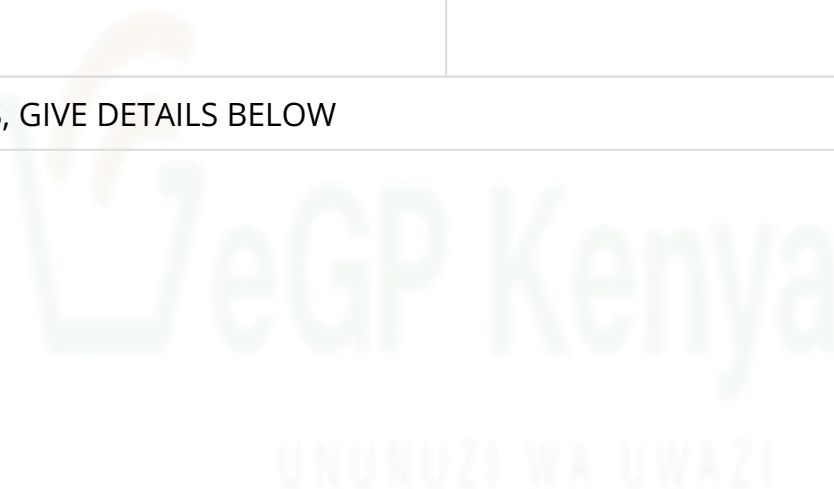
Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

STATEMENT	TENDERERS RESPONSE
THERE IS PENDING LITIGATION IN ACCORDANCE WITH SECTION III, EVALUATION AND QUALIFICATION CRITERIA, SUB-FACTOR 2.3	

Table Footer : IF YES, GIVE DETAILS BELOW



LITIGATION HISTORY IN ACCORDANCE WITH SECTION III, EVALUATION AND QUALIFICATION CRITERIA : FORM CON – 2: HISTORICAL CONTRACT NON-PERFORMANCE, PENDING LITIGATION AND LITIGATION HISTORY)

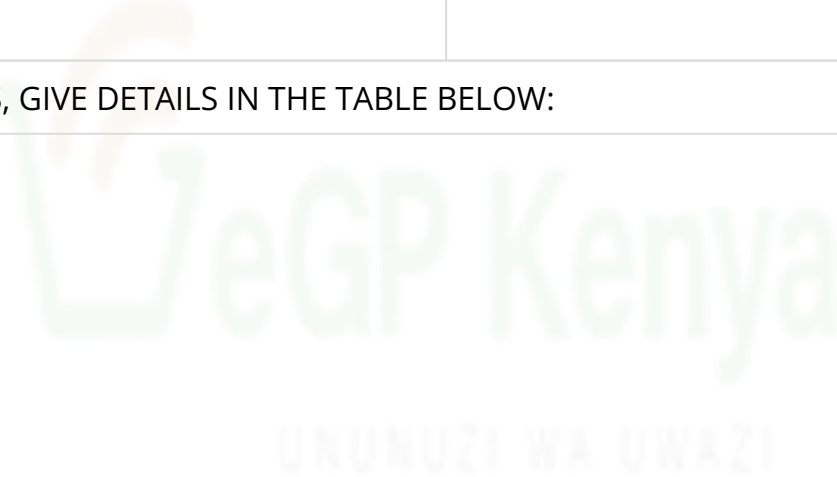
Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

STATEMENT	TENDERERS RESPONSE
THERE IS LITIGATION HISTORY IN ACCORDANCE WITH SECTION III, EVALUATION AND QUALIFICATION CRITERIA, SUB-FACTOR 2.4	

Table Footer : IF YES, GIVE DETAILS IN THE TABLE BELOW:



DETAILS OF LITIGATION HISTRORY : FORM CON – 2: HISTORICAL CONTRACT NON-PERMORMANCE, PENDING LITIGATION AND LITIGATION HISTORY)

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -									
TENDERER / JV MEMBER NAME	YEAR OF LITIGATION AWARD	OUTCOME AS PERCENTAGE OF NET WORTH	CONTRACT NAME	CONTRACT NUMBER	NAME OF PROCURING ENTITY	MATTER IN DISPUTE	PARTY WHO INITIATED THE DISPUTE	REASON(S) FOR LITIGATION AND AWARD DECISION	AMOUNT (KES)
Table Footer : -									



1. FINANCIAL DATA : FORM FIN 3.1: FINANCIAL SITUATION AND PERFORMANCE

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : STATEMENT OF FINANCIAL POSITION (INFORMATION FROM BALANCE SHEET)							
YEAR	TOTAL ASSETS (TA)	TOTAL LIABILITIES (TL)	TOTAL EQUITY/NET WORTH (NW)	CURRENT ASSETS (CA)	CURRENT LIABILITIES (CL)	WORKING CAPITAL (WC)	CURRENCY
2021-2025							
Table Footer : -							



INFORMATION FROM INCOME STATEMENT : FORM FIN 3.1: FINANCIAL SITUATION AND PERFORMANCE

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

YEAR	TOTAL REVENUE (TR)	PROFITS BEFORE TAXES (PBT)	CURRENCY
2021-2025			

Table Footer : -



CASH FLOW INFORMATION : FORM FIN 3.1: FINANCIAL SITUATION AND PERFORMANCE

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

YEAR	CASH FLOW FROM OPERATING ACTIVITIES	CURRENCY
2021-2025		

Table Footer : -



FINANCIAL DOCUMENTS : FORM FIN 3.1: FINANCIAL SITUATION AND PERFORMANCE

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

REQUIRED/DOCUMENT	TENDERER'S
THE TENDERER AND ITS PARTIES SHALL PROVIDE COPIES OF FINANCIAL STATEMENTS PURSUANT SECTION III, EVALUATION AND QUALIFICATIONS CRITERIA. THE FINANCIAL STATEMENTS SHALL	
(A) REFLECT THE FINANCIAL SITUATION OF THE TENDERER OR IN CASE OF JV MEMBER, AND NOT AN AFFILIATED ENTITY (SUCH AS PARENT COMPANY OR GROUP MEMBER).	
(B) BE INDEPENDENTLY AUDITED OR CERTIFIED IN ACCORDANCE WITH LOCAL LEGISLATION.	
(C) BE COMPLETE, INCLUDING ALL NOTES TO THE FINANCIAL STATEMENTS.	
(D) CORRESPOND TO ACCOUNTING PERIODS ALREADY COMPLETED AND AUDITED.	

Table Footer : -

ANNUAL TURNOVER DATA : FORM FIN 3.2: AVERAGE ANNUAL TURNOVER (ANNUAL SALES VALUE)

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

YEAR	AMOUNT	CURRENCY	EXCHANGE RATE	USD EQUIVALENT

Table Footer : -



AVERAGE ANNUAL TURNOVER* : FORM FIN 3.2: AVERAGE ANNUAL TURNOVER (ANNUAL SALES VALUE)

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

REQUIREMENT	TENDERER'S RESPONSE
AVERAGE ANNUAL TURNOVER *	

Table Footer : *TOTAL USD EQUIVALENT FOR ALL YEARS DIVIDED BY THE TOTAL NUMBER OF YEARS



CURRENT CONTRACT COMMITMENTS / CONTRACTS IN PROGRESS FORM : FORM CON-1:CURRENT CONTRACT COMMITMENTS / CONTRACTS IN PROGRESS FORM

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -					
NAME OF CONTRACT(S)	PROCURING ENTITY NAME	PROCURING ENTITY'S E-MAIL ADDRESS	VALUE OF OUTSTANDING CONTRACTS [IN KSHS.]	ESTIMATED DELIVERY DATE	AVERAGE MONTHLY INVOICES OVER THE LAST SIX MONTHS (US\$/MON.)
Table Footer : -					



EXPERIENCE : FORM EXP-1: EXPERIENCE

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

STATEMENT	PE'S SPECIFIED AMOUNT	TENDERER'S RESPONSE
CONTRACTS OVER [SPECIFY AMOUNT] DURING THE LAST THREE YEARS:	5 YEARS	

Table Footer : -



EXPERIENCE DETAILS : FORM EXP-1: EXPERIENCE

Technical Evaluation Process : No

Consider for Technical Evaluation : No

Table Header : -

PROCURING ENTITY	VALUE (KSHS)	YEAR	GOODS /SERVICES SUPPLIED	COUNTRY OF DESTINATION

Table Footer : -



TECHNICAL EVALUATION TABLE : TECHNICAL EVALUATION CRITERIA FORM

Technical Evaluation Process : Yes

Consider for Technical Evaluation : No

Table Header : -

SERIAL NO.	REQUIREMENTS	BIDDER RESPONSE	BIDDER REMARKS
1	PRODUCT DESCRIPTION THE PRODUCT SHALL BE: • POLYVALENT SNAKE ANTIVENOM • EQUINE-DERIVED • F(AB') ₂ FRAGMENTS OF IGG • INTENDED FOR INTRAVENOUS ADMINISTRATION		
2	TARGET SNAKE SPECIES;		
2.1	THE ANTIVENOM MUST DEMONSTRATE NEUTRALIZING CAPACITY AGAINST VENOM FROM THE FOLLOWING SNAKE SPECIES OF MEDICAL IMPORTANCE IN KENYA;		
2.2	Bitis spp. (B. arietans, B. nasicornis, B. rhinoceros, B. gabonica)		

2.3	Naja spp. (N. ashei, N. pallida, N. nigricollis, N. subfulva and N. haje)		
2.4	Dendroaspis spp. (D. polylepis, D. angusticeps and D. jamesonii)		
2.5	Echis spp. (E. pyramidum leakeyi)		
3	PHARMACEUTICAL SPECIFICATIONS;		
3.1	PARAMETER: REQUIREMENT;		
3.2	Reconstitution: Lyophilized powder with 10 ml sterile water for injection BP as diluent		
3.3	Route: Intravenous		
3.4	Sterility: Must comply with WHO guidelines for production, control and regulation of snake antivenom immunoglobulins		

3.5	Preservatives and stabilizers: Within accepted safety limits, comply with WHO guidelines for production, control and regulation of snake antivenom immunoglobulins comply with WHO guidelines		
3.6	Protein Purity: Documented purification process		
4	REGULATORY COMPLIANCE;		
4.1	THE PRODUCT MUST;		
4.2	Be registered in the country of manufacture.		
4.3	Be registered (or eligible for registration) in the procuring country.		
4.4	Comply with WHO Guidelines for Production, Control and Regulation of Snake Antivenom Immunoglobulins.		

4.5	Comply with applicable Pharmacopoeia (IP / BP / USP / Ph. Eur.).		
5	PRODUCTION & QUALITY REQUIREMENTS;		
5.1	MANUFACTURER SHALL PROVIDE DOCUMENTATION ON;		
5.2	IMMUNIZATION & PLASMA COLLECTION		
5.3	Animal welfare standards		
5.4	Plasma screening procedures		
5.5	5.2. Purification Process (comply with WHO Guidelines for Production, Control and Regulation of Snake Antivenom Immunoglobulins comply with WHO guidelines)		
6	BATCH TESTING;		
6.1	AFTER PRODUCTION EACH BATCH MUST UNDERGO;		

6.2	Neutralization potency testing		
6.3	Sterility testing		
6.4	Protein content and purity assessment		
6.5	Independent preclinical testing to be conducted after.		
7	STABILITY & SHELF LIFE;		
7.1	Storage condition: Room temperature, preferably at temperature below 30°C		
7.2	Shelf life: At least 4 years		
8	PACKAGING & COLD CHAIN;		
8.1	Single-use vials (glass vials)		
8.2	Clear labelling [Product batch number, Mfg. date, Exp. date, storage condition, diluent information (Batch number, Mfg. Date, Exp. Date)]		

9	quantity:100000 vials		
Table Footer : -			



PRICE SCHEDULE TABLE : PRICE SCHEDULE FORM

Table Header : -

SERIAL NO.	UNSPSC CODE	UNSPSC DESCRIPTION	ITEM DESCRIPTION	UNIT OF ISSUE	QUANTITY	UNIT PRICE	TOTAL PRICE	CAPACITY BUILDING LEVY	APPLICABLE TAX	TOTAL TENDER SUM
1	73101702	Vaccines or sera or antibiotics production services	DEVELOPING A POLYVALENT SNAKE VENOM ANTI SERUM FOR THE EFFECTIVE TREATMENT OF SNAKEBITE ENVENOMING IN KENYA AND REST OF EAST AFRICA	Each (EA)	1					

Table Footer : -

Sr no.	Formula
1	TOTAL PRICE=QUANTITY*UNIT PRICE
2	CAPACITY BUILDING LEVY=TOTAL PRICE*0.0003
3	TOTAL TENDER SUM=TOTAL PRICE+CAPACITY BUILDING LEVY+APPLICABLE TAX
4	TOTAL TENDER SUM=TOTAL(TOTAL TENDER SUM)

SECTION VI - GENERAL CONDITIONS OF CONTRACT (GCC)

General Conditions of Contract (GCC)

Detail

1. DEFINITIONS

1.1 THE FOLLOWING WORDS AND EXPRESSIONS SHALL HAVE THE MEANINGS HERE BY ASSIGNED TO THEM:

(A) "COMPLETION" MEANS THE FULFILLMENT OF THE RELATED SERVICES BY THE SUPPLIER IN ACCORDANCE WITH THE TERMS AND CONDITIONS SET FORTH IN THE CONTRACT.

(B) "CONTRACT DOCUMENTS" MEANS THE DOCUMENTS LISTED IN THE CONTRACT AGREEMENT, INCLUDING ANY AMENDMENTS THERETO.

(C) "CONTRACT PRICE" MEANS THE PRICE PAYABLE TO THE SUPPLIER AS SPECIFIED IN THE CONTRACT AGREEMENT, SUBJECT TO SUCH ADDITIONS AND ADJUSTMENTS THERETO OR DEDUCTIONS THEREFROM, AS MAY BE MADE PURSUANT TO THE CONTRACT.

(D) "CONTRACT" MEANS THE CONTRACT AGREEMENT ENTERED INTO BETWEEN THE PROCURING ENTITY AND THE SUPPLIER, TOGETHER WITH THE CONTRACT DOCUMENTS REFERRED TO THEREIN, INCLUDING ALL ATTACHMENTS, APPENDICES, AND ALL DOCUMENTS INCORPORATED BY REFERENCE THEREIN.

(E) "DAY" MEANS CALENDAR DAY. "GCC "MEANS THE GENERAL CONDITIONS OF CONTRACT.

(F) "GOODS" MEANS ALL OF THE PHARMACEUTICALS INCLUDING NUTRITIONAL SUPPLEMENT AND ORAL AND INJECTABLE FORMS OF CONTRACEPTION, VACCINES, AND CONDOMS SUPPLIER IS REQUIRED TO SUPPLY TO THE PROCURING ENTITY UNDER THE CONTRACT.

(G) "LAWS" MEANS ALL NATIONAL LEGISLATION, STATUTES, ORDINANCES, AND REGULATIONS AND BY-LAWS OF ANY LEGALLY CONSTITUTED PUBLIC AUTHORITY.

(H) "LETTER OF ACCEPTANCE" MEANS THE LETTER OF FORMAL ACCEPTANCE, SIGNED BY THE CONTRACTOR. PROCURING ENTITY, INCLUDING ANY ANNEXED MEMORANDA COMPRISING AGREEMENTS BETWEEN AND SIGNED BY BOTH PARTIES.

- (I) "PROCURING ENTITY" MEANS THE ENTITY NAMED IN THE SPECIAL CONDITIONS OF CONTRACT. "PROCURING ENTITY" MEANS THE ENTITY PURCHASING THE GOODS AND RELATED SERVICES, AS SPECIFIED IN THE **SCC**.
- (J) "PUBLIC PROCUREMENT REGULATORY AUTHORITY (PPRA)" SHALL MEAN THE AGENCY RESPONSIBLE IN KENYA FOR REGULATING AND MONITORING THE PUBLIC PROCUREMENT FUNCTION
- (K) "REGISTRATION CERTIFICATE" MEANS THE CERTIFICATE OF REGISTRATION OR OTHER DOCUMENTS IN LIEU THEREOF ESTABLISHING THAT THE GOODS SUPPLIED UNDER THE CONTRACT ARE REGISTERED FOR USE IN KENYA IN ACCORDANCE WITH THE APPLICABLE LAW.
- (L) "RELATED SERVICES" MEANS THE SERVICES INCIDENTAL TO THE SUPPLY OF THE GOODS, SUCH AS INSURANCE, INSTALLATION, TRAINING AND INITIAL MAINTENANCE AND OTHER SUCH OBLIGATIONS OF THE SUPPLIER UNDER THE CONTRACT.
- (M) "SUPPLIER" MEANS THE PERSON, PRIVATE OR GOVERNMENT ENTITY, OR A COMBINATION OF THE ABOVE, WHO'S TENDER TO PERFORM THE CONTRACT HAS BEEN ACCEPTED BY THE PROCURING ENTITY AND IS NAMED AS SUCH IN THE CONTRACT AGREEMENT.
- (N) "THE PROJECT SITE," WHERE APPLICABLE, MEANS THE PLACE NAMED IN THE **SCC**.
- (O) **SCC** MEANS THE SPECIAL CONDITIONS OF CONTRACT.

2. CONTRACT DOCUMENTS

2.3 SUBJECT TO THE ORDER OF PRECEDENCE SET FORTH IN THE CONTRACT AGREEMENT, ALL DOCUMENTS FORMING THE CONTRACT (AND ALL PARTS THEREOF) ARE INTENDED TO BE CORRELATIVE, COMPLEMENTARY, AND MUTUALLY EXPLANATORY. THE CONTRACT AGREEMENT SHALL BE READ AS A WHOLE. THE DOCUMENTS FORMING THE CONTRACT SHALL BE INTERPRETED IN THE FOLLOWING ORDER OF PRIORITY:

- A) THE CONTRACT AGREEMENT,
- B) THE LETTER OF ACCEPTANCE,
- C) THE SPECIAL CONDITIONS- PART A,
- D) THE SPECIAL CONDITIONS-PART B
- E) THE GENERAL CONDITIONS OF CONTRACT
- F) THE FORM OF TENDER,
- G) THE SPECIFICATIONS AND SCHEDULES OF THE DRAWINGS(IF ANY),AND
- H) THE SCHEDULES OF REQUIREMENTS AND ANY OTHER DOCUMENTS FORMING PART OF THE CONTRACT.

3. FRAUD AND CORRUPTION

3.1 THE PROCURING ENTITY REQUIRES COMPLIANCE WITH ANTI-CORRUPTION LAWS AND GUIDELINES AND ITS PREVAILING SANCTIONS POLICIES AND PROCEDURES AS SET FORTH IN LAWS OF KENYA.

3.2 THE PROCURING ENTITY REQUIRES THE SUPPLIER TO DISCLOSE ANY COMMISSIONS OR FEES THAT MAY HAVE BEEN PAID OR ARE TO BE PAID TO AGENTS OR ANY OTHER PARTY WITH RESPECT TO THE TENDERING PROCESS OR EXECUTION OF THE CONTRACT. THE INFORMATION DISCLOSED MUST INCLUDE AT LEAST THE NAME AND ADDRESS OF THE AGENT OR OTHER PARTY, THE AMOUNT AND CURRENCY, AND THE PURPOSE OF THE COMMISSION, GRATUITY OR FEE.

4. INTERPRETATION

4.1 IF THE CONTEXT SO REQUIRES IT, SINGULAR MEANS PLURAL AND VICE VERSA.

4.2 INCOTERMS

A) UNLESS INCONSISTENT WITH ANY PROVISION OF THE CONTRACT, THE MEANING OF ANY TRADE TERM AND THE RIGHTS AND OBLIGATIONS OF PARTIES THERE UNDER SHALL BE AS PRESCRIBED BY INCOTERMS SPECIFIED IN THE **SCC**.

B) THE TERMS EXW, CIP, FCA, CFR AND OTHER SIMILAR TERMS, WHEN USED, SHALL BE GOVERNED BY THE RULES PRESCRIBED IN THE CURRENT EDITION OF INCOTERMS SPECIFIED IN THE **SCC** AND PUBLISHED BY THE INTERNATIONAL CHAMBER OF COMMERCE IN PARIS, FRANCE.

4.3 ENTIRE AGREEMENT

4.3.1 THE CONTRACT CONSTITUTES THE ENTIRE AGREEMENT BETWEEN THE PROCURING ENTITY AND THE SUPPLIER AND SUPERSEDES ALL COMMUNICATIONS, NEGOTIATIONS AND AGREEMENTS (WHETHER WRITTEN OR ORAL) OF THE PARTIES WITH RESPECT THERE TO MADE PRIOR TO THE DATE OF CONTRACT.

4.3.2. FRAMEWORK AGREEMENT

4.3.2.1. THE PARTIES SHALL ENTER INTO A FRAMEWORK AGREEMENT WITHIN 28 DAYS AFTER THE CONTRACTOR RECEIVES THE LETTER OF ACCEPTANCE, UNLESS THE PARTICULAR CONDITIONS ESTABLISH OTHERWISE. THE FRAMEWORK AGREEMENT SHALL BE BASED UPON FORM NO. 3 – FRAMEWORK AGREEMENT ANNEXED TO THE PARTICULAR CONDITIONS. THE COSTS OF STAMP DUTIES AND SIMILAR CHARGES (IF ANY) IMPOSED BY LAW IN CONNECTION WITH ENTRY INTO THE FRAMEWORK AGREEMENT SHALL BE BORNE BY THE PROCURING ENTITY.

4.3.2.2. THE FRAMEWORK AGREEMENT ESTABLISHES THE TERMS AND CONDITIONS THAT WILL GOVERN THE CONTRACT AWARDED DURING THE TERM OF THE FRAMEWORK AGREEMENT. THE FRAMEWORK AGREEMENT ESTABLISHES FOR THE PROCUREMENT WORKS BY PACKAGE AS AND WHEN REQUIRED, OVER THE SPECIFIED PERIOD OF TIME. THE FRAMEWORK AGREEMENT DOES NOT COMMIT A PROCURING ENTITY TO PROCURE, NOR A FIRM TO SUPPLY. THE FRAMEWORK AGREEMENT ALLOWS THE PROCURING ENTITY TO CALL THE CONTRACTOR TO COMMENCE THE WORKS ON A PARTICULAR PACKAGE IN A SPECIFIED LOCATION WITHIN THE DURATION OF THE AGREEMENT.

4.3.2.3. THIS FRAMEWORK AGREEMENT DOES NOT GUARANTEE THE CONTRACTOR OF BEING CALLED FOR A CONTRACT TO START AND NO COMMITMENT IS MADE WITH REGARD TO POSSIBLE NUMBER OF PACKAGES TO CARRY OUT.

4.3.2.4. THIS FRAMEWORK AGREEMENT DOES EXCLUDE THE PROCURING ENTITY FROM THE RIGHT TO PROCURE THE SAME WORKS FROM OTHER FIRMS.

4.3.2.5. THIS FRAMEWORK AGREEMENT DOES NOT STOP THE PROCURING ENTITY FROM REMOVING THE CONTRACTOR FROM THE SAME AGREEMENT.

4.3.2.6. FAS SHALL BE ESTABLISHED FOR A MAXIMUM PERIOD OF THREE (3) YEARS. THE PROCURING ENTITY MAY WITH THE CONSENT OF THE CONTRACTOR EXTEND THIS AGREEMENT WHERE THE AGREEMENT PERIOD IS LESS THAN THREE (3) YEARS, IF THE INITIAL ENGAGEMENT HAS BEEN SATISFACTORY.

4.3.2.7. CALL-OFF CONTRACTS; FOR WORK ON A PACKAGE TO START, THE PROCURING ENTITY SHALL ISSUE A NOTICE OF ACCEPTANCE OF A PARTICULAR PACKAGE REQUESTING THE CONTRACTOR TO FURNISH A PERFORMANCE SECURITY AND TO START THE WORKS THEREAFTER, AND PROVIDING THE CONTRACTOR WITH DETAILS OF LOCATION WHERE THE WORKS, ARE TO BE CARRIED OUT. THE CALL-OFF STATEMENT SHALL SPECIFY THE OBJECTIVES, TASKS, DELIVERABLES, TIMEFRAMES AND PRICE OR PRICE MECHANISM. THE PRICE FOR INDIVIDUAL CALL-OFF CONTRACTS SHALL BE BASED ON THE PRICES DETAILED IN THE FRAMEWORK AGREEMENT.

4.4 AMENDMENT

NO AMENDMENT OR OTHER VARIATION OF THE CONTRACT SHALL BE VALID UNLESS IT IS IN WRITING, IS DATED, EXPRESSLY REFERS TO THE CONTRACT, AND IS SIGNED BY A DULY AUTHORIZED REPRESENTATIVE OF EACH PARTY THERETO.

4.5 NON-WAIVER

A) SUBJECT TO GCC SUB-CLAUSE 4.5 (B) BELOW, NO RELAXATION, FORBEARANCE, DELAY, OR INDULGENCE BY EITHER PARTY IN ENFORCING ANY OF THE TERMS AND CONDITIONS OF THE CONTRACTOR THE GRANTING OF TIME BY EITHER PARTY TO THE OTHER SHALL PREJUDICE, AFFECT, OR RESTRICT THE RIGHTS OF THAT PARTY UNDER THE CONTRACT, NEITHER SHALL ANY WAIVER BY EITHER PARTY OF ANY BREACH OF CONTRACT OPERATE AS WAIVER OF ANY SUBSEQUENT OR CONTINUING BREACH OF CONTRACT.

B) ANY WAIVER OF A PARTY'S RIGHTS, POWERS, OR REMEDIES UNDER THE CONTRACT MUST BE IN WRITING, DATED, AND SIGNED BY AN AUTHORIZED REPRESENTATIVE OF THE PARTY GRANTING SUCH WAIVER, AND MUST SPECIFY THE RIGHT AND THE EXTENT TO WHICH IT IS BEING WAIVED.

4.6 SEVERABILITY

IF ANY PROVISION OR CONDITION OF THE CONTRACT IS PROHIBITED OR RENDERED IN VALID OR UNENFORCEABLE, SUCH PROHIBITION, INVALIDITY OR UNENFORCEABILITY SHALL NOT AFFECT THE VALIDITY OR ENFORCEABILITY OF ANY OTHER PROVISIONS AND CONDITIONS OF THE CONTRACT.

5. LANGUAGE

5.1 THE CONTRACT AS WELL AS ALL CORRESPONDENCE AND DOCUMENTS RELATING TO THE CONTRACT EXCHANGED BY THE SUPPLIER AND THE PROCURING ENTITY, SHALL BE WRITTEN IN THE ENGLISH LANGUAGE. SUPPORTING DOCUMENTS AND PRINTED LITERATURE

THAT ARE PART OF THE CONTRACT MAY BE IN ANOTHER LANGUAGE PROVIDED THEY ARE ACCOMPANIED BY AN ACCURATE TRANSLATION OF THE RELEVANT PASSAGES IN THE ENGLISH LANGUAGE, IN WHICH CASE, FOR PURPOSES OF INTERPRETATION OF THE CONTRACT, THIS TRANSLATION SHALL GOVERN.

5.2 THE SUPPLIER SHALL BEAR ALL COSTS OF TRANSLATION TO THE GOVERNING LANGUAGE AND ALL RISKS OF THE ACCURACY OF SUCH TRANSLATION, FOR DOCUMENTS PROVIDED BY THE SUPPLIER.

6. JOINT VENTURE, CONSORTIUM OR ASSOCIATION

6.1 IF THE SUPPLIER IS A JOINT VENTURE, CONSORTIUM, OR ASSOCIATION, ALL OF THE PARTIES SHALL BE JOINTLY AND SEVERALLY LIABLE TO THE PROCURING ENTITY FOR THE FULFILLMENT OF THE PROVISIONS OF THE CONTRACT AND SHALL DESIGNATE ONE PARTY TO ACT AS A LEADER WITH AUTHORITY TO BIND THE JOINT VENTURE, CONSORTIUM, OR ASSOCIATION. THE COMPOSITION OR THE CONSTITUTION OF THE JOINT VENTURE, CONSORTIUM, OR ASSOCIATION SHALL NOT BE ALTERED WITHOUT THE PRIOR CONSENT OF THE PROCURING ENTITY.

7. ELIGIBILITY

7.1 THE SUPPLIER AND ITS SUBCONTRACTORS SHALL HAVE THE NATIONALITY OF AN ELIGIBLE COUNTRY. A SUPPLIER OR SUBCONTRACTOR SHALL BE DEEMED TO HAVE THE NATIONALITY OF A COUNTRY IF IT IS A CITIZEN OR CONSTITUTED, INCORPORATED, OR REGISTERED, AND OPERATES IN CONFORMITY WITH THE PROVISIONS OF THE LAWS OF THAT COUNTRY.

7.2 ALL GOODS AND RELATED SERVICES TO BE SUPPLIED UNDER THE CONTRACT SHALL HAVE THEIR ORIGIN IN ELIGIBLE COUNTRIES. FOR THE PURPOSE OF THIS CLAUSE, ORIGIN MEANS THE COUNTRY WHERE THE GOODS HAVE BEEN GROWN, MINED, CULTIVATED, PRODUCED, MANUFACTURED, OR PROCESSED; OR THROUGH MANUFACTURE, PROCESSING, OR ASSEMBLY, ANOTHER COMMERCIALY RECOGNIZED ARTICLE RESULTS THAT DIFFERS SUBSTANTIALLY IN ITS BASIC CHARACTERISTICS FROM ITS COMPONENTS.

8. NOTICES

8.1 ANY NOTICE GIVEN BY ONE PARTY TO THE OTHER PURSUANT TO THE CONTRACT SHALL BE IN WRITING TO THE ADDRESS SPECIFIED IN THE **SCC**. THE TERM "IN WRITING" MEANS COMMUNICATED IN WRITTEN FORM WITH PROOF OF RECEIPT.

8.2 A NOTICE SHALL BE EFFECTIVE WHEN DELIVERED OR ON THE NOTICE'S EFFECTIVE DATE, WHICHEVER IS LATER.

9. GOVERNING LAW

9.1 THE CONTRACT SHALL BE GOVERNED BY AND INTERPRETED IN ACCORDANCE WITH THE LAWS OF KENYA.

9.2 THROUGHOUT THE EXECUTION OF THE CONTRACT, THE SUPPLIER SHALL COMPLY WITH THE IMPORT OF GOODS AND SERVICES PROHIBITIONS IN KENYA WHEN

A) AS A MATTER OF LAW OR OFFICIAL REGULATIONS, KENYA PROHIBITS COMMERCIAL RELATIONS WITH THAT COUNTRY, OR

B) BY AN ACT OF COMPLIANCE WITH A DECISION OF THE UNITED NATIONS SECURITY COUNCIL TAKEN UNDER CHAPTER VII OF THE CHARTER OF THE UNITED NATIONS, KENYA PROHIBITS ANY IMPORT OF GOODS FROM THAT COUNTRY OR ANY PAYMENTS TO ANY COUNTRY, PERSON, OR ENTITY IN THAT COUNTRY.

10. SETTLEMENT OF DISPUTES

10.1 THE PROCURING ENTITY AND THE SUPPLIER SHALL MAKE EVERY EFFORT TO RESOLVE AMICABLY BY DIRECT NEGOTIATION ANY DISAGREEMENT OR DISPUTE ARISING BETWEEN THEM UNDER OR IN CONNECTION WITH THE CONTRACT.

10.1.1 IF, AFTER THIRTY (30) DAYS, THE PARTIES HAVE FAILED TO RESOLVE THEIR DISPUTE OR DIFFERENCE BY SUCH MUTUAL CONSULTATION, THEN EITHER THE PROCURING ENTITY OR THE SUPPLIER MAY GIVE NOTICE TO THE OTHER PARTY OF ITS INTENTION TO COMMENCE ARBITRATION, AS HEREIN AFTER PROVIDED, AS TO THE MATTER IN DISPUTE, AND NO ARBITRATION IN RESPECT OF THIS MATTER MAY BE COMMENCED UNLESS SUCH NOTICE IS GIVEN. ANY DISPUTE OR DIFFERENCE IN RESPECT OF WHICH A NOTICE OF INTENTION TO COMMENCE ARBITRATION HAS BEEN GIVEN IN ACCORDANCE WITH THIS CLAUSE SHALL BE FINALLY SETTLED BY ARBITRATION. ARBITRATION MAY BE COMMENCED PRIOR TO OR AFTER DELIVERY OF THE GOODS UNDER THE CONTRACT.

10.2 ARBITRATION PROCEEDINGS SHALL BE CONDUCTED AS FOLLOWS:

10.2.1 ANY CLAIM OR DISPUTE BETWEEN THE PARTIES ARISING OUT OF OR IN CONNECTION WITH THE CONTRACT NOT SETTLED AMICABLY IN ACCORDANCE WITH SUB-CLAUSE 10.1 SHALL BE FINALLY SETTLED BY ARBITRATION.

10.2.2 NO ARBITRATION PROCEEDINGS SHALL BE COMMENCED ON ANY CLAIM OR DISPUTE WHERE NOTICE OF A CLAIM OR DISPUTE HAS NOT BEEN GIVEN BY THE APPLYING PARTY WITHIN THIRTY DAYS OF THE OCCURRENCE OR DISCOVERY OF THE MATTER OR ISSUE GIVING RISE TO THE DISPUTE.

10.2.3 NOTWITHSTANDING THE ISSUE OF A NOTICE AS STATED ABOVE, THE ARBITRATION OF SUCH A CLAIM OR DISPUTE SHALL NOT COMMENCE UNLESS AN ATTEMPT HAS IN THE FIRST INSTANCE BEEN MADE BY THE PARTIES TO SETTLE SUCH CLAIM OR DISPUTE AMICABLY WITH OR WITHOUT THE ASSISTANCE OF THIRD PARTIES. PROOF OF SUCH ATTEMPT SHALL BE REQUIRED.

10.2.4 THE ARBITRATOR SHALL, WITHOUT PREJUDICE TO THE GENERALITY OF HIS POWERS, HAVE POWERS TO DIRECT SUCH MEASUREMENTS, COMPUTATIONS, OR VALUATIONS AS MAY IN HIS OPINION BE DESIRABLE IN ORDER TO DETERMINE THE RIGHTS OF THE PARTIES AND ASSESS AND AWARD ANY SUMS WHICH OUGHT TO HAVE BEEN THE SUBJECT OF OR INCLUDED IN ANY DUE PAYMENTS.

10.2.5 NEITHER PARTY SHALL BE LIMITED IN THE PROCEEDINGS BEFORE THE ARBITRATORS TO THE EVIDENCE, OR TO THE REASONS FOR THE DISPUTE GIVEN IN ITS NOTICE OF A CLAIM OR DISPUTE.

10.2.6 ARBITRATION MAY BE COMMENCED PRIOR TO OR AFTER DELIVERY OF THE GOODS. THE OBLIGATIONS OF THE PARTIES SHALL NOT BE ALTERED BY REASON OF ANY ARBITRATION BEING CONDUCTED DURING THE PROGRESS OF THE DELIVERY OF GOODS.

10.2.7 THE TERMS OF THE REMUNERATION OF EACH OR ALL THE MEMBERS OF ARBITRATION SHALL BE MUTUALLY AGREED UPON BY THE PARTIES WHEN AGREEING THE TERMS OF APPOINTMENT. EACH PARTY SHALL BE RESPONSIBLE FOR PAYING ONE-HALF OF THIS REMUNERATION.

10.3 ARBITRATION PROCEEDINGS

10.3.1 ARBITRATION PROCEEDINGS WITH BOTH NATIONAL SUPPLIERS WILL BE CONDUCTED IN ACCORDANCE WITH THE ARBITRATION LAWS OF KENYA. IN CASE OF ANY CLAIM OR DISPUTE, SUCH CLAIM OR DISPUTE SHALL BE NOTIFIED IN WRITING BY EITHER PARTY TO THE OTHER WITH ARE QUEST TO SUBMIT IT TO ARBITRATION AND TO CONCUR IN THE APPOINTMENT OF AN ARBITRATOR WITH IN THIRTY DAYS OF THE NOTICE. THE DISPUTE SHALL BE REFERRED TO THE ARBITRATION AND FINAL DECISION OF A PERSON OR PERSONS TO BE AGREED BETWEEN THE PARTIES. FAILING AGREEMENT TO CONCUR IN THE APPOINTMENT OF AN ARBITRATOR, THE ARBITRATOR SHALL BE APPOINTED, ON THE REQUEST OF THE APPLYING PARTY, BY THE CHAIRMAN OR VICE CHAIRMAN OF ANY OF THE FOLLOWING PROFESSIONAL INSTITUTIONS;

- I) KENYA NATIONAL CHAMBER OF COMMERCE
- II) CHARTERED INSTITUTE OF ARBITRATORS (KENYA BRANCH)
- III) THE LAW SOCIETY OF KENYA

10.3.2 THE INSTITUTION WRITTEN TO FIRST BY THE AGGRIEVED PARTY SHALL TAKE PRECEDENCE OVERALL OTHER INSTITUTIONS.

10.4 ARBITRATION WITH FOREIGN SUPPLIERS

10.4.1 ARBITRATION WITH FOREIGN SUPPLIERS SHALL BE CONDUCTED IN ACCORDANCE WITH THE ARBITRATION RULES OF THE UNITED NATIONS COMMISSION ON INTERNATIONAL TRADE LAW (UNCITRAL); OR WITH PROCEEDINGS ADMINISTERED BY THE INTERNATIONAL CHAMBER OF COMMERCE (ICC) AND CONDUCTED UNDER THE ICC RULES OF ARBITRATION; BY ONE OR MORE ARBITRATORS APPOINTED IN ACCORDANCE WITH SAID ARBITRATION RULES.

10.4.2 THE PLACE OF ARBITRATION SHALL BE A LOCATION SPECIFIED IN THE **SCC**; AND THE ARBITRATION SHALL BE CONDUCTED IN THE LANGUAGE FOR COMMUNICATIONS DEFINED IN SUB-CLAUSE 1.4 [LAW AND LANGUAGE].

10.5 ALTERNATIVE ARBITRATION PROCEEDINGS

10.5.1 ALTERNATIVELY, THE PARTIES MAY REFER THE MATTER TO THE NAIROBI CENTRE FOR INTERNATIONAL ARBITRATION (NCIA) WHICH OFFERS A NEUTRAL VENUE FOR THE CONDUCT OF NATIONAL AND INTERNATIONAL ARBITRATION WITH COMMITMENT TO PROVIDING INSTITUTIONAL SUPPORT TO THE ARBITRAL PROCESS.

11. INSPECTIONS AND AUDIT BY THE PPRA

11.1 THE SUPPLIER SHALL KEEP, AND SHALL MAKE ALL REASONABLE EFFORTS TO CAUSE ITS SUBCONTRACTORS AND SUB-CONSULTANTS TO KEEP, ACCURATE AND SYSTEMATIC ACCOUNTS AND RECORDS IN RESPECT OF THE GOODS IN SUCH FORM AND DETAILS AS WILL CLEARLY IDENTIFY RELEVANT TIME CHANGES AND COSTS.

11.2 PURSUANT TO PARAGRAPH 2.2 E. OF APPENDIX TO THE GENERAL CONDITIONS, THE SUPPLIER SHALL PERMIT AND SHALL CAUSE ITS SUBCONTRACTORS AND SUB-CONSULTANTS TO PERMIT, PPRA AND/OR PERSONS APPOINTED BY THE PPRA TO INSPECT THE SITE AND/OR THE ACCOUNTS AND RECORDS RELATING TO THE PROCUREMENT PROCESS, SELECTION AND/ OR CONTRACT EXECUTION, AND TO HAVE SUCH ACCOUNTS AND RECORDS AUDITED BY AUDITORS APPOINTED BY THE PPRA. THE SUPPLIER'S AND ITS SUBCONTRACTORS' AND SUB-CONSULTANTS' ATTENTION IS DRAWN TO SUB-CLAUSE 3.1 WHICH PROVIDES, INTER ALIA, THAT ACTS INTENDED TO MATERIALLY IMPEDE THE EXERCISE OF THE PPRA'S INSPECTION AND AUDIT RIGHTS CONSTITUTE A PROHIBITED PRACTICE SUBJECT TO CONTRACT TERMINATION.

12. SCOPE OF SUPPLY

12.1 THE GOODS AND RELATED SERVICES TO BE SUPPLIED SHALL BE AS SPECIFIED IN THE SCHEDULE OF REQUIREMENTS.

13. DELIVERY AND DOCUMENTS

13.1 SUBJECT TO GCC SUB-CLAUSE 33.1, THE DELIVERY OF THE GOODS AND COMPLETION OF THE RELATED SERVICES SHALL BE IN ACCORDANCE WITH THE DELIVERY AND COMPLETION SCHEDULE SPECIFIED IN THE SCHEDULE OF REQUIREMENTS. THE DETAILS OF SHIPPING AND OTHER DOCUMENTS TO BE FURNISHED BY THE SUPPLIER ARE SPECIFIED IN THE **SCC**.

14. SUPPLIER'S RESPONSIBILITIES

14.1 THE SUPPLIER SHALL SUPPLY ALL THE GOODS AND RELATED SERVICES INCLUDED IN THE SCOPE OF SUPPLY IN ACCORDANCE WITH GCC CLAUSE12, AND THE DELIVERY AND COMPLETION SCHEDULE, AS PER GCC CLAUSE13.

15. CONTRACT PRICE

15.1 PRICES CHARGED BY THE SUPPLIER FOR THE GOODS SUPPLIED AND THE RELATED SERVICES PERFORMED UNDER THE CONTRACT SHALL NOT VARY FROM THE PRICES QUOTED BY THE SUPPLIER IN ITS TENDER, WITH THE EXCEPTION OF ANY PRICE ADJUSTMENTS AUTHORIZED IN THE SCC.

16. TERMS OF PAYMENT

16.1 THE CONTRACT PRICE, INCLUDING ANY ADVANCE PAYMENTS, IF APPLICABLE, SHALL BE PAID AS SPECIFIED IN THE SCC.

16.2 THE SUPPLIER'S INVITATION TO PAYMENT SHALL BE MADE TO THE PROCURING ENTITY IN WRITING, ACCOMPANIED BY INVOICES DESCRIBING, AS APPROPRIATE, THE GOODS DELIVERED AND RELATED SERVICES PERFORMED, AND BY THE DOCUMENTS SUBMITTED PURSUANT TO GCC CLAUSE13 AND UPON FULFILLMENT OF ALL OTHER OBLIGATIONS STIPULATED IN THE CONTRACT.

16.3 PAYMENTS SHALL BE MADE PROMPTLY BY THE PROCURING ENTITY, BUT IN NO CASE LATER THAN SIXTY (60) DAYS AFTER SUBMISSION OF AN INVOICE OR INVITATION TO PAYMENT BY THE SUPPLIER, AND AFTER THE PROCURING ENTITY HAS ACCEPTED IT.

16.4 THE CURRENCIES IN WHICH PAYMENTS SHALL BE MADE TO THE SUPPLIER UNDER THIS CONTRACT SHALL BE THOSE IN WHICH THE TENDER PRICE IS EXPRESSED.

16.5 IN THE EVENT THAT THE PROCURING ENTITY FAILS TO PAY THE SUPPLIER ANY PAYMENT BY ITS DUE DATE OR WITHIN THE PERIOD SET FORTH IN THE SCC, THE PROCURING ENTITY SHALL PAY TO THE SUPPLIER INTEREST ON OVERDUE AMOUNT IN ACCORDANCE WITH THE PREVAILING MEAN COMMERCIAL LENDING RATE AS DETERMINED BY THE CENTRAL BANK OF KENYA

17. TAXES AND DUTIES

17.1 FOR GOODS MANUFACTURED OUTSIDE KENYA, THE SUPPLIER SHALL BE ENTIRELY RESPONSIBLE FOR ALL TAXES, STAMP DUTIES, LICENSE FEES, AND OTHER SUCH LEVIES IMPOSED OUTSIDE KENYA.

17.2 FOR GOODS MANUFACTURED WITHIN KENYA, THE SUPPLIER SHALL BE ENTIRELY RESPONSIBLE FOR ALL TAXES, DUTIES, LICENSE FEES, ETC., INCURRED UNTIL DELIVERY OF THE CONTRACTED GOODS TO THE PROCURING ENTITY.

17.3 IF ANY TAX EXEMPTIONS, REDUCTIONS, ALLOWANCES OR PRIVILEGES MAY BE AVAILABLE TO THE SUPPLIER IN KENYA, THE PROCURING ENTITY SHALL USE ITS LOWEST EFFORTS TO ENABLE THE SUPPLIER TO BENEFIT FROM ANY SUCH TAX SAVINGS TO THE MAXIMUM ALLOWABLE EXTENT.

18. PERFORMANCE SECURITY

18.1 IF REQUIRED AS SPECIFIED IN THE **SCC**, THE SUPPLIER SHALL, WITHIN TWENTY-EIGHT (28) DAYS OF THE NOTIFICATION OF CONTRACT AWARD, PROVIDE A PERFORMANCE SECURITY FOR THE PERFORMANCE OF THE CONTRACT IN THE AMOUNT SPECIFIED IN THE **SCC**.

18.2 THE PROCEEDS OF THE PERFORMANCE SECURITY SHALL BE PAYABLE TO THE PROCURING ENTITY AS COMPENSATION FOR ANY LOSS RESULTING FROM THE SUPPLIER'S FAILURE TO COMPLETE ITS OBLIGATIONS UNDER THE CONTRACT.

18.3 AS SPECIFIED IN THE **SCC**, THE PERFORMANCE SECURITY, IF REQUIRED, SHALL BE DENOMINATED IN THE CURRENCY (IES) OF THE CONTRACT, OR IN A FREELY CONVERTIBLE CURRENCY ACCEPTABLE TO THE PROCURING ENTITY; AND SHALL BE IN ONE OF THE FORMATS STIPULATED BY THE PROCURING ENTITY IN THE **SCC**, OR IN ANOTHER FORM AT ACCEPTABLE TO THE PROCURING ENTITY.

18.4 THE PERFORMANCE SECURITY SHALL BE DISCHARGED BY THE PROCURING ENTITY AND RETURNED TO THE SUPPLIER NOT LATER THAN TWENTY-EIGHT (28) DAYS FOLLOWING THE DATE OF COMPLETION OF THE SUPPLIER'S PERFORMANCE OBLIGATIONS UNDER THE CONTRACT, INCLUDING ANY WARRANTY OBLIGATIONS, UNLESS SPECIFIED OTHERWISE IN THE **SCC**.

19. CERTIFICATION OF GOODS IN ACCORDANCE WITH LAWS OF KENYA

19.1 IF REQUIRED UNDER THE APPLICABLE LAW, GOODS SUPPLIED UNDER THE CONTRACT SHALL BE REGISTERED FOR USE IN KENYA. THE PROCURING ENTITY UNDERTAKES TO COOPERATE WITH THE SUPPLIER TO FACILITATE REGISTRATION OF THE GOODS FOR USE IN KENYA AS SPECIFIED IN THE **SCC**.

19.2 UNLESS OTHERWISE SPECIFIED IN THE **SCC**, THE CONTRACT SHALL BECOME EFFECTIVE ON THE DATE ("THE EFFECTIVE DATE") THAT THE SUPPLIER RECEIVES WRITTEN NOTIFICATION FROM THE RELEVANT AUTHORITY IN KENYA THAT THE GOODS HAVE BEEN REGISTERED FOR USE IN KENYA.

19.3 IF THIRTY (30) DAYS, OR SUCH LONGER PERIOD SPECIFIED IN THE **SCC**, ELAPSE FROM THE DATE OF CONTRACT SIGNING AND THE CONTRACT HAS NOT BECOME EFFECTIVE PURSUANT TO SUB-CLAUSE 19.2 ABOVE, THEN EITHER PARTY MAY, BY NOT LESS THAN SEVEN (7) DAYS' WRITTEN NOTICE TO THE OTHER PARTY, DECLARE THIS CONTRACT NULL AND VOID. IN SUCH EVENT, THE SUPPLIER'S PERFORMANCE SECURITY SHALL BE PROMPTLY RETURNED.

20. CONFIDENTIAL INFORMATION

20.1 THE PROCURING ENTITY AND THE SUPPLIER SHALL KEEP CONFIDENTIAL AND SHALL NOT, WITHOUT THE WRITTEN CONSENT OF THE OTHER PARTY HERETO, DIVULGE TO ANY THIRD PARTY ANY DOCUMENTS, DATA, OR OTHER INFORMATION FURNISHED DIRECTLY OR INDIRECTLY BY THE OTHER PARTY HERETO IN CONNECTION WITH THE CONTRACT, WHETHER SUCH INFORMATION HAS BEEN FURNISHED PRIOR TO, DURING OR FOLLOWING COMPLETION OR TERMINATION OF THE CONTRACT. NOTWITHSTANDING THE ABOVE, THE SUPPLIER MAY FURNISH TO ITS SUBCONTRACTOR SUCH DOCUMENTS, DATA, AND OTHER INFORMATION IT RECEIVES FROM THE PROCURING ENTITY TO THE EXTENT REQUIRED FOR THE SUBCONTRACTOR TO PERFORM ITS WORK UNDER THE CONTRACT, IN WHICH EVENT THE SUPPLIER SHALL OBTAIN FROM SUCH SUBCONTRACTOR AN UNDERTAKING OF CONFIDENTIALITY SIMILAR TO THAT IMPOSED ON THE SUPPLIER UNDER GCC CLAUSE 20.

20.2 THE PROCURING ENTITY SHALL NOT USE SUCH DOCUMENTS, DATA, AND OTHER INFORMATION RECEIVED FROM THE SUPPLIER FOR ANY PURPOSES UNRELATED TO THE CONTRACT. SIMILARLY, THE SUPPLIER SHALL NOT USE SUCH DOCUMENTS, DATA, AND OTHER INFORMATION RECEIVED FROM THE PROCURING ENTITY FOR ANY PURPOSE OTHER THAN THE PERFORMANCE OF THE CONTRACT.

20.3 THE OBLIGATION OF A PARTY UNDER GCC SUB-CLAUSES 20.1 AND 20.2 ABOVE, HOWEVER, SHALL NOT APPLY TO INFORMATION THAT:

A) THE PROCURING ENTITY OR SUPPLIER NEED TO SHARE WITH THE PPRA OR OTHER INSTITUTIONS PARTICIPATING IN THE FINANCING OF THE CONTRACT;

B) NOW OR HERE AFTER ENTERS THE PUBLIC DOMAIN THROUGH NO FAULT OF THAT PARTY;

C) CAN BE PROVEN TO HAVE BEEN POSSESSED BY THAT PARTY AT THE TIME OF DISCLOSURE AND WHICH WAS NOT PREVIOUSLY OBTAINED, DIRECTLY OR INDIRECTLY, FROM THE OTHER PARTY; OR

D) OTHERWISE LAWFULLY BECOMES AVAILABLE TO THAT PARTY FROM A THIRD PARTY THAT HAS NO OBLIGATION OF CONFIDENTIALITY.

20.4 THE ABOVE PROVISIONS OF GCC CLAUSE 20 SHALL NOT IN ANY WAY MODIFY ANY UNDERTAKING OF CONFIDENTIALITY GIVEN BY EITHER OF THE PARTIES HERE TO PRIOR TO THE DATE OF THE CONTRACT IN RESPECT OF THE SUPPLY OR ANY PART THEREOF.

20.5 THE PROVISIONS OF GCC CLAUSE 20 SHALL SURVIVE COMPLETION OR TERMINATION, FOR WHATEVER REASON, OF THE CONTRACT.

21. SUBCONTRACTING

21.1 THE SUPPLIER SHALL NOTIFY THE PROCURING ENTITY IN WRITING OF ALL SUBCONTRACTS AWARDED UNDER THE CONTRACT IF NOT ALREADY SPECIFIED IN THE TENDER. SUCH NOTIFICATION, IN THE ORIGINAL TENDER OR LATER SHALL NOT RELIEVE THE SUPPLIER FROM ANY OF ITS OBLIGATIONS, DUTIES, RESPONSIBILITIES, OR LIABILITY UNDER THE CONTRACT.

21.2 SUBCONTRACTS SHALL COMPLY WITH THE PROVISIONS OF GCC CLAUSES 3 AND 7.

22. SPECIFICATIONS AND STANDARDS

22.1 THE GOODS SUPPLIED UNDER THIS CONTRACT SHALL CONFORM TO TECHNICAL SPECIFICATIONS AND STANDARDS MENTIONED IN SECTION VII, SCHEDULE OF REQUIREMENTS AND, WHEN NO APPLICABLE STANDARD IS MENTIONED, TO THE AUTHORITATIVE STANDARDS APPROPRIATE TO THE GOODS' COUNTRY OF ORIGIN. SUCH STANDARDS SHALL BE THE LATEST ISSUED BY THE CONCERNED INSTITUTION.

23. PACKING AND DOCUMENTS

23.1 THE SUPPLIER SHALL PROVIDE SUCH PACKING OF THE GOODS AS IS REQUIRED TO PREVENT THEIR DAMAGE OR DETERIORATION DURING TRANSIT TO THEIR FINAL DESTINATION, AS INDICATED IN THE CONTRACT. DURING TRANSIT, THE PACKING SHALL BE SUFFICIENT TO WITHSTAND, WITHOUT LIMITATION, ROUGH HANDLING AND EXPOSURE TO EXTREME TEMPERATURES, SALT AND PRECIPITATION, AND OPEN STORAGE. PACKING CASE SIZE AND WEIGHTS SHALL TAKE INTO CONSIDERATION, WHERE APPROPRIATE, THE REMOTENESS OF THE GOODS' FINAL DESTINATION AND THE ABSENCE OF HEAVY HANDLING FACILITIES AT ALL POINTS IN TRANSIT.

23.2 THE PACKING, MARKING, AND DOCUMENTATION WITHIN AND OUTSIDE THE PACKAGES SHALL COMPLY STRICTLY WITH SUCH SPECIAL REQUIREMENTS AS SHALL BE EXPRESSLY PROVIDED FOR IN THE CONTRACT, INCLUDING ADDITIONAL REQUIREMENTS, IF ANY, SPECIFIED IN THE **SCC**, AND IN ANY OTHER INSTRUCTIONS ORDERED BY THE PROCURING ENTITY

24. INSURANCE

24.1 UNLESS OTHERWISE SPECIFIED IN THE **SCC**, THE GOODS SUPPLIED UNDER THE CONTRACT SHALL BE FULLY INSURED-IN A FREELY CONVERTIBLE CURRENCY FROM AN ELIGIBLE COUNTRY—AGAINST LOSS OR DAMAGE INCIDENTAL TO MANUFACTURE OR ACQUISITION, TRANSPORTATION, STORAGE, AND DELIVERY, IN ACCORDANCE WITH THE APPLICABLE INCOTERMS OR IN THE MANNER SPECIFIED IN THE **SCC**.

25. TRANSPORTATION AND INCIDENTAL SERVICES

25.1 UNLESS OTHERWISE SPECIFIED IN THE **SCC**, RESPONSIBILITY FOR ARRANGING TRANSPORTATION OF THE GOODS SHALL BE IN ACCORDANCE WITH THE SPECIFIED INCOTERMS.

25.2 THE SUPPLIER MAY BE REQUIRED TO PROVIDE ANY OR ALL OF THE FOLLOWING SERVICES, INCLUDING ADDITIONAL SERVICES, IF ANY, SPECIFIED IN **SCC**:

- A) PERFORMANCE OR SUPERVISION OF ON-SITE ASSEMBLY AND/OR START-UP OF THE SUPPLIED GOODS.
- B) FURNISHING OF TOOLS REQUIRED FOR ASSEMBLY AND/OR MAINTENANCE OF THE SUPPLIED GOODS.
- C) FURNISHING OF A DETAILED OPERATIONS AND MAINTENANCE MANUAL FOR EACH APPROPRIATE UNIT OF THE SUPPLIED GOODS.
- D) PERFORMANCE OR SUPERVISION OR MAINTENANCE AND/OR REPAIR OF THE SUPPLIED GOODS, FOR A PERIOD OF TIME AGREED BY THE PARTIES, PROVIDED THAT THIS SERVICE SHALL NOT RELIEVE THE SUPPLIER OF ANY WARRANTY OBLIGATIONS UNDER THIS CONTRACT; AND
- E) TRAINING OF THE PROCURING ENTITY'S PERSONNEL, AT THE SUPPLIER'S PLANT AND/OR ON-SITE, IN ASSEMBLY, START-UP, OPERATION, MAINTENANCE, AND/OR REPAIR OF THE SUPPLIED GOODS.

25.3 PRICES CHARGED BY THE SUPPLIER FOR INCIDENTAL SERVICES, IF NOT INCLUDED IN THE CONTRACT PRICE FOR THE GOODS, SHALL BE AGREED UPON IN ADVANCE BY THE PARTIES AND SHALL NOT EXCEED THE PREVAILING RATES CHARGED TO OTHER PARTIES BY THE SUPPLIER FOR SIMILAR SERVICES

26. INSPECTIONS AND TESTS

26.1 THE SUPPLIER SHALL AT ITS OWN EXPENSE AND AT NO COST TO THE PROCURING ENTITY CARRY OUT ALL SUCH TESTS AND/OR INSPECTIONS OF THE GOODS AND RELATED SERVICES AS ARE SPECIFIED IN THE **SCC**.

26.2 THE INSPECTIONS AND TESTS MAY BE CONDUCTED ON THE PREMISES OF THE SUPPLIER OR THE MANUFACTURER, AT POINT OF DELIVERY, AND /OR AT THE GOODS' FINAL DESTINATION, OR IN ANOTHER PLACE IN KENYA AS SPECIFIED IN THE **SCC**. SUBJECT TO GCC SUB-CLAUSE 26.3, IF CONDUCTED ON THE PREMISES OF THE SUPPLIER OR THE MANUFACTURER, ALL REASONABLE FACILITIES AND ASSISTANCE, INCLUDING ACCESS TO PRODUCTION DATA, SHALL BE FURNISHED TO THE INSPECTORS AT NO CHARGE TO THE PROCURING ENTITY.

26.3 THE PROCURING ENTITY OR ITS DESIGNATED REPRESENTATIVE SHALL BE ENTITLED TO ATTEND THE TESTS AND/OR INSPECTIONS REFERRED TO IN GCC SUB-CLAUSE 26.2, PROVIDED THAT THE PROCURING ENTITY BEAR ALL OF ITS OWN COSTS AND EXPENSES INCURRED IN CONNECTION WITH SUCH ATTENDANCE INCLUDING, BUT NOT LIMITED TO, ALL TRAVELING AND BOARD AND LODGING EXPENSES.

26.4 WHENEVER THE SUPPLIER IS READY TO CARRY OUT ANY SUCH TEST AND INSPECTION, IT SHALL GIVE A REASONABLE ADVANCE NOTICE, INCLUDING THE PLACE AND TIME, TO THE PROCURING ENTITY. THE SUPPLIER SHALL OBTAIN FROM ANY RELEVANT THIRD PARTY OR MANUFACTURER ANY NECESSARY PERMISSION OR CONSENT TO ENABLE THE PROCURING ENTITY OR ITS DESIGNATED REPRESENTATIVE TO ATTEND THE TEST AND/OR INSPECTION.

A) SAID INSPECTION AND TESTING IS FOR THE PROCURING ENTITY'S ACCOUNT. IN THE EVENT THAT INSPECTION AND TESTING IS REQUIRED PRIOR TO DISPATCH, THE GOODS SHALL NOT BE SHIPPED UNLESS A SATISFACTORY INSPECTION AND QUALITY CONTROL REPORT HAS BEEN ISSUED IN RESPECT OF THOSE GOODS.

B) THE SUPPLIER MAY HAVE AN INDEPENDENT QUALITY TEST CONDUCTED ON A BATCH READY FOR SHIPMENT AS SPECIFIED IN THE **SCC**. THE COST OF SUCH TESTS WILL BE BORNE BY THE SUPPLIER.

C) UPON RECEIPT OF THE GOODS AT PLACE OF FINAL DESTINATION, THE PROCURING ENTITY'S REPRESENTATIVE SHALL INSPECT THE GOODS OR PART OF THE GOODS TO ENSURE THAT THEY CONFORM TO THE CONDITION OF THE CONTRACT AND ADVISE THE PROCURING ENTITY THAT THE GOODS WERE RECEIVED IN APPARENT GOOD ORDER. THE PROCURING ENTITY WILL ISSUE AN ACCEPTANCE CERTIFICATE TO THE SUPPLIER IN RESPECT OF SUCH GOODS (OR PART OF GOODS). THE ACCEPTANCE CERTIFICATE SHALL BE ISSUED WITHIN TEN (10) DAYS OF RECEIPT OF THE GOODS OR PART OF GOODS AT PLACE OF FINAL DESTINATION.

26.5 WHERE THE SUPPLIER CONTESTS THE VALIDITY OF THE REJECTION BY THE PROCURING ENTITY OR HIS REPRESENTATIVE, OF ANY INSPECTION AS REQUIRED BY 26.4 ABOVE CONDUCTED BEFORE SHIPMENT OR AT ULTIMATE DESTINATION, WHETHER BASED ON PRODUCT OR PACKING GROUNDS, A SAMPLE DRAWN JOINTLY BY THE SUPPLIER AND PROCURING ENTITY OR HIS OR HER REPRESENTATIVE AND AUTHENTICATED BY BOTH, WILL BE FORWARDED FOR UMPIRE ANALYSIS WITHIN FOUR WEEKS OF THE TIME THE SUPPLIER CONTESTS TO AN INDEPENDENT AGENCY MUTUALLY AGREED BY THE PROCURING ENTITY AND SUPPLIER. THE UMPIRE'S FINDING, WHICH WILL BE PROMPTLY OBTAINED, WILL BE FINAL AND BINDING ON BOTH PARTIES. THE COST OF UMPIRE ANALYSIS WILL BE BORNE BY THE LOSING PARTY.

26.6 THE PROCURING ENTITY MAY REQUIRE THE SUPPLIER TO CARRY OUT ANY TEST AND/OR INSPECTION NOT REQUIRED BY THE CONTRACT BUT DEEMED NECESSARY TO VERIFY THAT THE CHARACTERISTICS AND PERFORMANCE OF THE GOODS COMPLY WITH THE TECHNICAL SPECIFICATIONS CODES AND STANDARDS UNDER THE CONTRACT, PROVIDED THAT THE SUPPLIER'S REASONABLE COSTS AND EXPENSES INCURRED IN THE CARRYING OUT OF SUCH TEST AND/OR INSPECTION SHALL BE ADDED TO THE CONTRACT PRICE. FURTHER, IF SUCH TEST AND /OR INSPECTION IMPEDES THE PROGRESS OF MANUFACTURING AND/OR THE SUPPLIER'S PERFORMANCE OF ITS OTHER OBLIGATIONS UNDER THE CONTRACT, DUE ALLOWANCE WILL BE MADE IN RESPECT OF THE DELIVERY DATES AND COMPLETION DATES AND THE OTHER OBLIGATIONS SO AFFECTED.

26.7 THE SUPPLIER SHALL PROVIDE THE PROCURING ENTITY WITH A REPORT OF THE RESULTS OF ANY SUCH TEST AND/OR INSPECTION.

26.8 THE PROCURING ENTITY MAY REJECT ANY GOODS OR ANY PART THERE OF THAT FAIL TO PASS ANY TEST AND/OR INSPECTION OR DO NOT CONFORM TO THE SPECIFICATIONS. THE SUPPLIER SHALL EITHER RECTIFY OR REPLACE SUCH REJECTED GOODS OR PARTS THEREOF OR MAKE ALTERATIONS NECESSARY TO MEET THE SPECIFICATIONS AT NO COST TO THE PROCURING ENTITY, AND SHALL REPEAT THE TEST AND/OR INSPECTION, AT NO COST TO THE PROCURING ENTITY, UPON GIVING A NOTICE PURSUANT TO GCC SUB- CLAUSE 26.4.

26.9 THE SUPPLIER AGREES THAT NEITHER THE EXECUTION OF ATTEST AND/OR INSPECTION OF THE GOODS OR ANY PART THEREOF, NOR THE ATTENDANCE BY THE PROCURING ENTITY OR ITS REPRESENTATIVE, NOR THE ISSUE OF ANY REPORT PURSUANT TO GCC SUB-CLAUSE 26.7, SHALL RELEASE THE SUPPLIER FROM ANY WARRANTIES OR OTHER OBLIGATIONS UNDER THE CONTRACT.

27. LIQUIDATED DAMAGES

27.1 EXCEPT AS PROVIDED UNDER GCC CLAUSE 32, IF THE SUPPLIER FAILS TO DELIVER ANY OR ALL OF THE GOODS BY THE DATE (S) OF DELIVERY OR PERFORM THE RELATED SERVICES WITHIN THE PERIOD SPECIFIED IN THE CONTRACT, THE PROCURING ENTITY MAY WITHOUT PREJUDICE TO ALL ITS OTHER REMEDIES UNDER THE CONTRACT, DEDUCT FROM THE CONTRACT PRICE, AS LIQUIDATED DAMAGES, A SUM EQUIVALENT TO THE PERCENTAGE SPECIFIED IN THE **SCC** OF THE DELIVERED PRICE OF THE DELAYED GOODS OR UNPERFORMED SERVICES FOR EACH WEEK OR PART THEREOF OF DELAY UNTIL ACTUAL DELIVERY OR PERFORMANCE, UP TO A MAXIMUM DEDUCTION OF THE PERCENTAGE SPECIFIED IN THE **SCC**. ONCE THE MAXIMUM IS REACHED, THE PROCURING ENTITY MAY TERMINATE THE CONTRACT PURSUANT TO GCC CLAUSE 35.

28. WARRANTY

28.1 ALL GOODS MUST BE OF FRESH MANUFACTURE AND MUST BEAR THE DATES OF MANUFACTURE AND EXPIRY.

THE SUPPLIER FURTHER WARRANTS THAT ALL GOODS SUPPLIED UNDER THE CONTRACT WILL HAVE REMAINING A MINIMUM OF FIVE-SIXTHS (5/6) OF THE SPECIFIED SHELF LIFE UPON DELIVERY AT PORT/ AIRPORT OF ENTRY FOR GOODS WITH A SHELF LIFE OF MORE THAN TWO YEARS AND THREE-FOURTHS (3/4) FOR GOODS WITH SHELF LIFE OF TWO YEARS OR LESS, UNLESS OTHERWISE SPECIFIED IN THE **SCC**; HAVE "OVERAGES" WITHIN THE RANGES SET FORTH IN THE TECHNICAL SPECIFICATIONS, WHERE APPLICABLE; ARE NOT SUBJECT TO RECALL BY THE APPLICABLE REGULATORY AUTHORITY DUE TO UNACCEPTABLE QUALITY OR AN ADVERSE DRUG REACTION; AND IN EVERY OTHER RESPECT WILLFULLY COMPLY IN ALL RESPECTS WITH THE TECHNICAL SPECIFICATIONS AND WITH THE CONDITIONS LAID DOWN IN THE CONTRACT.

28.2 THE PROCURING ENTITY SHALL HAVE THE RIGHT TO MAKE CLAIMS UNDER THE ABOVE WARRANTY FOR THREE MONTHS AFTER THE GOODS HAVE BEEN DELIVERED TO THE FINAL DESTINATION INDICATED IN THE CONTRACT. UPON RECEIPT OF A WRITTEN NOTICE FROM THE PROCURING ENTITY, THE SUPPLIER SHALL, WITH ALL REASONABLE SPEED, REPLACE THE DEFECTIVE GOODS WITHOUT COST TO THE PROCURING ENTITY. THE SUPPLIER WILL BE ENTITLED TO REMOVE, AT HIS OWN RISK AND COST, THE DEFECTIVE GOODS ONCE THE REPLACEMENT GOODS HAVE BEEN DELIVERED.

28.3 IN THE EVENT OF A DISPUTE BY THE PROCURING ENTITY, A COUNTER-ANALYSIS WILL BE CARRIED OUT ON THE MANUFACTURER'S RETAINED SAMPLES BY AN INDEPENDENT NEUTRAL LABORATORY AGREED BY BOTH THE PROCURING ENTITY AND THE SUPPLIER. IF THE COUNTER-ANALYSIS CONFIRMS THE DEFECT, THE COST OF SUCH ANALYSIS WILL BE BORNE BY THE SUPPLIER AS WELL AS THE REPLACEMENT AND DISPOSAL OF THE DEFECTIVE GOODS. IN THE EVENT OF THE INDEPENDENT ANALYSIS CONFIRMING THE QUALITY OF THE PRODUCT, THE PROCURING ENTITY WILL MEET ALL COSTS FOR SUCH ANALYSIS.

28.4 IF, AFTER BEING NOTIFIED THAT THE DEFECT HAS BEEN CONFIRMED PURSUANT TO GCC SUB-CLAUSE 28.2 ABOVE, THE SUPPLIER FAILS TO REPLACE THE DEFECTIVE GOODS WITHIN THE PERIOD SPECIFIED IN THE SCC THE PROCURING ENTITY MAY PROCEED TO TAKE SUCH REMEDIAL ACTION AS MAY BE NECESSARY, INCLUDING REMOVAL AND DISPOSAL, AT THE SUPPLIER'S RISK AND EXPENSE AND WITHOUT PREJUDICE TO ANY OTHER RIGHTS THAT THE PROCURING ENTITY MAY HAVE AGAINST THE SUPPLIER UNDER THE CONTRACT. THE PROCURING ENTITY WILL ALSO BE ENTITLED TO CLAIM FOR STORAGE IN RESPECT OF THE DEFECTIVE GOODS FOR THE PERIOD FOLLOWING NOTIFICATION AND DEDUCT THE SUM FROM PAYMENTS DUE TO THE SUPPLIER UNDER THIS CONTRACT. RECALLS. IN THE EVENT ANY OF THE GOODS ARE RECALLED, THE SUPPLIER SHALL NOTIFY THE PROCURING ENTITY WITHIN FOURTEEN (14) DAYS, PROVIDING FULL DETAILS OF THE REASON FOR THE RECALL AND PROMPTLY REPLACE, AT ITS OWN COST, THE ITEMS COVERED BY THE RECALL WITH GOODS THAT FULLY MEET THE REQUIREMENTS OF THE TECHNICAL SPECIFICATION AND ARRANGE FOR COLLECTION OR DESTRUCTION OF ANY DEFECTIVE GOODS. IF THE SUPPLIER FAILS TO FULFILL ITS RECALL OBLIGATION PROMPTLY, THE PROCURING ENTITY WILL, AT THE SUPPLIER'S EXPENSE, CARRY OUT THE RECALL.

29. PATENT INDEMNITY

29.1 THE SUPPLIER SHALL, SUBJECT TO THE PROCURING ENTITY'S COMPLIANCE WITH GCC SUB-CLAUSE 29.2, INDEMNIFY AND HOLD HARMLESS THE PROCURING ENTITY AND ITS EMPLOYEES AND OFFICERS FROM AND AGAINST ANY AND ALL SUITS, ACTIONS OR ADMINISTRATIVE PROCEEDINGS, CLAIMS, DEMANDS, LOSSES, DAMAGES, COSTS, AND EXPENSES OF ANY NATURE, INCLUDING ATTORNEY'S FEES AND EXPENSES, WHICH THE PROCURING ENTITY MAY SUFFER AS A RESULT OF ANY INFRINGEMENT OR ALLEGED INFRINGEMENT OF ANY PATENT, UTILITY MODEL, REGISTERED DESIGN, TRADE MARK, COPYRIGHT, OR OTHER INTELLECTUAL PROPERTY RIGHT REGISTERED OR OTHERWISE EXISTING AT THE DATE OF THE CONTRACT BY REASON OF:

A) THE INSTALLATION OF THE GOODS BY THE SUPPLIER OR THE USE OF THE GOODS IN THE COUNTRY WHERE THE SITE IS LOCATED; AND

B) THE SALE IN ANY COUNTRY OF THE PRODUCTS PRODUCED BY THE GOODS. SUCH INDEMNITY SHALL NOT COVER ANY USE OF THE GOODS OR ANY PART THEREOF OTHER THAN FOR THE PURPOSE INDICATED BY OR TO BE REASONABLY INFERRED FROM THE CONTRACT, NEITHER ANY INFRINGEMENT RESULTING FROM THE USE OF THE GOODS OR ANY PART THEREOF, OR ANY PRODUCTS PRODUCED THERE BY IN ASSOCIATION OR COMBINATION WITH ANY OTHER EQUIPMENT, PLANT, OR MATERIALS NOT SUPPLIED BY THE SUPPLIER, PURSUANT TO THE CONTRACT.

29.2 IF ANY PROCEEDINGS ARE BROUGHT OR ANY CLAIM IS MADE AGAINST THE PROCURING ENTITY ARISING OUT OF THE MATTERS REFERRED TO IN GCC SUB-CLAUSE 29.1, THE PROCURING ENTITY SHALL PROMPTLY GIVE THE SUPPLIER A NOTICE THEREOF, AND THE SUPPLIER MAY AT ITS OWN EXPENSE AND IN THE PROCURING ENTITY'S NAME CONDUCT SUCH PROCEEDINGS OR CLAIM AND ANY NEGOTIATIONS FOR THE SETTLEMENT OF ANY SUCH PROCEEDINGS OR CLAIM.

29.3 IF THE SUPPLIER FAILS TO NOTIFY THE PROCURING ENTITY WITHIN TWENTY-EIGHT (28) DAYS AFTER RECEIPT OF SUCH NOTICE THAT IT INTENDS TO CONDUCT ANY SUCH PROCEEDINGS OR CLAIM, THEN THE PROCURING ENTITY SHALL BE FREE TO CONDUCT THE SAME ON ITS OWN BEHALF.

29.4 THE PROCURING ENTITY SHALL, AT THE SUPPLIER'S REQUEST, AFFORD ALL AVAILABLE ASSISTANCE TO THE SUPPLIER IN CONDUCTING SUCH PROCEEDINGS OR CLAIM, AND SHALL BE REIMBURSED BY THE SUPPLIER FOR ALL REASONABLE EXPENSES INCURRED IN SO DOING.

29.5 THE PROCURING ENTITY SHALL INDEMNIFY AND HOLD HARMLESS THE SUPPLIER AND ITS EMPLOYEES, OFFICERS, AND SUBCONTRACTORS FROM AND AGAINST ANY AND ALL SUITS, ACTIONS OR ADMINISTRATIVE PROCEEDINGS, CLAIMS, DEMANDS, LOSSES, DAMAGES, COSTS, AND EXPENSES OF ANY NATURE, INCLUDING ATTORNEY'S FEES AND EXPENSES, WHICH THE SUPPLIER MAY SUFFER AS A RESULT OF ANY INFRINGEMENT OR ALLEGED INFRINGEMENT OF ANY PATENT, UTILITY MODEL, REGISTERED DESIGN, TRADEMARK, COPYRIGHT, OR OTHER INTELLECTUAL PROPERTY RIGHT REGISTERED OR OTHERWISE EXISTING AT THE DATE OF THE CONTRACT ARISING OUT OF OR IN CONNECTION WITH ANY DESIGN, DATA, DRAWING, SPECIFICATION, OR OTHER DOCUMENTS OR MATERIALS PROVIDED OR DESIGNED BY OR ON BEHALF OF THE PROCURING ENTITY.

30. LIMITATION OF LIABILITY

30.1 EXCEPT IN CASES OF CRIMINAL NEGLIGENCE OR WILLFUL MISCONDUCT, AND IN THE CASE OF INFRINGEMENT PURSUANT TO CLAUSE 29,

A) THE SUPPLIER SHALL NOT BE LIABLE TO THE PROCURING ENTITY, WHETHER IN CONTRACT, TORT, OR OTHERWISE, FOR ANY INDIRECT OR CONSEQUENTIAL LOSS OR DAMAGE, LOSS OF USE, LOSS OF PRODUCTION, OR LOSS OF PROFITS OR INTEREST COSTS, PROVIDED THAT THIS EXCLUSION SHALL NOT APPLY TO ANY OBLIGATION OF THE SUPPLIER TO PAY LIQUIDATED DAMAGES TO THE PROCURING ENTITY AND

B) THE AGGREGATE LIABILITY OF THE SUPPLIER TO THE PROCURING ENTITY, WHETHER UNDER THE CONTRACT, IN TORT OR OTHERWISE, SHALL NOT EXCEED THE TOTAL CONTRACT PRICE, PROVIDED THAT THIS LIMITATION SHALL NOT APPLY TO THE COST OF REPAIRING OR REPLACING DEFECTIVE EQUIPMENT, OR TO ANY OBLIGATION OF THE SUPPLIER TO INDEMNIFY THE PROCURING ENTITY WITH RESPECT TO PATENT INFRINGEMENT.

31. CHANGE IN LAWS AND REGULATIONS

31.1 UNLESS OTHERWISE SPECIFIED IN THE CONTRACT, IF AFTER THE DATE OF 30 DAYS PRIOR TO DATE OF TENDER SUBMISSION, ANY LAW, REGULATION, ORDINANCE, ORDER OR BYLAW HAVING THE FORCE OF LAW IS ENACTED, PROMULGATED, ABROGATED, OR CHANGED IN THE PLACE OF KENYA WHERE THE SITE IS LOCATED (WHICH SHALL BE DEEMED TO INCLUDE ANY CHANGE IN INTERPRETATION OR APPLICATION BY THE COMPETENT AUTHORITIES) THAT SUBSEQUENTLY AFFECTS THE DELIVERY DATE AND/OR THE CONTRACT PRICE, THEN SUCH DELIVERY DATE AND/OR CONTRACT PRICE SHALL BE CORRESPONDINGLY INCREASED OR DECREASED, TO THE EXTENT THAT THE SUPPLIER HAS THERE BY BEEN AFFECTED IN THE PERFORMANCE OF ANY OF ITS OBLIGATIONS UNDER THE CONTRACT. NOTWITHSTANDING THE FOREGOING, SUCH ADDITIONAL OR REDUCED COST SHALL NOT BE SEPARATELY PAID OR CREDITED IF THE SAME HAS ALREADY BEEN ACCOUNTED FOR IN THE PRICE ADJUSTMENT PROVISIONS WHERE APPLICABLE, IN ACCORDANCE WITH GCC CLAUSE 15.

32. FORCE MAJEURE

32.1 THE SUPPLIER SHALL NOT BE LIABLE FOR FORFEITURE OF ITS PERFORMANCE SECURITY, LIQUIDATED DAMAGES, OR TERMINATION FOR DEFAULT IF AND TO THE EXTENT THAT IT'S DELAY IN PERFORMANCE OR OTHER FAILURE TO PERFORM ITS OBLIGATIONS UNDER THE CONTRACT IS THE RESULT OF AN EVENT OF FORCE MAJEURE.

32.2 FOR PURPOSES OF THIS CLAUSE, "FORCE MAJEURE" MEANS AN EVENT OR SITUATION BEYOND THE CONTROL OF THE SUPPLIER THAT IS NOT FORESEEABLE, IS UNAVOIDABLE, AND ITS ORIGIN IS NOT DUE TO NEGLIGENCE OR LACK OF CARE ON THE PART OF THE SUPPLIER. SUCH EVENTS MAY INCLUDE, BUT NOT BE LIMITED TO, ACTS OF THE PROCURING ENTITY IN ITS SOVEREIGN CAPACITY, WARS OR REVOLUTIONS, FIRES, FLOODS, EPIDEMICS, QUARANTINE RESTRICTIONS, AND FREIGHT EMBARGOES.

32.3 IF A FORCE MAJEURE SITUATION ARISES, THE SUPPLIER SHALL PROMPTLY NOTIFY THE PROCURING ENTITY IN WRITING OF SUCH CONDITION AND THE CAUSE THERE OF. UNLESS OTHERWISE DIRECTED BY THE PROCURING ENTITY IN WRITING, THE SUPPLIER SHALL CONTINUE TO PERFORM ITS OBLIGATIONS UNDER THE CONTRACT AS FAR AS IS REASONABLY PRACTICAL, AND SHALL SEEK ALL REASONABLE ALTERNATIVE MEANS FOR PERFORMANCE NOT PREVENTED BY THE FORCE MAJEURE EVENT.

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33. CHANGE ORDERS AND CONTRACT AMENDMENTS

33.1 THE PROCURING ENTITY MAY AT ANY TIME ORDER THE SUPPLIER THROUGH NOTICE IN ACCORDANCE GCC CLAUSE 8, TO MAKE CHANGES WITHIN THE GENERAL SCOPE OF THE CONTRACT IN ANY ONE OR MORE OF THE FOLLOWING:

- A) DRAWINGS, DESIGNS, OR SPECIFICATIONS, WHERE GOODS TO BE FURNISHED UNDER THE CONTRACT ARE TO BE SPECIFICALLY MANUFACTURED FOR THE PROCURING ENTITY.
- B) THE METHOD OF SHIPMENT OR PACKING;
- C) THE PLACE OF DELIVERY; AND
- D) THE RELATED SERVICES TO BE PROVIDED BY THE SUPPLIER.

33.2 IF ANY SUCH CHANGE CAUSES AN INCREASE OR DECREASE IN THE COST OF, OR THE TIME REQUIRED FOR, THE SUPPLIER'S PERFORMANCE OF ANY PROVISIONS UNDER THE CONTRACT, AN EQUITABLE ADJUSTMENT SHALL BE MADE IN THE CONTRACT PRICE OR IN THE DELIVERY /COMPLETION SCHEDULE, OR BOTH, AND THE CONTRACT SHALL ACCORDINGLY BE AMENDED. ANY CLAIMS BY THE SUPPLIER FOR ADJUSTMENT UNDER THIS CLAUSE MUST BE ASSERTED WITHIN TWENTY-EIGHT (28) DAYS FROM THE DATE OF THE SUPPLIER'S RECEIPT OF THE PROCURING ENTITY'S CHANGE ORDER.

33.3 PRICES TO BE CHARGED BY THE SUPPLIER FOR ANY RELATED SERVICES THAT MIGHT BE NEEDED BUT WHICH WERE NOT INCLUDED IN THE CONTRACT SHALL BE AGREED UPON IN ADVANCE BY THE PARTIES AND SHALL NOT EXCEED THE PREVAILING RATES CHARGED TO OTHER PARTIES BY THE SUPPLIER FOR SIMILAR SERVICES.

33.4 SUBJECT TO THE ABOVE, NO VARIATION IN OR MODIFICATION OF THE TERMS OF THE CONTRACT SHALL BE MADE EXCEPT BY WRITTEN AMENDMENT SIGNED BY THE PARTIES. THIS INCLUDES, IF SPECIFIED IN THE **SCC**, ANY VARIATION TO THE CONTRACT RESULTING FROM A VALUE ENGINEERING PROPOSAL AGREED BETWEEN THE PARTIES.

34. EXTENSIONS OF TIME

34.1 IF AT ANY TIME DURING PERFORMANCE OF THE CONTRACT, THE SUPPLIER OR ITS SUB-CONTRACTORS SHOULD ENCOUNTER CONDITIONS IMPEDING TIMELY DELIVERY OF THE GOODS OR COMPLETION OF RELATED SERVICES PURSUANT TO GCC CLAUSE 13, THE SUPPLIER SHALL PROMPTLY NOTIFY THE PROCURING ENTITY IN WRITING OF THE DELAY, ITS LIKELY DURATION, AND ITS CAUSE. AS SOON AS PRACTICABLE AFTER RECEIPT OF THE SUPPLIER'S NOTICE, THE PROCURING ENTITY SHALL EVALUATE THE SITUATION AND MAY AT ITS DISCRETION EXTEND THE SUPPLIER'S TIME FOR PERFORMANCE, IN WHICH CASE THE EXTENSION SHALL BE RATIFIED BY THE PARTIES BY AMENDMENT OF THE CONTRACT.

34.2 EXCEPT IN CASE OF FORCE MAJEURE, AS PROVIDED UNDER GCC CLAUSE 32, A DELAY BY THE SUPPLIER IN THE PERFORMANCE OF ITS DELIVERY AND COMPLETION OBLIGATIONS SHALL RENDER THE SUPPLIER LIABLE TO THE IMPOSITION OF LIQUIDATED DAMAGES PURSUANT TO GCC CLAUSE 27, UNLESS AN EXTENSION OF TIME IS AGREED UPON, PURSUANT TO GCC SUB-CLAUSE 34.1

35. TERMINATION

35.1 TERMINATION FOR DEFAULT

A) THE PROCURING ENTITY, WITHOUT PREJUDICE TO ANY OTHER REMEDY FOR BREACH OF CONTRACT, BY WRITTEN NOTICE OF DEFAULT SENT TO THE SUPPLIER, MAY TERMINATE THE CONTRACT IN WHOLE OR IN PART:

- I) IF THE SUPPLIER FAILS TO DELIVER ANY OR ALL OF THE GOODS WITHIN THE PERIOD SPECIFIED IN THE CONTRACT, OR WITHIN ANY EXTENSION THEREOF GRANTED BY THE PROCURING ENTITY PURSUANT TO GCC CLAUSE 34;
- II) IF THE SUPPLIER FAILS TO PERFORM ANY OTHER OBLIGATION UNDER THE CONTRACT; OR
- III) IF THE SUPPLIER, IN THE JUDGMENT OF THE PROCURING ENTITY HAS ENGAGED IN FRAUD AND CORRUPTION, AS DEFINED IN PARAGRAPH 2.2A OF THE APPENDIX TO THE GCC, IN COMPETING FOR OR IN EXECUTING THE CONTRACT.

B) IN THE EVENT THE PROCURING ENTITY TERMINATES THE CONTRACT IN WHOLE OR IN PART, PURSUANT TO GCC CLAUSE 35.1(A), THE PROCURING ENTITY MAY PROCURE, UPON SUCH TERMS AND IN SUCH MANNER AS IT DEEMS APPROPRIATE, GOODS OR RELATED SERVICES SIMILAR TO THOSE UNDELIVERED OR NOT PERFORMED, AND THE SUPPLIER SHALL BE LIABLE TO THE PROCURING ENTITY FOR ANY ADDITIONAL COSTS FOR SUCH SIMILAR GOODS OR RELATED SERVICES. HOWEVER, THE SUPPLIER SHALL CONTINUE PERFORMANCE OF THE CONTRACT TO THE EXTENT NOT TERMINATED.

35.2 TERMINATION FOR INSOLVENCY.

C) THE PROCURING ENTITY MAY AT ANY TIME TERMINATE THE CONTRACT BY GIVING NOTICE TO THE SUPPLIER IF THE SUPPLIER BECOMES BANKRUPT OR OTHERWISE INSOLVENT. IN SUCH EVENT, TERMINATION WILL BE WITHOUT COMPENSATION TO THE SUPPLIER, PROVIDED THAT SUCH TERMINATION WILL NOT PREJUDICE OR AFFECT ANY RIGHT OF ACTION OR REMEDY THAT HAS ACCRUED OR WILL ACCRUE THEREAFTER TO THE PROCURING ENTITY.

35.3 TERMINATION FOR CONVENIENCE.

D) THE PROCURING ENTITY, BY NOTICE SENT TO THE SUPPLIER, MAY TERMINATE THE CONTRACT, IN WHOLE OR IN PART, AT ANY TIME FOR ITS CONVENIENCE. THE NOTICE OF TERMINATION SHALL SPECIFY THAT TERMINATION IS FOR THE PROCURING ENTITY'S CONVENIENCE, THE EXTENT TO WHICH PERFORMANCE OF THE SUPPLIER UNDER THE CONTRACT IS TERMINATED, AND THE DATE UPON WHICH SUCH TERMINATION BECOMES EFFECTIVE.

E) THE GOODS THAT ARE COMPLETE AND READY FOR SHIPMENT WITHIN TWENTY-EIGHT (28) DAYS AFTER THE SUPPLIER'S RECEIPT OF NOTICE OF TERMINATION SHALL BE ACCEPTED BY THE PROCURING ENTITY AT THE CONTRACT TERMS AND PRICES. FOR THE REMAINING GOODS, THE PROCURING ENTITY MAY ELECT:

I) TO HAVE ANY PORTION COMPLETED AND DELIVERED AT THE CONTRACT TERMS AND PRICES; AND/OR

II) TO CANCEL THE REMAINDER AND PAY TO THE SUPPLIER AN AGREED AMOUNT FOR PARTIALLY COMPLETED GOODS AND RELATED SERVICES AND FOR MATERIALS AND PARTS PREVIOUSLY PROCURED BY THE SUPPLIER.

36. ASSIGNMENT

36.1 NEITHER THE PROCURING ENTITY NOR THE SUPPLIER SHALL ASSIGN, IN WHOLE OR IN PART, THEIR OBLIGATIONS UNDER THIS CONTRACT, EXCEPT WITH PRIOR WRITTEN CONSENT OF THE OTHER PARTY.

37. EXPORT RESTRICTION

NOTWITHSTANDING ANY OBLIGATION UNDER THE CONTRACT TO COMPLETE ALL EXPORT FORMALITIES, ANY EXPORT RESTRICTIONS ATTRIBUTABLE TO THE PROCURING ENTITY, TO KENYA OR TO THE USE OF THE PRODUCTS/GOODS, SYSTEMS OR SERVICES TO BE SUPPLIED, WHICH ARISE FROM TRADE REGULATIONS FROM A COUNTRY SUPPLYING THOSE PRODUCTS/GOODS, SYSTEMS OR SERVICES, AND WHICH SUBSTANTIALLY IMPEDE THE SUPPLIER FROM MEETING ITS OBLIGATIONS UNDER THE CONTRACT, SHALL RELEASE THE SUPPLIER FROM THE OBLIGATION TO PROVIDE DELIVERIES OR SERVICES, ALWAYS PROVIDED, HOWEVER, THAT THE SUPPLIER CAN DEMONSTRATE TO THE SATISFACTION OF THE PROCURING ENTITY THAT IT HAS COMPLETED ALL FORMALITIES IN A TIMELY MANNER, INCLUDING APPLYING FOR PERMITS, AUTHORIZATIONS AND LICENSES NECESSARY FOR THE EXPORT OF THE PRODUCTS/GOODS, SYSTEMS OR SERVICES UNDER THE TERMS OF THE CONTRACT. TERMINATION OF THE CONTRACT ON THIS BASIS SHALL BE FOR THE PROCURING ENTITY'S CONVENIENCE PURSUANT TO SUB-CLAUSE 35.3.

SECTION VII - SPECIAL CONDITIONS OF CONTRACT (SCC)

Special Conditions of Contract (SCC)

	GCC Reference & SCC Detail	Filled By	Value to be Auto Populated in Tender Document
GCC Reference	1. DEFINITIONS (I) "PROCURING ENTITY" MEANS THE ENTITY NAMED IN THE SPECIAL CONDITIONS OF CONTRACT. "PROCURING ENTITY" MEANS THE ENTITY PURCHASING THE GOODS AND RELATED SERVICES, AS SPECIFIED IN THE SCC .	-	-
SCC Detail	THE PROCURING ENTITY IS:	Auto Populate	KENYA INSTITUTE OF PRIMATE RESEARCH
GCC Reference	(N) "THE PROJECT SITE," WHERE APPLICABLE, MEANS THE PLACE NAMED IN THE SCC .	-	-
SCC Detail	THE PROJECT SITE(S)/FINAL DESTINATION(S) IS /ARE [INSERT NAME(S) AND DETAILED INFORMATION ON THE LOCATION(S) OF THE SITE(S) INCLUDING THE GPS COORDINATES]	Manual Input	KENYA INSTITUTE OF PRIMATE RESEARCH .END OF KAREN ROAD NAIROBI KENYA

GCC Reference	4. INTERPRETATION 4.2 INCOTERMS A) UNLESS INCONSISTENT WITH ANY PROVISION OF THE CONTRACT, THE MEANING OF ANY TRADE TERM AND THE RIGHTS AND OBLIGATIONS OF PARTIES THERE UNDER SHALL BE AS PRESCRIBED BY INCOTERMS SPECIFIED IN THE SCC.	-	-
SCC Detail	THE MEANING OF THE TRADE TERMS SHALL BE AS PRESCRIBED BY INCOTERMS. IF THE MEANING OF ANY TRADE TERM AND THE RIGHTS AND OBLIGATIONS OF THE PARTIES THEREUNDER SHALL NOT BE AS PRESCRIBED BY INCOTERMS, THEY SHALL BE AS PRESCRIBED BY: <i>[EXCEPTIONAL; REFER TO OTHER INTERNATIONALLY ACCEPTED TRADE TERMS]</i>	Manual Input	DDP
GCC Reference	B) THE TERMS EXW, CIP, FCA, CFR AND OTHER SIMILAR TERMS, WHEN USED, SHALL BE GOVERNED BY THE RULES PRESCRIBED IN THE CURRENT EDITION OF INCOTERMS SPECIFIED IN THE SCC AND PUBLISHED BY THE INTERNATIONAL CHAMBER OF COMMERCE IN PARIS, FRANCE.	-	-
SCC Detail	THE VERSION EDITION OF INCOTERMS SHALL BE <i>[INSERT DATE OF CURRENT EDITION]</i>	Manual Input	2020 EDITION

GCC Reference	5. LANGUAGE 5.1 THE CONTRACT AS WELL AS ALL CORRESPONDENCE AND DOCUMENTS RELATING TO THE CONTRACT EXCHANGED BY THE SUPPLIER AND THE PROCURING ENTITY, SHALL BE WRITTEN IN THE ENGLISH LANGUAGE. SUPPORTING DOCUMENTS AND PRINTED LITERATURE THAT ARE PART OF THE CONTRACT MAY BE IN ANOTHER LANGUAGE PROVIDED THEY ARE ACCOMPANIED BY AN ACCURATE TRANSLATION OF THE RELEVANT PASSAGES IN THE ENGLISH LANGUAGE, IN WHICH CASE, FOR PURPOSES OF INTERPRETATION OF THE CONTRACT, THIS TRANSLATION SHALL GOVERN.	-	-
SCC Detail	THE LANGUAGE SHALL BE: <i>[INSERT THE NAME OF THE LANGUAGE]</i>	Manual Input	ENGLISH
GCC Reference	8. NOTICES 8.1 ANY NOTICE GIVEN BY ONE PARTY TO THE OTHER PURSUANT TO THE CONTRACT SHALL BE IN WRITING TO THE ADDRESS SPECIFIED IN THE SCC. THE TERM “IN WRITING” MEANS COMMUNICATED IN WRITTEN FORM WITH PROOF OF RECEIPT.	-	-

SCC Detail	FOR NOTICES, THE PROCURING ENTITY'S ADDRESS SHALL BE:	Auto Populate	https://egp.treasury.go.ke/login
GCC Reference	10. SETTLEMENT OF DISPUTES 10.1 THE PROCURING ENTITY AND THE SUPPLIER SHALL MAKE EVERY EFFORT TO RESOLVE AMICABLY BY DIRECT NEGOTIATION ANY DISAGREEMENT OR DISPUTE ARISING BETWEEN THEM UNDER OR IN CONNECTION WITH THE CONTRACT. 10.1.1 IF, AFTER THIRTY (30) DAYS, THE PARTIES HAVE FAILED TO RESOLVE THEIR DISPUTE OR DIFFERENCE BY SUCH MUTUAL CONSULTATION, THEN EITHER THE PROCURING ENTITY OR THE SUPPLIER MAY GIVE NOTICE TO THE OTHER PARTY OF ITS INTENTION TO COMMENCE ARBITRATION, AS HEREIN AFTER PROVIDED, AS TO THE MATTER IN DISPUTE, AND NO ARBITRATION IN RESPECT OF THIS MATTER MAY BE COMMENCED UNLESS SUCH NOTICE IS GIVEN. ANY DISPUTE OR DIFFERENCE IN RESPECT OF WHICH A NOTICE OF INTENTION TO COMMENCE ARBITRATION HAS BEEN GIVEN IN ACCORDANCE WITH THIS CLAUSE SHALL BE FINALLY SETTLED BY ARBITRATION. ARBITRATION MAY BE COMMENCED PRIOR TO OR AFTER DELIVERY OF THE GOODS UNDER THE CONTRACT. 10.2 ARBITRATION PROCEEDINGS SHALL BE CONDUCTED AS FOLLOWS:	-	-

10.2.1 ANY CLAIM OR DISPUTE BETWEEN THE PARTIES ARISING OUT OF OR IN CONNECTION WITH THE CONTRACT NOT SETTLED AMICABLY IN ACCORDANCE WITH SUB-CLAUSE 10.1 SHALL BE FINALLY SETTLED BY ARBITRATION.

10.2.2 NO ARBITRATION PROCEEDINGS SHALL BE COMMENCED ON ANY CLAIM OR DISPUTE WHERE NOTICE OF A CLAIM OR DISPUTE HAS NOT BEEN GIVEN BY THE APPLYING PARTY WITHIN THIRTY DAYS OF THE OCCURRENCE OR DISCOVERY OF THE MATTER OR ISSUE GIVING RISE TO THE DISPUTE.

10.2.3 NOTWITHSTANDING THE ISSUE OF A NOTICE AS STATED ABOVE, THE ARBITRATION OF SUCH A CLAIM OR DISPUTE SHALL NOT COMMENCE UNLESS AN ATTEMPT HAS IN THE FIRST INSTANCE BEEN MADE BY THE PARTIES TO SETTLE SUCH CLAIM OR DISPUTE AMICABLY WITH OR WITHOUT THE ASSISTANCE OF THIRD PARTIES. PROOF OF SUCH ATTEMPT SHALL BE REQUIRED.

10.2.4 THE ARBITRATOR SHALL, WITHOUT PREJUDICE TO THE GENERALITY OF HIS POWERS, HAVE POWERS TO DIRECT SUCH MEASUREMENTS, COMPUTATIONS, OR VALUATIONS AS MAY IN HIS OPINION BE DESIRABLE IN ORDER TO DETERMINE THE RIGHTS OF THE PARTIES AND ASSESS AND AWARD ANY SUMS WHICH OUGHT TO HAVE BEEN THE SUBJECT OF OR INCLUDED IN ANY DUE PAYMENTS.

10.2.5 NEITHER PARTY SHALL BE LIMITED IN THE PROCEEDINGS BEFORE THE ARBITRATORS TO THE EVIDENCE, OR TO THE REASONS FOR THE DISPUTE GIVEN IN ITS NOTICE OF A CLAIM OR DISPUTE.

10.2.6 ARBITRATION MAY BE COMMENCED PRIOR TO OR AFTER DELIVERY OF THE GOODS. THE OBLIGATIONS OF THE PARTIES SHALL NOT BE ALTERED BY REASON OF ANY ARBITRATION BEING CONDUCTED DURING THE PROGRESS OF THE DELIVERY OF GOODS.

10.2.7 THE TERMS OF THE REMUNERATION OF EACH OR ALL THE MEMBERS OF ARBITRATION SHALL BE MUTUALLY AGREED UPON BY THE PARTIES WHEN AGREEING THE TERMS OF APPOINTMENT. EACH PARTY SHALL BE RESPONSIBLE FOR PAYING ONE-HALF OF THIS REMUNERATION.

10.3 ARBITRATION PROCEEDINGS

10.3.1 ARBITRATION PROCEEDINGS WITH BOTH NATIONAL SUPPLIERS WILL BE CONDUCTED IN ACCORDANCE WITH THE ARBITRATION LAWS OF KENYA. IN CASE OF ANY CLAIM OR DISPUTE, SUCH CLAIM OR DISPUTE SHALL BE NOTIFIED IN WRITING BY EITHER PARTY TO THE OTHER WITH ARE QUEST TO SUBMIT IT TO ARBITRATION AND TO CONCUR IN THE APPOINTMENT OF AN ARBITRATOR WITH IN THIRTY DAYS OF THE NOTICE. THE DISPUTE SHALL BE REFERRED TO THE ARBITRATION AND FINAL DECISION OF A PERSON OR PERSONS TO BE AGREED BETWEEN THE PARTIES. FAILING AGREEMENT TO CONCUR IN THE APPOINTMENT OF AN ARBITRATOR, THE ARBITRATOR SHALL BE APPOINTED, ON THE REQUEST OF THE APPLYING PARTY, BY THE CHAIRMAN OR VICE CHAIRMAN OF ANY OF THE FOLLOWING PROFESSIONAL INSTITUTIONS;

- I) KENYA NATIONAL CHAMBER OF COMMERCE
- II) CHARTERED INSTITUTE OF ARBITRATORS (KENYA BRANCH)
- III) THE LAW SOCIETY OF KENYA

10.3.2 THE INSTITUTION WRITTEN TO FIRST BY THE AGGRIEVED PARTY SHALL TAKE PRECEDENCE OVERALL OTHER INSTITUTIONS.

10.4 ARBITRATION WITH FOREIGN SUPPLIERS

	10.4.1 ARBITRATION WITH FOREIGN SUPPLIERS SHALL BE CONDUCTED IN ACCORDANCE WITH THE ARBITRATION RULES OF THE UNITED NATIONS COMMISSION ON INTERNATIONAL TRADE LAW (UNCITRAL); OR WITH PROCEEDINGS ADMINISTERED BY THE INTERNATIONAL CHAMBER OF COMMERCE (ICC) AND CONDUCTED UNDER THE ICC RULES OF ARBITRATION; BY ONE OR MORE ARBITRATORS APPOINTED IN ACCORDANCE WITH SAID ARBITRATION RULES.		
SCC Detail	THE RULES OF PROCEDURE FOR ARBITRATION PROCEEDINGS PURSUANT TO GCC CLAUSE 10.2 SHALL BE AS FOLLOWS: [THE TENDERING DOCUMENT SHOULD CONTAIN ONE CLAUSE TO BE RETAINED IN THE EVENT OF A CONTRACT WITH A FOREIGN SUPPLIER AND ONE CLAUSE TO BE RETAINED IN THE EVENT OF A CONTRACT WITH A SUPPLIER WHO IS A NATIONAL OF KENYA. AT THE TIME OF FINALIZING THE CONTRACT, THE RESPECTIVE APPLICABLE CLAUSE SHOULD BE RETAINED IN THE CONTRACT. THE FOLLOWING EXPLANATORY NOTE SHOULD THEREFORE BE INSERTED AS A HEADER TO GCC 10.2 IN THE TENDERING DOCUMENT. “CLAUSE 10.2 (A) SHALL BE RETAINED IN THE CASE OF A CONTRACT WITH A FOREIGN SUPPLIER AND CLAUSE 10.2 (B) SHALL BE RETAINED IN THE CASE OF A CONTRACT WITH A NATIONAL OF KENYA.”] (A)CONTRACT WITH FOREIGN SUPPLIER:	Manual Input	CHARTERED INSTITUTE OF ARBITRATORS (KENYA BRANCH)

[FOR CONTRACTS ENTERED INTO WITH FOREIGN SUPPLIERS, INTERNATIONAL COMMERCIAL ARBITRATION MAY HAVE PRACTICAL ADVANTAGES OVER OTHER DISPUTE SETTLEMENT METHODS. AMONG THE RULES TO GOVERN THE ARBITRATION PROCEEDINGS, THE PROCURING ENTITY MAY WISH TO CONSIDER THE UNITED NATIONS COMMISSION ON INTERNATIONAL TRADE LAW (UNCIAL) ARBITRATION RULES OF 1976, THE RULES OF CONCILIATION AND ARBITRATION OF THE INTERNATIONAL CHAMBER OF COMMERCE (ICC), THE RULES OF THE LONDON COURT OF INTERNATIONAL ARBITRATION OR THE RULES OF ARBITRATION INSTITUTE OF THE STOCKHOLM CHAMBER OF COMMERCE.] IF THE PROCURING ENTITY CHOOSES THE UNCITRAL ARBITRATION RULES, THE FOLLOWING SAMPLE CLAUSE SHOULD BE INSERTED:

GCC 10.2 (A)—ANY DISPUTE, CONTROVERSY OR CLAIM ARISING OUT OF OR RELATING TO THIS CONTRACT, OR BREACH, TERMINATION OR INVALIDITY THEREOF, SHALL BE SETTLED BY ARBITRATION IN ACCORDANCE WITH THE UNCITRAL ARBITRATION RULES AS AT PRESENT IN FORCE.

IF THE PROCURING ENTITY CHOOSES THE RULES OF ICC, THE FOLLOWING SAMPLE CLAUSE SHOULD BE INSERTED:

GCC 10.2 (A)—ALL DISPUTES ARISING IN CONNECTION WITH THE PRESENT CONTRACT SHALL BE FINALLY SETTLED UNDER THE RULES OF CONCILIATION AND ARBITRATION OF THE INTERNATIONAL CHAMBER OF COMMERCE BY ONE OR MORE ARBITRATORS APPOINTED IN ACCORDANCE WITH SAID RULES.

IF THE PROCURING ENTITY CHOOSES THE RULES OF ARBITRATION INSTITUTE OF STOCKHOLM CHAMBER OF COMMERCE, THE FOLLOWING SAMPLE CLAUSE SHOULD BE INSERTED:

GCC 10.2 (A)—ANY DISPUTE, CONTROVERSY OR CLAIM ARISING OUT OF OR IN CONNECTION WITH THIS CONTRACT, OR THE BREACH TERMINATION OR INVALIDITY THEREOF, SHALL BE SETTLED BY ARBITRATION IN ACCORDANCE WITH THE RULES OF THE ARBITRATION INSTITUTE OF THE STOCKHOLM CHAMBER OF COMMERCE.

IF THE PROCURING ENTITY CHOOSES THE RULES OF THE LONDON COURT OF INTERNATIONAL ARBITRATION, THE FOLLOWING CLAUSE SHOULD BE INSERTED:

GCC 10.2 (A)—ANY DISPUTE ARISING OUT OF OR IN CONNECTION WITH THIS CONTRACT, INCLUDING ANY QUESTION REGARDING ITS EXISTENCE, VALIDITY OR TERMINATION SHALL BE REFERRED TO AND FINALLY RESOLVED BY ARBITRATION UNDER THE RULES OF THE LONDON COURT OF INTERNATIONAL ARBITRATION, WHICH RULES ARE DEEMED TO BE INCORPORATED BY REFERENCE TO THIS CLAUSE.

	(B)CONTRACTS WITH SUPPLIER NATIONAL OF KENYA: IN THE CASE OF A DISPUTE BETWEEN THE PROCURING ENTITY AND A SUPPLIER WHO IS A NATIONAL OF KENYA, THE DISPUTE SHALL BE REFERRED TO ADJUDICATION OR ARBITRATION IN ACCORDANCE WITH THE LAWS OF KENYA.		
GCC Reference	10.4.2 THE PLACE OF ARBITRATION SHALL BE A LOCATION SPECIFIED IN THE SCC ; AND THE ARBITRATION SHALL BE CONDUCTED IN THE LANGUAGE FOR COMMUNICATIONS DEFINED IN SUB-CLAUSE 1.4 [LAW AND LANGUAGE].	-	-
SCC Detail	THE PLACE OF ARBITRATION SHALL BE -----(SPECIFY CITY AND COUNTRY).	Manual Input	PUBLIC PROCUREMENT ADMINISTRATIVE REVIEW BOARD NAIROBI-KENYA
GCC Reference	13. DELIVERY AND DOCUMENTS 13.1 SUBJECT TO GCC SUB-CLAUSE 33.1, THE DELIVERY OF THE GOODS AND COMPLETION OF THE RELATED SERVICES SHALL BE IN ACCORDANCE WITH THE DELIVERY AND COMPLETION SCHEDULE SPECIFIED IN THE SCHEDULE OF REQUIREMENTS. THE DETAILS OF SHIPPING AND OTHER DOCUMENTS TO BE FURNISHED BY THE SUPPLIER ARE SPECIFIED IN THE SCC.	-	-
SCC Detail	SAMPLE PROVISION FOR GOODS SUPPLIED FROM ABROAD:	Manual Input	BANK DETAILS

UPON SHIPMENT, THE SUPPLIER SHALL NOTIFY THE PROCURING ENTITY AND THE INSURANCE COMPANY IN WRITING THE FULL DETAILS OF THE SHIPMENT INCLUDING CONTRACT NUMBER, DESCRIPTION OF THE GOODS, QUANTITY, DATE AND PLACE OF SHIPMENT, MODE OF TRANSPORTATION, AND ESTIMATED DATE OF ARRIVAL AT PLACE OF DESTINATION. IN THE EVENT OF GOODS SENT BY AIRFREIGHT, THE SUPPLIER SHALL NOTIFY THE PROCURING ENTITY A MINIMUM OF FORTY-EIGHT (48) HOURS AHEAD OF DISPATCH, THE NAME OF THE CARRIER, THE FLIGHT NUMBER, THE EXPECTED TIME OF ARRIVAL, AND THE WAYBILL NUMBER. THE SUPPLIER SHALL FAX AND THEN SEND BY COURIER THE FOLLOWING DOCUMENTS TO THE PROCURING ENTITY, WITH A COPY TO THE INSURANCE COMPANY:

(I) THREE ORIGINALS AND TWO COPIES OF THE SUPPLIER'S INVOICE, SHOWING PROCURING ENTITY AS [ENTER CORRECT DESCRIPTION OF PROCURING ENTITY FOR CUSTOMS PURPOSES]; THE CONTRACT NUMBER, GOODS DESCRIPTION, QUANTITY, UNIT PRICE, AND TOTAL AMOUNT. INVOICES MUST BE SIGNED IN ORIGINAL, STAMPED, OR SEALED WITH THE COMPANY STAMP/SEAL;

(II) ONE ORIGINAL AND TWO COPIES OF THE NEGOTIABLE, CLEAN, ON-BOARD THROUGH BILL OF LADING MARKED "FREIGHT PREPAID" AND SHOWING PROCURING ENTITY AS [ENTER CORRECT NAME OF PROCURING ENTITY FOR CUSTOMS PURPOSES] AND NOTIFY PARTY AS STATED IN THE CONTRACT, WITH DELIVERY THROUGH TO FINAL DESTINATION AS PER THE SCHEDULE OF REQUIREMENTS AND TWO COPIES OF NON-NEGOTIABLE BILL OF LADING, OR THREE COPIES OF RAILWAY CONSIGNMENT NOTE, ROAD CONSIGNMENT NOTE, TRUCK OR AIR WAYBILL, OR MULTIMODAL TRANSPORT DOCUMENT, MARKED "FREIGHT PREPAID" AND SHOWING DELIVERY THROUGH TO FINAL DESTINATION AS PER THE SCHEDULE OF REQUIREMENTS;

(III) FOUR COPIES OF THE PACKING LIST IDENTIFYING CONTENTS OF EACH PACKAGE

(IV) COPY OF THE INSURANCE CERTIFICATE, SHOWING THE PROCURING ENTITY AS THE BENEFICIARY;.

(V) ONE ORIGINAL OF THE MANUFACTURER'S OR SUPPLIER'S WARRANTY CERTIFICATE COVERING ALL ITEMS SUPPLIED

(VI) ONE ORIGINAL OF THE SUPPLIER'S CERTIFICATE OF ORIGIN COVERING ALL ITEMS SUPPLIED.

(VII) ORIGINAL COPY OF THE CERTIFICATE OF INSPECTION FURNISHED TO SUPPLIER BY THE NOMINATED INSPECTION AGENCY AND SIX COPIES (WHERE INSPECTION IS REQUIRED);

(VIII) ANY OTHER PROCUREMENT-SPECIFIC DOCUMENTS REQUIRED FOR DELIVERY /PAYMENT PURPOSES.

FOR GOODS FROM WITHIN KENYA:

UPON OR BEFORE DELIVERY OF THE GOODS, THE SUPPLIER SHALL NOTIFY THE PROCURING ENTITY IN WRITING AND DELIVER THE FOLLOWING DOCUMENTS TO THE PROCURING ENTITY:

(I) TWO ORIGINALS AND TWO COPIES OF THE SUPPLIER'S INVOICE, SHOWING PROCURING ENTITY, THE CONTRACT NUMBER, GOODS' DESCRIPTION, QUANTITY, UNIT PRICE, AND TOTAL AMOUNT. INVOICES MUST BE SIGNED IN ORIGINAL AND STAMPED OR SEALED WITH THE COMPANY STAMP/SEAL;

(II) TWO COPIES OF DELIVERY NOTE, RAILWAY CONSIGNMENT NOTES, ROAD CONSIGNMENT NOTE, TRUCK OR AIR WAYBILL, OR MULTIMODAL TRANSPORT DOCUMENT SHOWING PROCURING ENTITY AS [ENTER CORRECT NAME OF PROCURING ENTITY FOR CUSTOMS PURPOSES] AND DELIVERY THROUGH TO FINAL DESTINATION AS STATED IN THE CONTRACT.

(III) COPY OF THE INSURANCE CERTIFICATE, SHOWING THE PROCURING ENTITY AS THE BENEFICIARY.

(IV) FOUR COPIES OF THE PACKING LIST IDENTIFYING CONTENTS OF EACH PACKAGE.

(V) ONE ORIGINAL OF THE MANUFACTURER'S OR SUPPLIER'S WARRANTY CERTIFICATE COVERING ALL ITEMS SUPPLIED.

(VI) ONE ORIGINAL OF THE SUPPLIER'S CERTIFICATE OF ORIGIN COVERING ALL ITEMS SUPPLIED.

(VII) ORIGINAL COPY OF THE CERTIFICATE OF INSPECTION FURNISHED TO SUPPLIER BY THE NOMINATED INSPECTION AGENCY AND SIX COPIES (WHERE INSPECTION IS REQUIRED)

(VIII) OTHER PROCUREMENT-SPECIFIC DOCUMENTS REQUIRED FOR DELIVERY /PAYMENT PURPOSES.

THE ABOVE DOCUMENTS SHALL BE RECEIVED BY THE PROCURING ENTITY BEFORE ARRIVAL OF THE GOODS AND, IF NOT RECEIVED, THE SUPPLIER WILL BE RESPONSIBLE FOR ANY CONSEQUENT EXPENSES.

SCC Detail	PHARMACEUTICALS (ADDITIONAL CLAUSES) THE BELOW DATA SHOULD BE INCLUDED IN THE SPECIAL CONDITIONS OF CONTRACT USED IN TENDERING DOCUMENT FOR THE PROCUREMENT OF PHARMACEUTICALS. FOR GOODS SUPPLIED FROM ABROAD: (I) ONE ORIGINAL OF THE CERTIFICATE OF PHARMACEUTICAL PRODUCT AS RECOMMENDED BY THE WHO FOR EACH OF THE ITEMS SUPPLIED. (II) CERTIFICATE OF QUALITY CONTROL TEST RESULTS IN CONFORMITY WITH THE WORLD HEALTH ORGANIZATION "CERTIFICATION SCHEME ON THE QUALITY OF PHARMACEUTICAL PRODUCTS MOVING IN INTERNATIONAL TRADE" STATING QUANTITATIVE ASSAYS, CHEMICAL ANALYSIS, STERILITY, PYROGEN CONTENT, UNIFORMITY, MICROBIAL LIMIT, AND OTHER TESTS AS APPROPRIATE TO THE GOODS. (III) ORIGINAL COPY OF THE CERTIFICATE OF WEIGHT ISSUED BY THE PORT AUTHORITY /LICENSED AUTHORITY AND SIX COPIES.	Manual Input	APPLIES
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SCC Detail	VACCINES (ADDITIONAL CLAUSES) THE BELOW DATA SHOULD BE INCLUDED IN THE SPECIAL CONDITIONS OF CONTRACT FOR THE PROCUREMENT OF VACCINES. FOR GOODS SUPPLIED FROM ABROAD: (I) ONE COPY OF THE LOT RELEASE CERTIFICATE ISSUED BY THE NCA OF THE COUNTRY OF MANUFACTURE FOR EACH LOT SHIPPED. (II) CERTIFICATE OF QUALITY CONTROL TEST RESULTS IN CONFORMITY WITH THE WORLD HEALTH ORGANIZATION "CERTIFICATION SCHEME ON THE QUALITY OF PHARMACEUTICAL PRODUCTS MOVING IN INTERNATIONAL TRADE" STATING QUANTITATIVE ASSAYS, CHEMICAL ANALYSIS, STERILITY, PYROGEN CONTENT, UNIFORMITY, MICROBIAL LIMIT, AND OTHER TESTS AS APPROPRIATE TO THE GOODS. (III) ORIGINAL COPY OF THE CERTIFICATE OF WEIGHT ISSUED BY THE PORT AUTHORITY /LICENSED AUTHORITY AND SIX COPIES. FOR GOODS FROM WITHIN KENYA: (I) ONE COPY OF THE LOT RELEASE CERTIFICATE ISSUED BY THE NCA OF THE COUNTRY OF MANUFACTURE FOR EACH LOT SHIPPED.	Manual Input	NOT APPLICABLE
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SCC Detail	CONDOMS THE BELOW DATA SHOULD BE INCLUDED IN THE SPECIAL CONDITIONS OF CONTRACT FOR THE PROCUREMENT OF CONDOMS. <i>FOR GOODS SUPPLIED FROM ABROAD:</i> (I) ORIGINAL COPY OF QUALITY CONTROL TESTS FOR EACH CONSIGNMENT AS STATED IN SCC 26 HEREAFTER. (II) ORIGINAL COPY OF THE CERTIFICATE OF INSPECTION FURNISHED TO SUPPLIER BY NOMINATED INSPECTION AGENCY AND SIX COPIES [WHERE SEPARATE INSPECTION IS REQUIRED]. <i>FOR GOODS FROM WITHIN KENYA:</i> (III) CERTIFICATE OF IN-HOUSE ANALYSIS.	Manual Input	NOT APPLICABLE
GCC Reference	15. CONTRACT PRICE 15.1 PRICES CHARGED BY THE SUPPLIER FOR THE GOODS SUPPLIED AND THE RELATED SERVICES PERFORMED UNDER THE CONTRACT SHALL NOT VARY FROM THE PRICES QUOTED BY THE SUPPLIER IN ITS TENDER, WITH THE EXCEPTION OF ANY PRICE ADJUSTMENTS AUTHORIZED IN THE SCC.	-	-

SCC Detail	THE PRICES CHARGED FOR THE GOODS SUPPLIED AND THE RELATED SERVICES PERFORMED <i>[INSERT "SHALL" OR "SHALL NOT," AS APPROPRIATE]</i> BE ADJUSTABLE.	Manual Input	SHALL NOT
SCC Detail	IF PRICES ARE ADJUSTABLE, THE FOLLOWING METHOD SHALL BE USED TO CALCULATE THE PRICE ADJUSTMENT [SEE SCC BELOW FOR A SAMPLE PRICE ADJUSTMENT FORMULA]	Manual Input	NOT APPLICABLE
SCC Detail	PRICE ADJUSTMENT FORMULA IF IN ACCORDANCE WITH GCC 15.1, PRICES SHALL BE ADJUSTABLE, THE FOLLOWING METHOD SHALL BE USED TO CALCULATE THE PRICE ADJUSTMENT: 15.1 PRICES PAYABLE TO THE SUPPLIER, AS STATED IN THE CONTRACT, SHALL BE SUBJECT TO ADJUSTMENT DURING PERFORMANCE OF THE CONTRACT TO REFLECT CHANGES IN THE COST OF LABOR AND MATERIAL COMPONENTS IN ACCORDANCE WITH THE FORMULA: NO PRICE ADJUSTMENT SHALL BE PAYABLE ON THE PORTION OF THE CONTRACT PRICE PAID TO THE SUPPLIER AS ADVANCE PAYMENT.	Manual Input	NOT APPLICABLE
GCC Reference	16. TERMS OF PAYMENT 16.1 THE CONTRACT PRICE, INCLUDING ANY ADVANCE PAYMENTS, IF APPLICABLE, SHALL BE PAID AS SPECIFIED IN THE SCC .	-	-

SCC Detail	SAMPLE PROVISION GCC 16.1—THE METHOD AND CONDITIONS OF PAYMENT TO BE MADE TO THE SUPPLIER UNDER THIS CONTRACT SHALL BE AS FOLLOWS: PAYMENT FOR GOODS SUPPLIED FROM ABROAD: PAYMENT OF FOREIGN CURRENCY PORTION SHALL BE MADE IN) [CURRENCY OF THE CONTRACT PRICE] IN THE FOLLOWING MANNER: (I) ADVANCE PAYMENT: TEN (10) PERCENT OF THE CONTRACT PRICE SHALL BE PAID WITHIN THIRTY (30) DAYS OF SIGNING OF THE CONTRACT, AND UPON SUBMISSION OF CLAIM AND A BANK GUARANTEE FOR EQUIVALENT AMOUNT VALID UNTIL THE GOODS ARE DELIVERED AND IN THE FORM PROVIDED IN THE TENDERING DOCUMENT OR ANOTHER FORM ACCEPTABLE TO THE PROCURING ENTITY. (II) ON SHIPMENT: EIGHTY (80) PERCENT OF THE CONTRACT PRICE OF THE GOODS SHIPPED SHALL BE PAID THROUGH IRREVOCABLE CONFIRMED FORM OF CREDIT OPENED IN FAVOR OF THE SUPPLIER IN A BANK IN ITS COUNTRY, UPON SUBMISSION OF DOCUMENTS SPECIFIED IN GCC CLAUSE 12.	Manual Input	AS PER THE PROVISION OF THE CONTRACT ONCE SIGNED
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(III) ON ACCEPTANCE: TEN (10) PERCENT OF THE CONTRACT PRICE OF GOODS RECEIVED SHALL BE PAID WITHIN THIRTY (30) DAYS OF RECEIPT OF THE GOODS UPON SUBMISSION OF CLAIM SUPPORTED BY THE ACCEPTANCE CERTIFICATE ISSUED BY THE PROCURING ENTITY.

PAYMENT OF LOCAL CURRENCY PORTION SHALL BE MADE IN [CURRENCY] WITHIN THIRTY (30) DAYS OF PRESENTATION OF CLAIM SUPPORTED BY A CERTIFICATE FROM THE PROCURING ENTITY DECLARING THAT THE GOODS HAVE BEEN DELIVERED AND THAT ALL OTHER CONTRACTED SERVICES HAVE BEEN PERFORMED.

PAYMENT FOR GOODS AND SERVICES SUPPLIED FROM WITHIN KENYA:

PAYMENT FOR GOODS AND SERVICES SUPPLIED FROM WITHIN KENYA SHALL BE MADE IN ____ [CURRENCY], AS FOLLOWS:

(I) ADVANCE PAYMENT: TEN (10) PERCENT OF THE CONTRACT PRICE SHALL BE PAID WITHIN THIRTY (30) DAYS OF SIGNING OF THE CONTRACT AGAINST A SIMPLE RECEIPT AND A BANK GUARANTEE FOR THE EQUIVALENT AMOUNT AND IN THE FORM PROVIDED IN THE TENDERING DOCUMENT OR ANOTHER FORM ACCEPTABLE TO THE PROCURING ENTITY.

	(II) ON DELIVERY: EIGHTY (80) PERCENT OF THE CONTRACT PRICE SHALL BE PAID ON RECEIPT OF THE GOODS AND UPON SUBMISSION OF THE DOCUMENTS SPECIFIED IN GCC CLAUSE 13. (III) ON ACCEPTANCE: THE REMAINING TEN (10) PERCENT OF THE CONTRACT PRICE SHALL BE PAID TO THE SUPPLIER WITHIN THIRTY (30) DAYS AFTER THE DATE OF THE ACCEPTANCE CERTIFICATE FOR THE RESPECTIVE DELIVERY ISSUED BY THE PROCURING ENTITY.		
GCC Reference	16.5 IN THE EVENT THAT THE PROCURING ENTITY FAILS TO PAY THE SUPPLIER ANY PAYMENT BY ITS DUE DATE OR WITHIN THE PERIOD SET FORTH IN THE SCC, THE PROCURING ENTITY SHALL PAY TO THE SUPPLIER INTEREST ON OVERDUE AMOUNT IN ACCORDANCE WITH THE PREVAILING MEAN COMMERCIAL LENDING RATE AS DETERMINED BY THE CENTRAL BANK OF KENYA	-	-
SCC Detail	THE PAYMENT-DELAY PERIOD AFTER WHICH THE PROCURING ENTITY SHALL PAY INTEREST TO THE SUPPLIER SHALL BE [INSERT NUMBER] DAYS.	Manual Input	AS PER THE CONTRACT

GCC Reference	18. PERFORMANCE SECURITY 18.1 IF REQUIRED AS SPECIFIED IN THE SCC, THE SUPPLIER SHALL, WITHIN TWENTY-EIGHT (28) DAYS OF THE NOTIFICATION OF CONTRACT AWARD, PROVIDE A PERFORMANCE SECURITY FOR THE PERFORMANCE OF THE CONTRACT IN THE AMOUNT SPECIFIED IN THE SCC.	-	-
SCC Detail	A PERFORMANCE SECURITY [<i>INSERT “SHALL” OR “SHALL NOT” BE REQUIRED</i>] <i>[IF A PERFORMANCE SECURITY IS REQUIRED, INSERT “THE AMOUNT OF THE PERFORMANCE SECURITY SHALL BE: [INSERT AMOUNT]</i> [THE AMOUNT OF THE PERFORMANCE SECURITY IS USUALLY EXPRESSED AS A PERCENTAGE OF THE CONTRACT PRICE. THE PERCENTAGE VARIES ACCORDING TO THE PROCURING ENTITY’S PERCEIVED RISK AND IMPACT OF NON-PERFORMANCE BY THE SUPPLIER. A 10% PERCENTAGE IS USED UNDER NORMAL CIRCUMSTANCES]	Manual Input	SHALL
GCC Reference	18.3 AS SPECIFIED IN THE SCC, THE PERFORMANCE SECURITY, IF REQUIRED, SHALL BE DENOMINATED IN THE CURRENCY (IES) OF THE CONTRACT, OR IN A FREELY CONVERTIBLE CURRENCY ACCEPTABLE TO THE PROCURING ENTITY; AND SHALL BE IN ONE OF THE FORMATS STIPULATED BY THE PROCURING ENTITY IN THE SCC, OR IN ANOTHER FORM AT ACCEPTABLE TO THE PROCURING ENTITY.	-	-

SCC Detail	IF REQUIRED, THE PERFORMANCE SECURITY SHALL BE IN THE FORM OF: <i>[INSERT "A DEMAND GUARANTEE" OR "A PERFORMANCE BOND"]</i> IF REQUIRED, THE PERFORMANCE SECURITY SHALL BE DENOMINATED IN <i>[INSERT "A FREELY CONVERTIBLE CURRENCY ACCEPTABLE TO THE PROCURING ENTITY" OR "THE CURRENCIES OF PAYMENT OF THE CONTRACT, IN ACCORDANCE WITH THEIR PORTIONS OF THE CONTRACT PRICE"]</i>	Manual Input	BANK GUARANTEE- KENYA SHILLINGS
GCC Reference	18.4 THE PERFORMANCE SECURITY SHALL BE DISCHARGED BY THE PROCURING ENTITY AND RETURNED TO THE SUPPLIER NOT LATER THAN TWENTY-EIGHT (28) DAYS FOLLOWING THE DATE OF COMPLETION OF THE SUPPLIER'S PERFORMANCE OBLIGATIONS UNDER THE CONTRACT, INCLUDING ANY WARRANTY OBLIGATIONS, UNLESS SPECIFIED OTHERWISE IN THE SCC.	-	-
SCC Detail	DISCHARGE OF THE PERFORMANCE SECURITY SHALL TAKE PLACE: <i>[INSERT DATE IF DIFFERENT FROM THE ONE INDICATED IN SUB CLAUSE GCC 18.4]</i>	Manual Input	AS PER THE PROVISION OF THE CONTRACT

GCC Reference	19. CERTIFICATION OF GOODS IN ACCORDANCE WITH LAWS OF KENYA 19.1 IF REQUIRED UNDER THE APPLICABLE LAW, GOODS SUPPLIED UNDER THE CONTRACT SHALL BE REGISTERED FOR USE IN KENYA. THE PROCURING ENTITY UNDERTAKES TO COOPERATE WITH THE SUPPLIER TO FACILITATE REGISTRATION OF THE GOODS FOR USE IN KENYA AS SPECIFIED IN THE SCC.	-	-
SCC Detail	THE REGISTRATION AND OTHER CERTIFICATION NECESSARY TO PROVE REGISTRATION IN KENYA IS <i>[INSERT: DETAILS OF REGISTRATION AND OTHER CERTIFICATION NECESSARY TO PROVE REGISTRATION IN KENYA.]</i>	Manual Input	MUST BE REGISTERED IN KENYA BY PHARMACY AND POISON BOARD
GCC Reference	19.2 UNLESS OTHERWISE SPECIFIED IN THE SCC, THE CONTRACT SHALL BECOME EFFECTIVE ON THE DATE ("THE EFFECTIVE DATE") THAT THE SUPPLIER RECEIVES WRITTEN NOTIFICATION FROM THE RELEVANT AUTHORITY IN KENYA THAT THE GOODS HAVE BEEN REGISTERED FOR USE IN KENYA.	-	-
SCC Detail	THE EFFECTIVE DATE OF THE CONTRACT IS <i>[INSERT: DATE OF CONTRACT SIGNING IF EITHER: (I) THE GOODS HAVE ALREADY BEEN REGISTERED AT THE TIME OF CONTRACTING SIGNING OR (II) REGISTRATION OF THE GOODS IS NOT A REQUIREMENT UNDER THE APPLICABLE LAW. OTHERWISE, DELETE AND INSERT "NOT USED."]</i>	Manual Input	AS PER THE CONTRACT

GCC Reference	19.3 IF THIRTY (30) DAYS, OR SUCH LONGER PERIOD SPECIFIED IN THE SCC, ELAPSE FROM THE DATE OF CONTRACT SIGNING AND THE CONTRACT HAS NOT BECOME EFFECTIVE PURSUANT TO SUB-CLAUSE 19.2 ABOVE, THEN EITHER PARTY MAY, BY NOT LESS THAN SEVEN (7) DAYS' WRITTEN NOTICE TO THE OTHER PARTY, DECLARE THIS CONTRACT NULL AND VOID. IN SUCH EVENT, THE SUPPLIER'S PERFORMANCE SECURITY SHALL BE PROMPTLY RETURNED.	-	-
SCC Detail	THE TIME PERIOD SHALL BE [INSERT: A NUMBER GREATER THAN 30] DAYS. <i>[IF NOT USED, DELETE AND INSERT "NOT USED."]</i>	Manual Input	AS PER THE CONTRACT
GCC Reference	23. PACKING AND DOCUMENTS 23.2 THE PACKING, MARKING, AND DOCUMENTATION WITHIN AND OUTSIDE THE PACKAGES SHALL COMPLY STRICTLY WITH SUCH SPECIAL REQUIREMENTS AS SHALL BE EXPRESSLY PROVIDED FOR IN THE CONTRACT, INCLUDING ADDITIONAL REQUIREMENTS, IF ANY, SPECIFIED IN THE SCC, AND IN ANY OTHER INSTRUCTIONS ORDERED BY THE PROCURING ENTITY	-	-

SCC Detail	THE PACKING, MARKING AND DOCUMENTATION WITHIN AND OUTSIDE THE PACKAGES SHALL BE: <i>[INSERT IN DETAIL THE TYPE OF PACKING REQUIRED, THE MARKINGS IN THE PACKING AND ALL DOCUMENTATION REQUIRED]</i>	Manual Input	SINGLE USE VIALS (GLASS VIALS) CLEAR LABELLING (PRODUCT BATCH NUMBER,MFG. DATE,EXP.DATE, STORAGE COPNDITION, DILUENT INFORMATION (BATCH NUMBER, MFG.DATE,EXP. DATE.
GCC Reference	24. INSURANCE 24.1 UNLESS OTHERWISE SPECIFIED IN THE SCC , THE GOODS SUPPLIED UNDER THE CONTRACT SHALL BE FULLY INSURED-IN A FREELY CONVERTIBLE CURRENCY FROM AN ELIGIBLE COUNTRY—AGAINST LOSS OR DAMAGE INCIDENTAL TO MANUFACTURE OR ACQUISITION, TRANSPORTATION, STORAGE, AND DELIVERY, IN ACCORDANCE WITH THE APPLICABLE INCOTERMS OR IN THE MANNER SPECIFIED IN THE SCC .	-	-

SCC Detail	THE INSURANCE COVERAGE SHALL BE AS SPECIFIED IN THE INCOTERMS. IF NOT IN ACCORDANCE WITH INCOTERMS, INSURANCE SHALL BE AS FOLLOWS: <i>[INSERT SPECIFIC INSURANCE PROVISIONS AGREED UPON, INCLUDING COVERAGE, CURRENCY AND AMOUNT]</i>	Manual Input	AS PER INCOTERMS
GCC Reference	25. TRANSPORTATION AND INCIDENTAL SERVICES 25.1 UNLESS OTHERWISE SPECIFIED IN THE SCC, RESPONSIBILITY FOR ARRANGING TRANSPORTATION OF THE GOODS SHALL BE IN ACCORDANCE WITH THE SPECIFIED INCOTERMS.	-	-

SCC Detail	RESPONSIBILITY FOR TRANSPORTATION OF THE GOODS SHALL BE AS SPECIFIED IN THE INCOTERMS. IF NOT IN ACCORDANCE WITH INCOTERMS, RESPONSIBILITY FOR TRANSPORTATIONS SHALL BE AS FOLLOWS: <i>[INSERT "THE SUPPLIER IS REQUIRED UNDER THE CONTRACT TO TRANSPORT THE GOODS TO A SPECIFIED PLACE OF FINAL DESTINATION WITHIN KENYA, DEFINED AS THE PROJECT SITE, TRANSPORT TO SUCH PLACE OF DESTINATION IN KENYA, INCLUDING INSURANCE AND STORAGE, AS SHALL BE SPECIFIED IN THE CONTRACT, SHALL BE ARRANGED BY THE SUPPLIER, AND RELATED COSTS SHALL BE INCLUDED IN THE CONTRACT PRICE"; OR ANY OTHER AGREED UPON TRADE TERMS (SPECIFY THE RESPECTIVE RESPONSIBILITIES OF THE PROCURING ENTITY AND THE SUPPLIER)]</i>	Manual Input	AS PER INCOTERMS
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GCC Reference	25.2 THE SUPPLIER MAY BE REQUIRED TO PROVIDE ANY OR ALL OF THE FOLLOWING SERVICES, INCLUDING ADDITIONAL SERVICES, IF ANY, SPECIFIED IN SCC: A) PERFORMANCE OR SUPERVISION OF ON-SITE ASSEMBLY AND/OR START-UP OF THE SUPPLIED GOODS. B) FURNISHING OF TOOLS REQUIRED FOR ASSEMBLY AND/OR MAINTENANCE OF THE SUPPLIED GOODS. C) FURNISHING OF A DETAILED OPERATIONS AND MAINTENANCE MANUAL FOR EACH APPROPRIATE UNIT OF THE SUPPLIED GOODS. D) PERFORMANCE OR SUPERVISION OR MAINTENANCE AND/OR REPAIR OF THE SUPPLIED GOODS, FOR A PERIOD OF TIME AGREED BY THE PARTIES, PROVIDED THAT THIS SERVICE SHALL NOT RELIEVE THE SUPPLIER OF ANY WARRANTY OBLIGATIONS UNDER THIS CONTRACT; AND E) TRAINING OF THE PROCURING ENTITY'S PERSONNEL, AT THE SUPPLIER'S PLANT AND /OR ON-SITE, IN ASSEMBLY, START-UP, OPERATION, MAINTENANCE, AND/OR REPAIR OF THE SUPPLIED GOODS.	-	-
SCC Detail		Manual Input	

INCIDENTAL SERVICES TO BE PROVIDED ARE:
*[SELECTED SERVICES COVERED UNDER GCC
CLAUSE 25.2 AND/OR OTHER SHOULD BE
SPECIFIED WITH THE DESIRED FEATURES. THE
PRICE QUOTED IN THE TENDER PRICE OR
AGREED WITH THE SELECTED SUPPLIER SHALL
BE INCLUDED IN THE CONTRACT PRICE.]*

A) FURNISHING
OF A DETAILED
OPERATIONS AND
MAINTENANCE
MANUAL FOR
EACH
APPROPRIATE
UNIT OF THE
SUPPLIED GOODS.

B) PERFORMANC
E OR
SUPERVISION OR
MAINTENANCE
AND/OR REPAIR
OF THE SUPPLIED
GOODS, FOR A
PERIOD OF TIME
AGREED BY THE
PARTIES,
PROVIDED THAT
THIS SERVICE
SHALL NOT
RELIEVE THE
SUPPLIER OF ANY
WARRANTY
OBLIGATIONS
UNDER THIS
CONTRACT; AND

			C) TRAINING OF THE PROCURING ENTITY'S PERSONNEL, AT THE SUPPLIER'S PLANT AND/OR ON-SITE, IN ASSEMBLY, START-UP, OPERATION, MAINTENANCE, AND/OR REPAIR OF THE SUPPLIED GOODS.
GCC Reference	26. INSPECTIONS AND TESTS 26.1 THE SUPPLIER SHALL AT ITS OWN EXPENSE AND AT NO COST TO THE PROCURING ENTITY CARRY OUT ALL SUCH TESTS AND/OR INSPECTIONS OF THE GOODS AND RELATED SERVICES AS ARE SPECIFIED IN THE SCC.	-	-

SCC Detail	THE INSPECTIONS AND TESTS SHALL BE: <i>[INSERT NATURE, FREQUENCY, PROCEDURES FOR CARRYING OUT THE INSPECTIONS AND TESTS]</i>	Manual Input	INSPECTION TO BE DONE IN BATCHES UPON DELIVERY TO ASERTAIN THE QUANTITY, PACKAGE AND CONDITION OF GOODS, TESTING TO BE DONE AT KIPRE BY KENYA INSTITUTE OF PRIMATE RESEARCH ON CONTINOUS BASIS
GCC Reference	26.2 THE INSPECTIONS AND TESTS MAY BE CONDUCTED ON THE PREMISES OF THE SUPPLIER OR THE MANUFACTURER, AT POINT OF DELIVERY, AND /OR AT THE GOODS' FINAL DESTINATION, OR IN ANOTHER PLACE IN KENYA AS SPECIFIED IN THE SCC . SUBJECT TO GCC SUB-CLAUSE 26.3, IF CONDUCTED ON THE PREMISES OF THE SUPPLIER OR THE MANUFACTURER, ALL REASONABLE FACILITIES AND ASSISTANCE, INCLUDING ACCESS TO PRODUCTION DATA, SHALL BE FURNISHED TO THE INSPECTORS AT NO CHARGE TO THE PROCURING ENTITY.	-	-
SCC Detail	THE INSPECTIONS AND TESTS SHALL BE CONDUCTED AT: <i>[INSERT NAME(S) OF LOCATION(S)]</i>	Manual Input	KENYA INSTITUTE OF PRIMATE RESEARCH - NAIROBI-KENYA

GCC Reference	27. LIQUIDATED DAMAGES 27.1 EXCEPT AS PROVIDED UNDER GCC CLAUSE 32, IF THE SUPPLIER FAILS TO DELIVER ANY OR ALL OF THE GOODS BY THE DATE (S) OF DELIVERY OR PERFORM THE RELATED SERVICES WITHIN THE PERIOD SPECIFIED IN THE CONTRACT, THE PROCURING ENTITY MAY WITHOUT PREJUDICE TO ALL ITS OTHER REMEDIES UNDER THE CONTRACT, DEDUCT FROM THE CONTRACT PRICE, AS LIQUIDATED DAMAGES, A SUM EQUIVALENT TO THE PERCENTAGE SPECIFIED IN THE SCC OF THE DELIVERED PRICE OF THE DELAYED GOODS OR UNPERFORMED SERVICES FOR EACH WEEK OR PART THEREOF OF DELAY UNTIL ACTUAL DELIVERY OR PERFORMANCE, UP TO A MAXIMUM DEDUCTION OF THE PERCENTAGE SPECIFIED IN THE SCC. ONCE THE MAXIMUM IS REACHED, THE PROCURING ENTITY MAY TERMINATE THE CONTRACT PURSUANT TO GCC CLAUSE 35.	-	-
SCC Detail	THE LIQUIDATED DAMAGE SHALL BE: [INSERT NUMBER] % PER WEEK	Manual Input	AS PER THE CONTRACT
SCC Detail	THE MAXIMUM AMOUNT OF LIQUIDATED DAMAGES SHALL BE: [INSERT NUMBER] %	Manual Input	AS PER THE CONTRACT

GCC Reference	28. WARRANTY 28.1 ALL GOODS MUST BE OF FRESH MANUFACTURE AND MUST BEAR THE DATES OF MANUFACTURE AND EXPIRY. THE SUPPLIER FURTHER WARRANTS THAT ALL GOODS SUPPLIED UNDER THE CONTRACT WILL HAVE REMAINING A MINIMUM OF FIVE-SIXTHS (5/6) OF THE SPECIFIED SHELF LIFE UPON DELIVERY AT PORT/ AIRPORT OF ENTRY FOR GOODS WITH A SHELF LIFE OF MORE THAN TWO YEARS AND THREE-FOURTHS (3/4) FOR GOODS WITH SHELF LIFE OF TWO YEARS OR LESS, UNLESS OTHERWISE SPECIFIED IN THE SCC; HAVE "OVERAGES" WITHIN THE RANGES SET FORTH IN THE TECHNICAL SPECIFICATIONS, WHERE APPLICABLE; ARE NOT SUBJECT TO RECALL BY THE APPLICABLE REGULATORY AUTHORITY DUE TO UNACCEPTABLE QUALITY OR AN ADVERSE DRUG REACTION; AND IN EVERY OTHER RESPECT WILL FULLY COMPLY IN ALL RESPECTS WITH THE TECHNICAL SPECIFICATIONS AND WITH THE CONDITIONS LAID DOWN IN THE CONTRACT.	-	-
SCC Detail	[INSERT ANY ALTERNATIVE WARRANTY REQUIREMENTS OR INDICATE: "NO CHANGES TO GCC 28.1"]	Manual Input	NO CHANGES

GCC Reference	28.4 IF, AFTER BEING NOTIFIED THAT THE DEFECT HAS BEEN CONFIRMED PURSUANT TO GCC SUB-CLAUSE 28.2 ABOVE, THE SUPPLIER FAILS TO REPLACE THE DEFECTIVE GOODS WITHIN THE PERIOD SPECIFIED IN THE SCC THE PROCURING ENTITY MAY PROCEED TO TAKE SUCH REMEDIAL ACTION AS MAY BE NECESSARY, INCLUDING REMOVAL AND DISPOSAL, AT THE SUPPLIER'S RISK AND EXPENSE AND WITHOUT PREJUDICE TO ANY OTHER RIGHTS THAT THE PROCURING ENTITY MAY HAVE AGAINST THE SUPPLIER UNDER THE CONTRACT. THE PROCURING ENTITY WILL ALSO BE ENTITLED TO CLAIM FOR STORAGE IN RESPECT OF THE DEFECTIVE GOODS FOR THE PERIOD FOLLOWING NOTIFICATION AND DEDUCT THE SUM FROM PAYMENTS DUE TO THE SUPPLIER UNDER THIS CONTRACT. RECALLS. IN THE EVENT ANY OF THE GOODS ARE RECALLED, THE SUPPLIER SHALL NOTIFY THE PROCURING ENTITY WITHIN FOURTEEN (14) DAYS, PROVIDING FULL DETAILS OF THE REASON FOR THE RECALL AND PROMPTLY REPLACE, AT ITS OWN COST, THE ITEMS COVERED BY THE RECALL WITH GOODS THAT FULLY MEET THE REQUIREMENTS OF THE TECHNICAL SPECIFICATION AND ARRANGE FOR COLLECTION OR DESTRUCTION OF ANY DEFECTIVE GOODS. IF THE SUPPLIER FAILS TO FULFILL ITS RECALL OBLIGATION PROMPTLY, THE PROCURING ENTITY WILL, AT THE SUPPLIER'S EXPENSE, CARRY OUT THE RECALL.	-	-
SCC Detail	THE PERIOD FOR REPLACEMENT SHALL BE: <i>[INSERT NUMBER]</i> DAYS.	Manual Input	90 DAYS

GCC Reference	33. CHANGE ORDERS AND CONTRACT AMENDMENTS 33.4 SUBJECT TO THE ABOVE, NO VARIATION IN OR MODIFICATION OF THE TERMS OF THE CONTRACT SHALL BE MADE EXCEPT BY WRITTEN AMENDMENT SIGNED BY THE PARTIES. THIS INCLUDES, IF SPECIFIED IN THE SCC, ANY VARIATION TO THE CONTRACT RESULTING FROM A VALUE ENGINEERING PROPOSAL AGREED BETWEEN THE PARTIES.	-	-
SCC Detail	[VALUE ENGINEERING MAY BE INCLUDED IF IT HAS BEEN SPECIFIED] VALUE ENGINEERING: THE SUPPLIER MAY, AT ANY TIME, SUBMIT TO THE PROCURING ENTITY A WRITTEN VALUE ENGINEERING PROPOSAL THAT SEEKS TO YIELD ANY BENEFITS TO THE PROCURING ENTITY, WITHOUT SACRIFICING THE NECESSARY FUNCTIONS OR QUALITY OF THE GOODS OR RELATED SERVICES. THE VALUE ENGINEERING PROPOSAL SHALL BE PREPARED AT THE COST OF THE SUPPLIER. IF THE VALUE ENGINEERING PROPOSAL IS APPROVED BY THE PROCURING ENTITY AND RESULTS IN A REDUCTION OF THE CONTRACT PRICE, THE AMOUNT TO BE PAID TO THE SUPPLIER SHALL BE A PERCENTAGE _____ [INSERT APPROPRIATE PERCENTAGE. THE PERCENTAGE IS NORMALLY UP TO 50%] OF THE AMOUNT OF THE REDUCTION IN THE CONTRACT PRICE.	Manual Input	AS PER THE CONTRACT